

LEGISLATURE OF NEBRASKA
ONE HUNDRED NINTH LEGISLATURE
FIRST SESSION

LEGISLATIVE BILL 298

FINAL READING

Introduced by Arch, 14; Clements, 2; Hansen, 16; Holdcroft, 36; Jacobson, 42; Riepe, 12.

Read first time January 15, 2025

Committee: Executive Board

1 A BILL FOR AN ACT relating to the Legislature; to amend sections 28-711,
2 43-4302, 43-4303, 43-4317, 43-4320, 43-4321, 43-4322, 43-4324,
3 43-4326, 43-4329, 43-4330, 47-901, 47-902, 47-903, 47-904, 47-905,
4 47-907, 47-908, 47-909, 47-910, 47-911, 47-912, 47-913, 47-914,
5 47-915, 47-916, 47-917, 47-918, 47-920, 50-406, 50-406.01, 50-407,
6 50-408, 50-409, 50-410, 50-416, 50-418, 50-420, 50-1201, 50-1202,
7 50-1203, 50-1204, 50-1205, 50-1205.01, 50-1206, 50-1210, 50-1211,
8 50-1212, 50-1213, 50-1303, 50-1304, 73-401, 81-8,240, 81-8,241,
9 81-8,242, 81-8,243, 81-8,244, 81-8,245, 81-8,246, 81-8,247,
10 81-8,248, 81-8,249, 81-8,250, 81-8,251, 81-8,252, 81-8,253,
11 81-8,254, 81-1114, 83-178, 83-1,125.01, 84-304, 84-311, 84-322, and
12 84-910, Reissue Revised Statutes of Nebraska, and sections
13 28-712.01, 29-2011.02, 29-2011.03, 43-2,108, 43-4301, 43-4318,
14 43-4323, 43-4325, 43-4327, 43-4328, 43-4331, 43-4332, 50-401.01,
15 50-402, 50-1209, 77-2711, and 77-27,119, Revised Statutes Cumulative
16 Supplement, 2024; to name the Office of Public Counsel Act; to
17 change provisions relating to the Public Counsel; to provide for
18 confidentiality of certain information; to provide for subpoenas; to
19 state legislative intent; to provide for the Division of Legislative
20 Oversight, the Director of Legislative Oversight, and the
21 Legislative Oversight Committee; to change the Office of Inspector

1 General of Nebraska Child Welfare Act and the Office of Inspector
2 General of the Nebraska Correctional System Act as prescribed; to
3 transfer provisions; to eliminate a penalty; to change provisions
4 relating to the Legislative Council, the Legislative Research
5 Office, the Legislative Fiscal Office, and the Legislative Audit
6 Office; to change the Legislative Performance Audit Act as
7 prescribed; to eliminate the Legislative Performance Audit
8 Committee; to harmonize provisions; to provide a duty for the
9 Revisor of Statutes; to repeal the original sections; to outright
10 repeal sections 43-4304, 43-4304.01, 43-4304.02, 43-4305, 43-4306,
11 43-4306.01, 43-4307, 43-4307.01, 43-4308, 43-4309, 43-4310, 43-4311,
12 43-4312, 43-4313, 43-4314, 43-4315, 43-4316, 43-4319, 47-906,
13 47-919, and 50-421, Reissue Revised Statutes of Nebraska; and to
14 declare an emergency.

15 Be it enacted by the people of the State of Nebraska,

1 **Section 1.** Sections 1 to 18 of this act shall be known and may be
2 cited as the Office of Public Counsel Act.

3 **Sec. 2.** Section 81-8,240, Reissue Revised Statutes of Nebraska, is
4 amended to read:

5 ~~81-8,240~~ As used in the Office of Public Counsel Act sections
6 ~~81-8,240 to 81-8,254~~, unless the context otherwise requires:

7 (1) Administrative agency shall mean any department, board,
8 commission, or other governmental unit, any official, any employee of the
9 State of Nebraska acting or purporting to act by reason of connection
10 with the State of Nebraska, any corporation, partnership, business, firm,
11 governmental entity, or person who is providing health and human services
12 to individuals or service delivery, service coordination, or case
13 management under contract with the State of Nebraska and who is subject
14 to the jurisdiction of the office of Public Counsel as required by
15 section 73-401, any regional behavioral health authority, any community-
16 based behavioral health services provider that contracts with a regional
17 behavioral health authority, and any county or municipal correctional or
18 jail facility and employee thereof acting or purporting to act by reason
19 of connection with the county or municipal correctional or jail facility;
20 but shall not include (a) any court, (b) any member or employee of the
21 Legislature or the Legislative Council, (c) the Governor or his or her
22 personal staff, (d) any political subdivision or entity thereof except a
23 county or municipal correctional or jail facility or a regional
24 behavioral health authority, (e) any instrumentality formed pursuant to
25 an interstate compact and answerable to more than one state, or (f) any
26 entity of the federal government; and

27 (2) Administrative act shall include every action, rule, regulation,
28 order, omission, decision, recommendation, practice, or procedure of an
29 administrative agency.

30 **Sec. 3.** Section 81-8,241, Reissue Revised Statutes of Nebraska, is
31 amended to read:

1 ~~81-8,241~~ The office of Public Counsel is hereby established to
2 exercise the authority and perform the duties under the Office of Public
3 Counsel Act ~~provided by sections 81-8,240 to 81-8,254, the Office of~~
4 ~~Inspector General of Nebraska Child Welfare Act, and the Office of~~
5 ~~Inspector General of the Nebraska Correctional System Act.~~ The Public
6 Counsel shall be appointed by the Legislature, with the vote of two-
7 thirds of the members required for approval of such appointment from
8 nominations submitted by the Executive Board of the Legislative Council.

9 **Sec. 4.** Section 81-8,242, Reissue Revised Statutes of Nebraska, is
10 amended to read:

11 ~~81-8,242~~ The Public Counsel shall be a person well equipped to
12 analyze problems of law, administration, and public policy ~~and during~~
13 such person's term of office shall not be actively involved in partisan
14 affairs. No person may serve as Public Counsel within two years of the
15 last day on which such person served as a member of the Legislature ~~and~~ or
16 while such person is a candidate for or holds any other state office ~~and~~
17 ~~while such person is engaged in any other occupation for reward or~~
18 ~~profit.~~

19 **Sec. 5.** Section 81-8,243, Reissue Revised Statutes of Nebraska, is
20 amended to read:

21 ~~81-8,243~~ The Public Counsel shall serve for a term of six years,
22 unless removed for cause as determined by a two-thirds vote ~~by vote of~~
23 ~~two-thirds~~ of the members of the Legislature or, if the Legislature is
24 not in session, by a two-thirds vote of the members of the Legislative
25 Council ~~upon their determining that the Public Counsel has become~~
26 ~~incapacitated or has been guilty of neglect of duty or misconduct.~~ If the
27 office of Public Counsel becomes vacant for any reason ~~cause~~, the deputy
28 public counsel shall serve as acting public counsel until a successor
29 Public Counsel is ~~has been~~ appointed ~~for a full term.~~ The Public Counsel
30 shall receive such salary as is set by the Executive Board of the
31 Legislative Council.

1 **Sec. 6.** Section 81-8,244, Reissue Revised Statutes of Nebraska, is
2 amended to read:

3 81-8,244 (1) ~~(1)(a)~~ The Public Counsel may select, appoint, and
4 compensate as the Public Counsel ~~he or she~~ sees fit, within the amount
5 available by appropriation, such assistants and employees as the Public
6 Counsel ~~he or she~~ deems necessary to discharge the responsibilities under
7 the Office of Public Counsel Act. The Public Counsel ~~sections 81-8,240 to~~
8 ~~81-8,254. He or she~~ shall appoint and designate one assistant to be a
9 deputy public counsel, one assistant to be a deputy public counsel for
10 corrections, one assistant to be a deputy public counsel for
11 institutions, and one assistant to be a deputy public counsel for public
12 ~~welfare services.~~

13 (2) ~~(b)~~ Such deputy public counsels shall be subject to the control
14 and supervision of the Public Counsel.

15 (3) ~~(c)~~ The authority of the deputy public counsel for corrections
16 shall extend to all facilities and parts of facilities, offices, houses
17 of confinement, and institutions which are operated by the Department of
18 Correctional Services and all county or municipal correctional or jail
19 facilities.

20 (4) ~~(d)~~ The authority of the deputy public counsel for institutions
21 shall extend to all mental health institutions and facilities operated by
22 the Department of Health and Human Services, to all veterans institutions
23 operated by the Department of Veterans' Affairs, and to all regional
24 behavioral health authorities that provide services and all community-
25 based behavioral health services providers that contract with a regional
26 behavioral health authority to provide services, for any individual who
27 was a patient within the prior twenty-four months of a state-owned and
28 state-operated regional center, and to all complaints pertaining to
29 administrative acts of the department, authority, or provider when those
30 acts are concerned with the rights and interests of individuals placed
31 within those institutions and facilities or receiving community-based

1 behavioral health services.

2 ~~(5) (e)~~ The authority of the deputy public counsel for public
3 ~~welfare services~~ shall extend to all complaints pertaining to
4 administrative acts of administrative agencies when those acts are
5 concerned with the rights and interests of individuals involved in the
6 public welfare services system of the State of Nebraska.

7 ~~(6) (f)~~ The Public Counsel may delegate to members of the staff any
8 authority or duty under the Office of Public Counsel Act sections
9 ~~81-8,240 to 81-8,254~~ except the power of delegation and the duty of
10 formally making recommendations to administrative agencies or reports to
11 the Governor or the Legislature.

12 ~~(2) The Public Counsel shall appoint the Inspector General of~~
13 ~~Nebraska Child Welfare as provided in section 43-4317. The Inspector~~
14 ~~General of Nebraska Child Welfare shall have the powers and duties~~
15 ~~provided in the Office of Inspector General of Nebraska Child Welfare~~
16 ~~Act.~~

17 ~~(3) The Public Counsel shall appoint the Inspector General of the~~
18 ~~Nebraska Correctional System as provided in section 47-904. The Inspector~~
19 ~~General of the Nebraska Correctional System shall have the powers and~~
20 ~~duties provided in the Office of Inspector General of the Nebraska~~
21 ~~Correctional System Act.~~

22 **Sec. 7.** Section 81-8,245, Reissue Revised Statutes of Nebraska, is
23 amended to read:

24 ~~81-8,245~~ The Public Counsel shall have the power to:

25 (1) Investigate, on complaint or on the Public Counsel's ~~his or her~~
26 own motion, any administrative act of any administrative agency;

27 (2) Prescribe the methods by which complaints are to be made,
28 received, and acted upon; determine the scope and manner of
29 investigations to be made; and, subject to the requirements of the Office
30 of Public Counsel Act ~~sections 81-8,240 to 81-8,254~~, determine the form,
31 frequency, and distribution of the Public Counsel's ~~his or her~~

1 conclusions, recommendations, and proposals;

2 (3) Conduct inspections of the premises, or any parts of such
3 premises thereof, of any administrative agency or any property owned,
4 leased, or operated by any administrative agency as frequently as is
5 necessary, in the Public Counsel's ~~his or her~~ opinion, to carry out
6 duties prescribed under the Office of Public Counsel Act sections
7 ~~81-8,240 to 81-8,254~~;

8 (4) Request and receive from each administrative agency, and such
9 agency shall provide, the assistance and information the Public Counsel
10 ~~counsel~~ deems necessary for the discharge of the Public Counsel's ~~his or~~
11 ~~her~~ responsibilities; inspect and examine the records and documents of
12 all administrative agencies notwithstanding any other provision of law;
13 and enter and inspect premises within any administrative agency's
14 control;

15 (5) Request the issuance of Issue a subpoena, enforceable by action
16 in an appropriate court, to compel any person to appear, give sworn
17 testimony, or produce documentary or other evidence deemed relevant to a
18 matter under the Public Counsel's ~~his or her~~ inquiry as provided in
19 section 18 of this act . ~~A person thus required to provide information~~
20 ~~shall be paid the same fees and travel allowances and shall be accorded~~
21 ~~the same privileges and immunities as are extended to witnesses in the~~
22 ~~district courts of this state and shall also be entitled to have counsel~~
23 ~~present while being questioned~~;

24 (6) Undertake, participate in, or cooperate with general studies or
25 inquiries, whether or not related to any particular administrative agency
26 or any particular administrative act, if the Public Counsel ~~he or she~~
27 believes that such general studies or inquiries ~~they~~ may assist the
28 Legislature in enhancing ~~enhance~~ knowledge about or making lead to
29 improvements in the functioning of administrative agencies;

30 (7) Make investigations, reports, and recommendations necessary to
31 carry out the Public Counsel's ~~his or her~~ duties under the State

1 Government Effectiveness Act;

2 ~~(8) Carry out his or her duties under the Office of Inspector~~
3 ~~General of Nebraska Child Welfare Act. If any of the provisions of~~
4 ~~sections 81-8,240 to 81-8,254 conflict with provisions of the Office of~~
5 ~~Inspector General of Nebraska Child Welfare Act, the provisions of such~~
6 ~~act shall control;~~

7 ~~(9) Carry out his or her duties under the Office of Inspector~~
8 ~~General of the Nebraska Correctional System Act. If any of the provisions~~
9 ~~of sections 81-8,240 to 81-8,254 conflict with the provisions of the~~
10 ~~Office of Inspector General of the Nebraska Correctional System Act, the~~
11 ~~provisions of such act shall control;~~

12 ~~(8) (10)~~ Investigate allegations of violation of subsection (2) of
13 section 84-908 by an administrative agency pursuant to a complaint made
14 to the Public Counsel's ~~his or her~~ office and make a determination as to
15 whether such administrative agency has violated such subsection. The
16 Public Counsel shall report the Public Counsel's ~~his or her~~ determination
17 in writing to the Governor, the Secretary of State, the Attorney General,
18 the Executive Board of the Legislative Council, and the director or chief
19 executive officer of the agency. The report to the executive board shall
20 be submitted electronically; and

21 ~~(9) (11)~~ Investigate and address the complaint and case of:

22 (a) Any juvenile committed to the custody of a youth rehabilitation
23 and treatment center; and

24 (b) Any juvenile released from a youth rehabilitation and treatment
25 center for reentry into the community, while that juvenile is subject to
26 the Community and Family Reentry Process and a service or treatment
27 program in which the juvenile may be involved after the juvenile's ~~his or~~
28 ~~her~~ release from a youth rehabilitation and treatment center, whether
29 that service or program is administrated by the Office of Juvenile
30 Services or a private provider in the community. The Office of Juvenile
31 Services and private providers in the community shall cooperate with any

1 investigation conducted by the Public Counsel pursuant to this
2 subdivision and provide all documentation and information requested by
3 the Public Counsel in connection with such an investigation.

4 **Sec. 8.** Section 81-8,246, Reissue Revised Statutes of Nebraska, is
5 amended to read:

6 ~~81-8,246~~ (1) In selecting matters for attention, the Public Counsel
7 shall particularly review an administrative act that might be:

8 (a) ~~(1)~~ Contrary to law or regulation;

9 (b) ~~(2)~~ Unreasonable, unfair, oppressive, or inconsistent with the
10 general course of an administrative agency's judgments;

11 (c) ~~(3)~~ Mistaken in law or arbitrary in ascertainties of fact;

12 (d) ~~(4)~~ Improper in motivation or based on irrelevant
13 considerations;

14 (e) ~~(5)~~ Unclear or inadequately explained when reasons should have
15 been revealed; or

16 (f) ~~(6)~~ Inefficiently performed.

17 (2) The Public Counsel may also work to strengthen procedures and
18 practices which lessen the risk that objectionable administrative acts
19 will occur.

20 **Sec. 9.** Section 81-8,247, Reissue Revised Statutes of Nebraska, is
21 amended to read:

22 ~~81-8,247~~ (1) The Public Counsel may receive a complaint from any
23 person concerning an administrative act. The Public Counsel shall conduct
24 a suitable investigation into the things complained of unless the Public
25 Counsel believes that:

26 (a) ~~(1)~~ The complainant has another remedy available which the
27 complainant could reasonably be expected to use;

28 (b) ~~(2)~~ The grievance pertains to a matter outside the Public
29 Counsel's power;

30 (c) ~~(3)~~ The complainant's interest is insufficiently related to the
31 subject matter;

1 ~~(d) (4)~~ The complaint is trivial, frivolous, vexatious, or not made
2 in good faith;

3 ~~(e) (5)~~ Other complaints are more worthy of attention;

4 ~~(f) (6)~~ The Public Counsel's resources are insufficient for adequate
5 investigation; or

6 ~~(g) (7)~~ The complaint has been too long delayed to justify present
7 examination of its merit.

8 (2) The Public Counsel's declining to investigate a complaint shall
9 not bar the Public Counsel from proceeding on the Public Counsel's own
10 motion to inquire into related problems. After completing consideration
11 of a complaint, whether or not it has been investigated, the Public
12 Counsel shall suitably inform the complainant and the administrative
13 agency involved.

14 **Sec. 10.** Section 81-8,248, Reissue Revised Statutes of Nebraska, is
15 amended to read:

16 ~~81-8,248~~ Before announcing a conclusion or recommendation that
17 expressly or impliedly criticizes an administrative agency or any person,
18 the Public Counsel shall consult with such ~~that~~ agency or person.

19 **Sec. 11.** Section 81-8,249, Reissue Revised Statutes of Nebraska, is
20 amended to read:

21 ~~81-8,249~~ (1) If, having considered a complaint and whatever material
22 the Public Counsel deems pertinent, the Public Counsel is of the opinion
23 that an administrative agency should (a) consider the matter further, (b)
24 modify or cancel an administrative act, (c) alter a regulation or ruling,
25 (d) explain more fully the administrative act in question, or (e) take
26 any other step, the Public Counsel shall make recommendations to the
27 administrative agency. ~~The If the Public Counsel so requests, the~~ agency
28 ~~may shall, within the time specified,~~ inform the Public Counsel about the
29 action taken on such recommendations or the reasons for not complying
30 with them.

31 (2) If the Public Counsel believes that an administrative action has

1 been dictated by a statute creating whose results that are unfair or
2 otherwise objectionable, the Public Counsel shall notify the Legislature
3 of the Public Counsel's ~~such~~ views concerning desirable statutory change.

4 **Sec. 12.** Section 81-8,250, Reissue Revised Statutes of Nebraska, is
5 amended to read:

6 ~~81-8,250~~ The Public Counsel may report conclusions and suggestions
7 by transmitting them to the Governor, the Legislature or any of its
8 committees, the press, and others who may be concerned. When publishing
9 an opinion adverse to an administrative agency, the Public Counsel shall
10 include any statement the administrative agency may have made to the
11 Public Counsel by way of explaining its past difficulties or its present
12 rejection of the Public Counsel's proposals.

13 **Sec. 13.** Section 81-8,251, Reissue Revised Statutes of Nebraska, is
14 amended to read:

15 ~~81-8,251~~ (1) In addition to whatever reports the Public Counsel he
16 ~~or she~~ may make from time to time, the Public Counsel shall no later than
17 ~~on or about~~ February 15 of each year report to the Clerk of the
18 Legislature and to the Governor concerning the exercise of the Public
19 Counsel's ~~his or her~~ functions during the preceding calendar year. The
20 report submitted to the Clerk of the Legislature shall be submitted
21 electronically. In discussing matters with which the Public Counsel ~~he or~~
22 ~~she~~ has dealt, the Public Counsel need not identify those immediately
23 concerned if to do so would cause needless hardship. ~~If So far as~~ the
24 annual report criticizes any ~~may criticize~~ named agencies or officials,
25 the report it must ~~include~~ also include the ~~their~~ replies of the named
26 agencies or officials to such the criticism. Each member of the
27 Legislature shall receive an electronic copy of such report by making a
28 request for it to the Public Counsel.

29 (2) On or before December 15 of each year, the Public Counsel shall
30 submit a report electronically to the Clerk of the Legislature as
31 required under section 83-104 regarding state institutions.

1 **Sec. 14.** Section 81-8,252, Reissue Revised Statutes of Nebraska, is
2 amended to read:

3 ~~81-8,252~~ If the Public Counsel has reason to believe that any public
4 officer or employee has acted in a manner warranting criminal or
5 disciplinary proceedings, the Public Counsel shall refer the matter to
6 the appropriate authorities.

7 **Sec. 15.** Section 81-8,253, Reissue Revised Statutes of Nebraska, is
8 amended to read:

9 ~~81-8,253~~ (1) No proceeding, opinion, or expression of the Public
10 Counsel shall be reviewable in any court. Neither the Public Counsel nor
11 any member of the Public Counsel's staff shall be required to testify or
12 produce evidence in any judicial or administrative proceeding concerning
13 matters within the Public Counsel's official cognizance, except in a
14 proceeding brought to enforce the Office of Public Counsel Act sections
15 ~~81-8,240 to 81-8,254.~~

16 (2) Reports of investigations conducted by the Public Counsel are
17 not public records for purposes of sections 84-712 to 84-712.09.

18 **Sec. 16.** Section 81-8,254, Reissue Revised Statutes of Nebraska, is
19 amended to read:

20 ~~81-8,254~~ (1) A person who willfully obstructs or hinders the proper
21 exercise of the Public Counsel's functions, or who willfully misleads or
22 attempts to mislead the Public Counsel's inquiries, shall be guilty of a
23 Class II misdemeanor. No employee of the State of Nebraska , who files a
24 complaint pursuant to the Office of Public Counsel Act sections ~~81-8,240~~
25 ~~to 81-8,254,~~ shall be subject to any penalties, sanctions, or
26 restrictions in connection with such employee's employment because of
27 such complaint.

28 (2) Consistent with the Nebraska Rules of Professional Conduct,
29 counsel for the administrative agency that is the subject of an
30 investigation by the office of Public Counsel shall not represent a
31 witness. A witness may request that agency counsel be present while being

1 questioned, but the administrative agency shall not require a witness to
2 make such a request. If such a request is made, the administrative agency
3 shall inform the witness that agency counsel does not represent the
4 witness.

5 **Sec. 17.** (1) Except as otherwise provided by law, any confidential
6 information or confidential records shared with the office of Public
7 Counsel shall remain confidential and shall not be shared by an employee
8 of the office with any person who is not an employee of the office,
9 including any member of the Legislative Oversight Committee.

10 (2) The office of Public Counsel and the Division of Legislative
11 Oversight may share confidential information as necessary to carry out
12 the responsibilities of such office and division. Such sharing of
13 confidential information shall include, but not be limited to, the
14 sharing of confidential information when necessary to refer complaints
15 between such office and division and to assist in investigations and the
16 resolution of complaints. The office of Public Counsel and the Division
17 of Legislative Oversight, at the discretion of the Public Counsel and the
18 Director of Legislative Oversight, may coordinate to work jointly on
19 complaints and investigations in circumstances of overlapping
20 jurisdiction.

21 (3) If any employee of the office of Public Counsel knowingly
22 divulges or makes known, in any manner not permitted by law, confidential
23 information or confidential records, it shall be grounds for dismissal.

24 **Sec. 18.** (1) At the request of the Public Counsel, the Executive
25 Board of the Legislative Council, by a majority vote, may issue subpoenas
26 in connection with a specific inquiry or investigation undertaken
27 pursuant to the Office of Public Counsel Act to compel the production of
28 records and information and sworn testimony or other evidence deemed
29 relevant to such inquiry or investigation. The executive board shall vote
30 to determine whether to issue a subpoena within ten days after receipt of
31 the request.

1 (2) When authorized to issue subpoenas under this section, the
2 executive board may require any person to provide the records or
3 information requested within thirty days after the request except as
4 provided for in the subpoena or to appear at a hearing on the date set in
5 the subpoena.

6 (3) Litigation to compel or quash compliance with the authority
7 exercised pursuant to this section shall be advanced on the trial docket
8 and heard and decided by the court as quickly as possible. The court
9 shall issue its decision no later than twenty days after the filing of
10 the application or petition or a motion to quash, whichever is filed
11 first. Either party may appeal to the Court of Appeals within ten days
12 after a decision is rendered.

13 (4) The district court of Lancaster County has jurisdiction over all
14 litigation arising under this section. In all such litigation, the
15 executive board shall provide for legal representation for the office.

16 (5) In case of disobedience on the part of any person to comply with
17 any subpoena issued pursuant to this section, the executive board shall
18 vote on whether to find the person in contempt or to find that the
19 failure to comply was not willful.

20 (6) If the executive board finds a person in contempt as provided in
21 subsection (5) of this section, the executive board may, by application
22 or petition to the district court of Lancaster County, request that the
23 court compel obedience by proceedings for contempt as in the case of
24 disobedience of the requirements of a subpoena issued from such court.
25 The application or petition shall be filed by the chairperson of the
26 executive board.

27 (7) A person required to provide information under this section
28 shall be paid the same fees and travel allowances and shall be accorded
29 the same privileges and immunities as are extended to witnesses in the
30 district courts of this state and shall also be entitled to have counsel
31 present while being questioned. Any fees associated with counsel present

1 under this section shall not be the responsibility of the office of
2 Public Counsel or the Legislative Council.

3 **Sec. 19.** The Legislature finds and declares that:

4 (1) It is within the inherent power of the Legislature to secure
5 needed information in order to legislate, hold hearings, and conduct
6 investigations of matters related to the operation of state government.
7 This power of inquiry is broad and indispensable;

8 (2) Article IV, section 23, of the Constitution of Nebraska
9 specifically provides that the Legislature may at any time require that
10 information be provided to it from the officers and employees of state
11 agencies relating to the condition, management, and expenses of their
12 respective offices; and

13 (3) In order to assist the members of the Legislature in exercising
14 their inherent, constitutional, and statutory authority to conduct
15 investigations and provide oversight of the various agencies, branches,
16 departments, boards, bureaus, commissions, councils, subunits, and
17 committees of Nebraska state government, and to assist in the development
18 of legislation to improve and enhance the operation of state government,
19 the Legislature created the Division of Legislative Oversight.

20 **Sec. 20.** (1) The Division of Legislative Oversight is established
21 within the Legislative Council. The division shall be responsible for
22 conducting assessments, investigations, audits, inspections, and other
23 reviews of Nebraska state government to ensure the Legislature is able to
24 carry out its responsibilities to secure needed information to legislate
25 and appropriate. The Director of Legislative Oversight shall be
26 responsible for hiring, firing, and supervising division staff.

27 (2) Notwithstanding any other provision of law, the Division of
28 Legislative Oversight shall have access to confidential information and
29 confidential records necessary to carry out its responsibilities.

30 (3) Except as otherwise provided by law, any confidential
31 information or confidential records shared with the Division of

1 Legislative Oversight shall remain confidential and shall not be shared
2 by an employee of the division with any person who is not an employee of
3 the division, including any member of the Legislative Oversight
4 Committee.

5 (4) The Division of Legislative Oversight and the office of Public
6 Counsel may share confidential information as necessary to carry out the
7 responsibilities of such division and office. Such sharing of
8 confidential information shall include, but not be limited to, the
9 sharing of confidential information when necessary to refer complaints
10 between such division and office and to assist in investigations and the
11 resolution of complaints. The Division of Legislative Oversight and the
12 office of Public Counsel, at the discretion of the Director of
13 Legislative Oversight and the Public Counsel, may coordinate to work
14 jointly on complaints and investigations in circumstances of overlapping
15 jurisdiction.

16 (5) If any employee of the Division of Legislative Oversight
17 knowingly divulges or makes known, in any manner not permitted by law,
18 confidential information or confidential records, it shall be grounds for
19 dismissal.

20 **Sec. 21.** (1) The Director of Legislative Oversight shall be
21 appointed by the Legislature, with the vote of two-thirds of the members
22 required for approval of such appointment, from nominations submitted by
23 the Legislative Oversight Committee. The director shall serve for a term
24 of six years, unless removed by a two-thirds vote of the members of the
25 Legislature or, if the Legislature is not in session, by a two-thirds
26 vote of the members of the Legislative Council. If the office of Director
27 of Legislative Oversight becomes vacant for any reason, the chairperson
28 of the Executive Board of the Legislative Council shall appoint an acting
29 director until a successor Director of Legislative Oversight is
30 appointed. The director shall be selected without regard to political
31 affiliation and on the basis of integrity, capability for strong

leadership, commitment to government oversight, and demonstrated ability in accounting, auditing, financial analysis, law, management analysis, public administration, investigation, or criminal justice administration or other closely related fields. No person may serve as director within two years after the last day on which such person served as a member of the Legislature or while such person is a candidate for or holds any other state office. The director shall receive such salary as is set by the Executive Board of the Legislative Council.

(2) The Director of Legislative Oversight shall:

(a) Develop key performance indicators, with the approval of the Legislative Oversight Committee, for both short-term and long-term legislative oversight of state agencies and programs;

(b) Make recommendations to the Legislative Oversight Committee and the Executive Board of the Legislative Council regarding the duties, responsibilities, and activities of the division and division staff;

(c) Ensure that all assessments, investigations, audits, inspections, and other reviews are conducted by the division without regard to special or partisan interest and in accordance with relevant standards or guidelines; and

(d) Carry out the director's duties under the Legislative Performance Audit Act, the Office of Inspector General of Nebraska Child Welfare Act, and the Office of Inspector General of the Nebraska Correctional System Act.

Sec. 22. (1) The Legislative Oversight Committee is hereby established as a special legislative committee to exercise the authority and perform the duties provided for in the Legislative Performance Audit Act, the Office of Inspector General of Nebraska Child Welfare Act, and the Office of Inspector General of the Nebraska Correctional System Act. The committee shall be composed of the Speaker of the Legislature, the chairperson of the Executive Board of the Legislative Council, the chairperson of the Appropriations Committee of the Legislature, the

1 chairperson of the Judiciary Committee of the Legislature, the
2 chairperson of the Health and Human Services Committee of the
3 Legislature, and four other members of the Legislature to be chosen by
4 the Executive Board of the Legislature Council. The executive board shall
5 ensure that the Legislative Oversight Committee includes adequate
6 geographic representation. The chairperson and vice-chairperson of the
7 Legislative Oversight Committee shall be elected by a majority vote of
8 the committee.

9 (2) For purposes of tax incentive performance audits authorized
10 under the Legislative Performance Audit Act, the committee shall also
11 include as nonvoting members the chairperson of the Revenue Committee of
12 the Legislature or his or her designee and one other member of the
13 Revenue Committee, as selected by the Revenue Committee.

14 (3) The Legislative Oversight Committee shall be subject to all
15 rules prescribed by the Legislature. The committee shall be reconstituted
16 at the beginning of each Legislature and shall meet as needed.

17 **Sec. 23.** The Legislative Oversight Committee shall:

18 (1) Oversee all aspects of the Division of Legislative Oversight
19 without regard to special or partisan interests and in accordance with
20 relevant standards and guidelines;

21 (2) Direct the work of the division through the approval of annual
22 work plans and by ensuring that such work is carried out in accordance
23 with relevant statutes;

24 (3) Approve key performance indicators for the division;

25 (4) Receive quarterly briefings from the Director of Legislative
26 Oversight or other division staff; and

27 (5) Carry out the committee's duties under the Legislative
28 Performance Audit Act, the Office of Inspector General of Nebraska Child
29 Welfare Act, and the Office of Inspector General of the Nebraska
30 Correctional System Act.

31 **Sec. 24.** Section 43-4301, Revised Statutes Cumulative Supplement,

1 2024, is amended to read:

2 ~~43-4301~~ Sections 24 to 44 of this act ~~43-4301 to 43-4332~~ shall be
3 known and may be cited as the Office of Inspector General of Nebraska
4 Child Welfare Act.

5 **Sec. 25.** The Legislature finds and declares that:

6 (1) It is within the inherent power of the Legislature to secure
7 needed information in order to legislate, hold hearings, and conduct
8 investigations of matters related to the operation of state government.
9 This power of inquiry is broad and indispensable;

10 (2) Article IV, section 23, of the Constitution of Nebraska
11 specifically provides that the Legislature may at any time require that
12 information be provided to it from the officers and employees of state
13 agencies relating to the condition, management, and expenses of their
14 respective offices; and

15 (3) In order to establish a full-time program of investigation and
16 oversight of the Nebraska child welfare and juvenile justice systems and
17 assist in the development of legislation related to such systems, the
18 Legislature created the office of Inspector General of Nebraska Child
19 Welfare.

20 **Sec. 26.** Section 43-4302, Reissue Revised Statutes of Nebraska, is
21 amended to read:

22 ~~43-4302~~ (1) It is the intent of the Legislature that the Office of
23 Inspector General of Nebraska Child Welfare to:

24 ~~(a) Establish a full-time program of investigation and performance~~
25 ~~review to provide increased accountability and oversight of the Nebraska~~
26 ~~child welfare system;~~

27 (a) (b) Assist in improving operations of the Nebraska child welfare
28 system;

29 (b) (c) Provide an independent form of inquiry for concerns
30 regarding the actions of individuals and agencies responsible for the
31 care and protection of children and youth in the Nebraska child welfare

1 system. Confusion of the roles, responsibilities, and accountability
2 structures between individuals, private contractors, branches of
3 government, and agencies in the current system make it difficult for the
4 Legislature to monitor and oversee the Nebraska child welfare system; and
5 (c) ~~(d)~~ Provide a process for investigation and review to determine
6 if individual complaints and issues of investigation and inquiry reveal a
7 problem in the child welfare system, not just individual cases, that
8 necessitates legislative action for improved policies and restructuring
9 of the child welfare system.

10 (2) It is not the intent of the Legislature in enacting the Office
11 of Inspector General of Nebraska Child Welfare Act to interfere with the
12 duties of the Legislative Auditor or the Legislative Fiscal Analyst or to
13 interfere with the statutorily defined investigative responsibilities or
14 prerogatives of any officer, agency, board, bureau, commission,
15 association, society, or institution of the executive or judicial branch
16 of state government, except that the act does not preclude an inquiry on
17 the sole basis that another agency has the same responsibility. The act
18 shall not be construed to interfere with or supplant the responsibilities
19 or prerogatives of the Governor to investigate, monitor, and report on
20 the activities of the agencies, boards, bureaus, commissions,
21 associations, societies, and institutions of the executive branch under
22 the Governor's ~~his or her~~ administrative direction.

23 **Sec. 27.** Section 43-4303, Reissue Revised Statutes of Nebraska, is
24 amended to read:

25 ~~43-4303~~ For purposes of the Office of Inspector General of Nebraska
26 Child Welfare Act; ~~the definitions found in sections 43-4304 to 43-4316~~
27 ~~apply.~~

28 (1) Administrator means a person charged with administration of a
29 program, an office, or a division of the department or administration of
30 a private agency or licensed child care facility or the executive
31 director;

1 (2) Child welfare system means public and private agencies and
2 parties that provide or effect services or supervision to system-involved
3 children and their families;

4 (3) Commission means the Nebraska Commission on Law Enforcement and
5 Criminal Justice;

6 (4) Department means the Department of Health and Human Services;

7 (5) Director means the chief executive officer of the department;

8 (6) Executive director means the executive director of the
9 commission;

10 (7) Inspector General means the Inspector General of Nebraska Child
11 Welfare appointed under section 28 of this act;

12 (8) Juvenile services division means the Juvenile Services Division
13 of the Office of Probation Administration;

14 (9) Licensed child care facility means a facility or program
15 licensed under the Child Care Licensing Act, the Children's Residential
16 Facilities and Placing Licensure Act, or sections 71-1901 to 71-1906.01;

17 (10) Malfeasance means a wrongful act that the actor has no legal
18 right to do or any wrongful conduct that affects, interrupts, or
19 interferes with performance of an official duty;

20 (11) Management means supervision of subordinate employees;

21 (12) Misfeasance means the improper performance of some act that a
22 person may lawfully do;

23 (13) Obstruction means hindering an investigation, preventing an
24 investigation from progressing, stopping or delaying the progress of an
25 investigation, or making the progress of an investigation difficult or
26 slow;

27 (14) Office means the office of Inspector General of Nebraska Child
28 Welfare and includes the Inspector General and other employees of the
29 office;

30 (15) Private agency means a child welfare agency that contracts with
31 the department or the Office of Probation Administration or contracts to

1 provide services to another child welfare agency that contracts with the
2 department or the Office of Probation Administration;

3 (16) Record means any recording, in written, audio, electronic
4 transmission, or computer storage form, including, but not limited to, a
5 draft, memorandum, note, report, computer printout, notation, or message,
6 and includes, but is not limited to, medical records, mental health
7 records, case files, clinical records, financial records, and
8 administrative records. Such term does not include any such materials
9 used exclusively as part of a judge's deliberative process; and

10 (17) Responsible individual means a foster parent, a relative
11 provider of foster care, or an employee of the department, the juvenile
12 services division, the commission, a foster home, a private agency, a
13 licensed child care facility, or another provider of child welfare
14 programs and services responsible for the care or custody of records,
15 documents, and files.

16 **Sec. 28.** Section 43-4317, Reissue Revised Statutes of Nebraska, is
17 amended to read:

18 ~~43-4317~~ (1) The office of Inspector General of Nebraska Child
19 Welfare is created within the Division of Legislative Oversight ~~office of~~
20 ~~Public Counsel~~ for the purpose of conducting investigations, audits,
21 inspections, and other oversight ~~reviews~~ of the Nebraska child welfare
22 system for the Legislature. The Inspector General shall be appointed by
23 the Director of Legislative Oversight ~~Public Counsel~~ with approval from
24 the chairperson of the Executive Board of the Legislative Council, the
25 chairperson of the Legislative Oversight Committee, and the chairperson
26 of the Health and Human Services Committee of the Legislature.

27 (2) The Inspector General shall be appointed for a term of five
28 years and may be reappointed. The Inspector General shall be selected
29 without regard to political affiliation and on the basis of integrity,
30 capability for strong leadership, and demonstrated ability in accounting,
31 auditing, financial analysis, law, management analysis, public

1 administration, investigation, or criminal justice administration or
2 other closely related fields. No former or current executive or manager
3 of the department may be appointed Inspector General within five years
4 after such former or current executive's or manager's period of service
5 with the department. Not later than two years after the date of
6 appointment, the Inspector General shall obtain certification as a
7 Certified Inspector General by the Association of Inspectors General, its
8 successor, or another nationally recognized organization that provides
9 and sponsors educational programs and establishes professional
10 qualifications, certifications, and licensing for inspectors general.
11 During the Inspector General's ~~his or her~~ employment, the Inspector
12 General shall not be actively involved in partisan affairs.

13 (3) The Inspector General shall employ such investigators and
14 support staff as the Inspector General ~~he or she~~ deems necessary to carry
15 out the duties of the office within the amount available by appropriation
16 through the Division of Legislative Oversight ~~office of Public Counsel~~
17 for the office of Inspector General of Nebraska Child Welfare. The
18 Inspector General shall be subject to the control and supervision of the
19 Director of Legislative Oversight ~~Public Counsel~~, except that removal of
20 the Inspector General shall require approval of the chairperson of the
21 Legislative Oversight Committee ~~Executive Board of the Legislative~~
22 ~~Council and the chairperson of the Health and Human Services Committee of~~
23 ~~the Legislature. The Inspector General may also be removed by a two-~~
24 thirds majority vote of the Legislative Oversight Committee.

25 **Sec. 29.** Section 43-4318, Revised Statutes Cumulative Supplement,
26 2024, is amended to read:

27 ~~43-4318~~ (1) The office shall investigate:

28 (a) Allegations or incidents of possible misconduct, misfeasance,
29 malfeasance, or violations of statutes or of rules or regulations of:

30 (i) The department by an employee of or person under contract with
31 the department, a private agency, a licensed child care facility, a

1 foster parent, or any other provider of child welfare services or which
2 may provide a basis for discipline pursuant to the Uniform Credentialing
3 Act;

4 (ii) Subject to subsection (5) of this section, the juvenile
5 services division by an employee of or person under contract with the
6 juvenile services division, a private agency, a licensed facility, a
7 foster parent, or any other provider of juvenile justice services;

8 (iii) The commission by an employee of or person under contract with
9 the commission related to programs and services supported by the Nebraska
10 County Juvenile Services Plan Act, the Community-based Juvenile Services
11 Aid Program, juvenile pretrial diversion programs, or inspections of
12 juvenile facilities; and

13 (iv) A juvenile detention facility and staff secure juvenile
14 facility by an employee of or person under contract with such facilities;

15 (b) Death or serious injury in foster homes, private agencies, child
16 care facilities, juvenile detention facilities, staff secure juvenile
17 facilities, and other programs and facilities licensed by or under
18 contract with the department or the juvenile services division when the
19 office, upon review, determines the death or serious injury did not occur
20 by chance; ~~and~~

21 (c) Death or serious injury in any case in which services are
22 provided by the department or the juvenile services division to a child
23 or the child's his or her parents when the office upon review determines
24 that the death or serious injury did not occur by chance;

25 (d) Death or serious injury in or any case involving an
26 investigation under the Child Protection and Family Safety Act if the
27 investigation took place within the twelve months prior to the death or
28 serious injury , which case has been open for one year or less and if the
29 office upon review determines the death or serious injury did not occur
30 by chance; and -

31 (e) Any other matter as provided in the annual work plans or key

1 performance indicators approved by the Legislative Oversight Committee
2 pursuant to section 23 of this act.

3 (2) The department, the juvenile services division, each juvenile
4 detention facility, and each staff secure juvenile facility shall report
5 to the office as soon as reasonably possible:

6 (a) All ~~all~~ cases of death or serious injury:

7 (i) Of ~~of~~ a child in a foster home, private agency, child care
8 facility or program, or other program or facility licensed by the
9 department or inspected through the commission;

10 (ii) In any case in which services are provided to a child or the
11 child's parents; and

12 (iii) Involving an investigation under the Child Protection and
13 Family Safety Act if the investigation took place within the twelve
14 months prior to the death or serious injury and upon review determines
15 the death or serious injury did not occur by chance; and

16 ~~(b) All to the Inspector General as soon as reasonably possible~~
17 ~~after the department or the Office of Probation Administration learns of~~
18 ~~such death or serious injury and (b) all~~ allegations of sexual abuse of a
19 state ward, a juvenile on probation, a juvenile in a detention facility,
20 and a juvenile in a residential child-caring agency. For purposes of this
21 subsection, serious injury means an injury or illness caused by suspected
22 abuse, neglect, or maltreatment which leaves a child in critical or
23 serious condition.

24 (3)(a) The Office of Juvenile Services shall report to the office of
25 Inspector General of Nebraska Child Welfare as soon as reasonably
26 possible after any of the following instances occur at a youth
27 rehabilitation and treatment center:

28 (i) An assault;

29 (ii) An escape or elopement;

30 (iii) An attempted suicide;

31 (iv) Self-harm by a juvenile;

1 (v) Property damage not caused by normal wear and tear;
2 (vi) The use of mechanical restraints on a juvenile;
3 (vii) A significant medical event suffered by a juvenile; and
4 (viii) Internally substantiated violations of 34 U.S.C. 30301 et
5 seq.

6 (b) The Office of Juvenile Services and the office of Inspector
7 General of Nebraska Child Welfare shall, if requested by either party,
8 work in collaboration to clarify the specific parameters to comply with
9 subdivision (3)(a) of this section.

10 (4) The department shall notify the office of Inspector General of
11 Nebraska Child Welfare of any leadership changes within the Office of
12 Juvenile Services and the youth rehabilitation and treatment centers.

13 (5) With respect to any investigation conducted by the Inspector
14 General pursuant to subdivision (1)(a) of this section that involves
15 possible misconduct by an employee of the juvenile services division, the
16 Inspector General shall immediately notify the probation administrator
17 and provide the information pertaining to potential personnel matters to
18 the Office of Probation Administration.

19 (6) Any investigation conducted by the Inspector General shall be
20 independent of and separate from an investigation pursuant to the Child
21 Protection and Family Safety Act. The Inspector General and his or her
22 staff are subject to the reporting requirements of the Child Protection
23 and Family Safety Act.

24 (7) The department shall notify the Inspector General as soon as
25 practicable when a criminal investigation involving a death or serious
26 injury required to be reported to the office under subdivision (2)(a) of
27 this section has commenced and when such criminal investigation has
28 concluded.

29 (8) ~~(7)~~ Notwithstanding the fact that a criminal investigation, a
30 criminal prosecution, or both are in progress, all law enforcement
31 agencies and prosecuting attorneys may ~~shall~~ cooperate with any

1 investigation conducted by the Inspector General and may ~~shall~~,
2 ~~immediately~~ upon request by the Inspector General, provide the Inspector
3 General with copies of all law enforcement reports which are relevant to
4 the Inspector General's investigation. All law enforcement reports which
5 have been provided to the Inspector General pursuant to this section are
6 not public records for purposes of sections 84-712 to 84-712.09 and shall
7 not be subject to discovery by any other person or entity. Except to the
8 extent that disclosure of information is otherwise provided for in the
9 Office of Inspector General of Nebraska Child Welfare Act, the Inspector
10 General shall maintain the confidentiality of all law enforcement reports
11 received pursuant to its request under this section. Law enforcement
12 agencies and prosecuting attorneys may ~~shall~~, when requested by the
13 Inspector General, collaborate with the Inspector General regarding all
14 other information relevant to the Inspector General's investigation. The
15 ~~If the Inspector General in conjunction with the Public Counsel~~
16 ~~determines it appropriate, the Inspector General~~ shall ~~may~~, when
17 requested to do so by a law enforcement agency or prosecuting attorney,
18 suspend an investigation by the office until a criminal investigation or
19 prosecution is completed or has proceeded to a point that, in the
20 judgment of the Inspector General, reinstatement of the Inspector
21 General's investigation will not impede or infringe upon the criminal
22 investigation or prosecution. Under no circumstance shall the Inspector
23 General interview any minor who has already been interviewed by a law
24 enforcement agency, personnel of the Division of Children and Family
25 Services of the department, or staff of a child advocacy center in
26 connection with a relevant ongoing investigation of a law enforcement
27 agency.

28 (9) Consistent with the Nebraska Rules of Professional Conduct,
29 counsel for the entity under investigation shall not represent a witness.
30 A witness may request that counsel for the entity under investigation be
31 present while being questioned, but such entity shall not require a

1 witness to make such a request. If such a request is made, the entity
2 under investigation shall inform the witness that such entity's counsel
3 does not represent the witness. For purposes of this subsection, entity
4 under investigation means the entity that is the subject of an
5 investigation under the Office of Inspector General of Nebraska Child
6 Welfare Act and includes the department, the juvenile services division,
7 the commission, a private agency, a licensed child care facility, a
8 juvenile detention facility, a staff secure juvenile facility, or another
9 provider of child welfare services or juvenile justice services.

10 (10) The office may conduct audits, inspections, investigations, and
11 other oversight as necessary to perform the duties of the office and to
12 carry out the purposes of the Office of Inspector General of Nebraska
13 Child Welfare Act.

14 (11) For purposes of this section, serious injury means an injury or
15 illness caused by suspected abuse, neglect, maltreatment, self-harm, or
16 assault which requires urgent medical treatment.

17 **Sec. 30.** Section 43-4320, Reissue Revised Statutes of Nebraska, is
18 amended to read:

19 ~~43-4320~~ (1) Complaints to the office may be made in writing. The
20 office shall also maintain a toll-free telephone line for complaints. A
21 complaint shall be evaluated to determine if it alleges possible
22 misconduct, misfeasance, malfeasance, or violation of a statute or of
23 rules and regulations pursuant to section 29 of this act ~~43-4318~~. All
24 complaints shall be evaluated to determine whether a full investigation
25 is warranted.

26 (2) The office shall not conduct a full investigation of a complaint
27 unless:

28 (a) The complaint alleges misconduct, misfeasance, malfeasance, or
29 violation of a statute or of rules and regulations pursuant to section 29
30 of this act ~~43-4318~~;

31 (b) The complaint is against a person within the jurisdiction of the

1 office; and

2 (c) The allegations can be independently verified through
3 investigation.

4 (3) ~~After receipt of a complaint, the~~ The Inspector General shall
5 determine ~~within fourteen days after receipt of a complaint~~ whether the
6 office ~~it~~ will conduct a full investigation. A complaint alleging facts
7 which, if verified, would provide a basis for discipline under the
8 Uniform Credentialing Act shall be referred to the appropriate
9 credentialing board under the act.

10 (4) When a full investigation is opened on a private agency that
11 contracts with the Office of Probation Administration, the Inspector
12 General shall give notice of such investigation to the Office of
13 Probation Administration.

14 **Sec. 31.** Section 43-4321, Reissue Revised Statutes of Nebraska, is
15 amended to read:

16 ~~43-4321~~ (1) The office shall have access to all information and
17 personnel necessary to perform the duties of the office and to carry out
18 the Office of Inspector General of Nebraska Child Welfare Act.

19 (2) All employees of the department, the juvenile services division
20 as directed by the juvenile court or the Office of Probation
21 Administration, or the commission, all foster parents, and all owners,
22 operators, managers, supervisors, and employees of private agencies,
23 licensed child care facilities, juvenile detention facilities, staff
24 secure juvenile facilities, and other providers of child welfare services
25 or juvenile justice services shall cooperate with the office. Cooperation
26 includes, but is not limited to, the following:

27 (a) ~~(1)~~ Provision of full access to and production of records and
28 information. Providing access to and producing records and information
29 for the office is not a violation of confidentiality provisions under any
30 law, statute, rule, or regulation if done in good faith for purposes of
31 an investigation under the Office of Inspector General of Nebraska Child

1 Welfare Act;

2 ~~(b) (2)~~ Fair and honest disclosure of records and information
3 reasonably requested by the office pursuant to in the course of an
4 investigation under the act;

5 ~~(c) (3)~~ Encouraging employees to fully comply with reasonable
6 requests of the office pursuant to in the course of an investigation
7 under the act;

8 ~~(d) (4)~~ Prohibition of retaliation by owners, operators, or managers
9 against employees for providing records or information or filing or
10 otherwise making a complaint to the office;

11 ~~(e) (5)~~ Not requiring employees to gain supervisory approval prior
12 to filing a complaint with or providing records or information to the
13 office;

14 ~~(f)~~ Not requiring employees to report filing a complaint with or
15 providing records or information to the office; and

16 ~~(g)~~ Not requiring employees to request that counsel for the employer
17 be present while being questioned in the course of an investigation.

18 ~~(6)~~ Provision of complete and truthful answers to questions posed by
19 the office in the course of an investigation; and

20 ~~(7)~~ Not willfully interfering with or obstructing the investigation.

21 **Sec. 32.** Section 43-4322, Reissue Revised Statutes of Nebraska, is
22 amended to read:

23 ~~43-4322~~ Failure to cooperate with an investigation by the office may
24 result in public disclosure of the failure to cooperate discipline or
25 other sanctions.

26 **Sec. 33.** Section 43-4323, Revised Statutes Cumulative Supplement,
27 2024, is amended to read:

28 ~~43-4323~~ (1) At the request of the Inspector General, and after
29 receiving prior approval by a majority vote of the Executive Board of the
30 Legislative Council, the Legislative Oversight Committee may issue
31 subpoenas in connection with a specific inquiry or investigation

1 undertaken pursuant to the Office of Inspector General of Nebraska Child
2 Welfare Act to compel the production of records and information and sworn
3 testimony or other evidence relevant to such inquiry or investigation.
4 The committee shall vote to determine whether to issue a subpoena within
5 ten days after receipt of the request.

6 (2) When authorized to issue subpoenas under this section, the
7 committee may require any employees of the department, the juvenile
8 services division, or the commission, any foster parents, or any owners,
9 operators, managers, supervisors, and employees of private agencies,
10 licensed child care facilities, juvenile detention facilities, staff
11 secure juvenile facilities, and other providers of child welfare services
12 or juvenile justice services to provide the records or information
13 requested within thirty days after the request, except as otherwise
14 provided for in the subpoena, or to appear at a hearing on the date set
15 in the subpoena.

16 (3) Litigation to compel or quash compliance with the authority
17 exercised pursuant to this section shall be advanced on the trial docket
18 and heard and decided by the court as quickly as possible. The court
19 shall issue its decision no later than twenty days after the filing of
20 the application or petition or a motion to quash, whichever is filed
21 first. Either party may appeal to the Court of Appeals within ten days
22 after a decision is rendered.

23 (4) The district court of Lancaster County has jurisdiction over all
24 litigation arising under this section. In all such litigation, the
25 executive board shall provide for legal representation for the committee.

26 (5) In case of disobedience on the part of any employees of the
27 department, the juvenile services division, or the commission, any foster
28 parents, or any owners, operators, managers, supervisors, and employees
29 of private agencies, licensed child care facilities, juvenile detention
30 facilities, staff secure juvenile facilities, and other providers of
31 child welfare services or juvenile justice services to comply with any

1 subpoena issued pursuant to this section, the committee shall vote on
2 whether to find the person in contempt or to find that the failure to
3 comply was not willful.

4 (6) If the committee finds a person in contempt as provided in
5 subsection (5) of this section, the committee may, by application or
6 petition to the district court of Lancaster County, request that the
7 court compel obedience by proceedings for contempt as in the case of
8 disobedience of the requirements of a subpoena issued from such court.
9 The application or petition shall be filed by the chairperson of the
10 committee.

11 ~~(7) The Inspector General may issue a subpoena, enforceable by~~
12 ~~action in an appropriate court, to compel any person to appear, give~~
13 ~~sworn testimony, or produce documentary or other evidence deemed relevant~~
14 ~~to a matter under his or her inquiry. A person thus required to provide~~
15 information under this section shall be paid the same fees and travel
16 allowances and shall be accorded the same privileges and immunities as
17 are extended to witnesses in the district courts of this state and shall
18 also be entitled to have counsel present while being questioned. Any fees
19 associated with counsel present under this section shall not be the
20 responsibility of the office or the Legislative Council of Inspector
21 General of Nebraska Child Welfare.

22 **Sec. 34.** Section 43-4324, Reissue Revised Statutes of Nebraska, is
23 amended to read:

24 43-4324 (1) A full investigation conducted by the office shall
25 consist of (a) access to, and retrieval of all, relevant records through
26 compliance with a request of the office, by voluntary production, or by
27 subpoena, (b) review of all relevant records, and (c) interviews of all
28 relevant persons ~~In conducting investigations, the office shall access~~
29 ~~all relevant records through subpoena, compliance with a request of the~~
30 ~~office, and voluntary production.~~

31 (2) The office may request or request the issuance of a subpoena for

1 any record necessary for the investigation from the department, the
2 juvenile services division as permitted by law, the commission, a foster
3 parent, a licensed child care facility, a juvenile detention facility, a
4 staff secure juvenile facility, or a private agency that is pertinent to
5 an investigation. All case files, licensing files, medical records,
6 financial and administrative records, and records required to be
7 maintained pursuant to applicable licensing rules shall be produced for
8 review by the office in the course of an investigation.

9 (3) (2) Compliance with a request of the office includes:

10 (a) Production of all records requested;

11 (b) A diligent search to ensure that all appropriate records are
12 included; ~~and~~

13 (c) A continuing obligation to immediately forward to the office any
14 relevant records received, located, or generated after the date of the
15 request; ~~-~~

16 (d) Provision of complete and truthful answers to questions posed by
17 the office in the course of an investigation; and

18 (e) Not willfully interfering with or obstructing an investigation.

19 (4) (3) The office shall seek access in a manner that respects the
20 dignity and human rights of all persons involved, maintains the integrity
21 of the investigation, and does not unnecessarily disrupt child welfare
22 programs or services. When advance notice to a foster parent or to an
23 administrator or his or her designee is not provided, the office
24 investigator shall, upon arrival at the departmental or division office,
25 ~~bureau, or division,~~ the private agency, the licensed child care
26 facility, the juvenile detention facility, the staff secure juvenile
27 facility, or the location of another provider of child welfare services,
28 request that an onsite employee notify the administrator or his or her
29 designee of the investigator's arrival.

30 (5) (4) When required by circumstances of an audit, inspection,
31 investigation, or other oversight require, the office may make an

1 unannounced visit to a foster home, a departmental or division office,
2 ~~bureau, or division~~, a licensed child care facility, a juvenile detention
3 facility, a staff secure juvenile facility, a youth rehabilitation and
4 treatment center, a private agency, or another provider to ~~request~~
5 ~~records relevant to an investigation.~~ The office may request relevant
6 records during such visit.

7 (6) (5) A responsible individual or an administrator may be asked to
8 sign a statement of record integrity and security when a record is
9 secured by request as the result of a visit by the office, stating:

10 (a) That the responsible individual or the administrator has made a
11 diligent search of the departmental or division office, ~~bureau, division,~~
12 private agency, licensed child care facility, juvenile detention
13 facility, staff secure juvenile facility, or other provider's location to
14 determine that all appropriate records in existence at the time of the
15 request were produced;

16 (b) That the responsible individual or the administrator agrees to
17 immediately forward to the office any relevant records received, located,
18 or generated after the visit;

19 (c) The persons who have had access to the records since they were
20 secured; and

21 (d) Whether, to the best of the knowledge of the responsible
22 individual or the administrator, any records were removed from or added
23 to the record since it was secured.

24 (7) (6) The office shall permit a responsible individual, an
25 administrator, or an employee of a departmental or division office,
26 ~~bureau, or division~~, a private agency, a licensed child care facility, a
27 juvenile detention facility, a staff secure juvenile facility, or another
28 provider to make photocopies of the original records within a reasonable
29 time in the presence of the office for purposes of creating a working
30 record in a manner that assures confidentiality.

31 (8) (7) The office shall present to the responsible individual or

1 the administrator or other employee of the departmental or division
2 office, ~~bureau, or division,~~ private agency, licensed child care
3 facility, juvenile detention facility, staff secure juvenile facility, or
4 other service provider a copy of the request, stating the date and the
5 titles of the records received.

6 (9) ~~(8)~~ If an original record is provided during an investigation,
7 the office shall return the original record as soon as practical but no
8 later than ten business ~~working~~ days after the date of the compliance
9 request.

10 ~~(9) All investigations conducted by the office shall be conducted in~~
11 ~~a manner designed to ensure the preservation of evidence for possible use~~
12 ~~in a criminal prosecution.~~

13 **Sec. 35.** Section 43-4325, Revised Statutes Cumulative Supplement,
14 2024, is amended to read:

15 ~~43-4325~~ (1) Reports of investigations conducted by the office shall
16 not be distributed beyond the entity that is the subject of the report
17 without the consent of the Inspector General.

18 (2) Except when a report is provided to a guardian ad litem or an
19 attorney in the juvenile court pursuant to subsection (2) of section 37
20 of this act ~~43-4327~~, the office shall redact confidential information
21 before distributing a report of an investigation.

22 (3) The office may disclose confidential information to the
23 chairperson of the Legislative Oversight Committee at the chairperson's
24 request. The office may also disclose confidential information to the
25 chairperson of the Legislative Oversight Committee, the chairperson of
26 the Executive Board of the Legislative Council, the chairperson of the
27 Health and Human Services Committee of the Legislature, or the
28 chairperson of the Judiciary Committee of the Legislature when such
29 disclosure is, in the judgment of the Director of Legislative Oversight
30 Public Counsel, appropriate ~~desirable~~ to keep the Legislature chairperson
31 informed of important events, issues, and developments in the Nebraska

1 child welfare system.

2 (4) The office may also disclose such confidential information to
3 the Legislative Oversight Committee when such disclosure is, in the
4 judgment of the chairperson of the Legislative Oversight Committee,
5 appropriate to keep the Legislature informed of important events, issues,
6 and developments in the Nebraska child welfare system.

7 (5)(a) {3}(a) A summarized final report based on an investigation
8 may be publicly released in order to bring awareness to systemic issues.

9 (b) Such report shall be released only:

10 (i) After a disclosure is made to the ~~appropriate~~ chairperson of the
11 Legislative Oversight Committee ~~or chairpersons~~ pursuant to subsection
12 (3) {2} of this section; and

13 (ii) If a determination is made by the Inspector General with the
14 ~~appropriate~~ chairperson of the Legislative Oversight Committee that doing
15 so would be in the best interest of the public.

16 (c) If there is disagreement about whether releasing the report
17 would be in the best interest of the public, the chairperson of the
18 Executive Board of the Legislative Council shall ~~may be asked to~~ make the
19 final decision.

20 (d) The Legislative Oversight Committee shall be notified prior to a
21 report of an investigation being publicly released under this section.

22 (6) {4} Records and documents, regardless of physical form, that are
23 obtained or produced by the office in the course of an investigation are
24 not public records for purposes of sections 84-712 to 84-712.09. Reports
25 of investigations conducted by the office are not public records for
26 purposes of sections 84-712 to 84-712.09.

27 (7) {5} The office may withhold the identity of sources of
28 information to protect from retaliation any person who files a complaint
29 or provides information in good faith pursuant to the Office of Inspector
30 General of Nebraska Child Welfare Act.

31 **Sec. 36.** Section 43-4326, Reissue Revised Statutes of Nebraska, is

1 amended to read:

2 ~~43-4326~~ (1) The department shall provide the Director of Legislative
3 Oversight Public Counsel and the office Inspector General with direct
4 ~~computer~~ access to ~~all computerized~~ records, reports, and documents
5 maintained by the department in connection with administration of the
6 Nebraska child welfare system.

7 (2) The commission shall provide the office Inspector General with
8 ~~direct computer~~ access to ~~all computerized~~ records, reports, and
9 documents maintained in connection with administration of juvenile
10 justice services.

11 (3) The juvenile services division, as directed by the juvenile
12 court or the Office of Probation Administration, shall provide the office
13 ~~Inspector General~~ with ~~direct computer~~ access to ~~all computerized~~
14 records, reports, and documents maintained by the juvenile services
15 division in connection with a specific case under investigation.

16 (4) Information shall be provided in the most efficient and timely
17 way, in a manner that is least burdensome to the department, commission,
18 or juvenile services division, and in a manner which maintains the
19 confidentiality of the information. This may include providing
20 information through secure electronic access to case files and secure
21 access to information maintained electronically in databases and case
22 management systems. The office, by and through the Executive Board of the
23 Legislative Council, may enter into information-sharing agreements with
24 the department, the commission, or the juvenile services division to
25 assist in the implementation of and compliance with the Office of
26 Inspector General of Nebraska Child Welfare Act.

27 (5)(a) The department, commission, or juvenile services division may
28 object to the production or disclosure of records, reports, and documents
29 in writing on the grounds that such records, reports, and documents are
30 legally privileged, identifying the specific grounds for such objection.
31 Following such objection, the office and the department, commission, or

1 juvenile services division may negotiate terms of production or
2 disclosure pursuant to this section.

3 (b) In the event that satisfactory terms of production or disclosure
4 cannot be reached between the office and the department, commission, or
5 juvenile services division, the office may request the issuance of a
6 subpoena pursuant to section 33 of this act.

7 **Sec. 37.** Section 43-4327, Revised Statutes Cumulative Supplement,
8 2024, is amended to read:

9 ~~43-4327~~ (1) The Inspector General's report of an investigation shall
10 be in writing ~~to the Public Counsel~~ and may ~~shall~~ contain recommendations
11 for systemic reform. ~~The report may recommend systemic reform or case-~~
12 ~~specific action, including a recommendation for discharge or discipline~~
13 ~~of employees or for sanctions against a foster parent, private agency,~~
14 ~~licensed child care facility, or other provider of child welfare services~~
15 ~~or juvenile justice services. All recommendations to pursue discipline~~
16 ~~shall be in writing and signed by the Inspector General. A report of an~~
17 ~~investigation shall be presented~~ to the Director of Legislative Oversight
18 and the chairperson of the Legislative Oversight Committee. The Inspector
19 General shall present the report of an investigation to the director, the
20 probation administrator, or the executive director within three business
21 fifteen ~~days~~ after the report is presented to the Director of Legislative
22 Oversight and the chairperson of the Legislative Oversight Committee
23 ~~Public Counsel.~~

24 (2) Any person receiving a report under this section shall not
25 further distribute the report or any confidential information contained
26 in the report beyond the entity that is the subject of the report. The
27 Inspector General, upon notifying the Director of Legislative Oversight
28 ~~Public Counsel~~ and the director, the probation administrator, or the
29 executive director, may distribute the report, to the extent that it is
30 relevant to a child's welfare, to the guardian ad litem and attorneys in
31 the juvenile court in which a case is pending involving the child or

1 family who is the subject of the report. The report shall not be
2 distributed beyond the parties except through the appropriate court
3 procedures to the judge.

4 (3) A report that identifies misconduct, misfeasance, malfeasance,
5 or violation of statute, rules, or regulations by an employee of the
6 department, the juvenile services division, the commission, a private
7 agency, a licensed child care facility, or another provider that is
8 relevant to providing appropriate supervision of an employee may be
9 shared with the employer of such employee. The employer shall ~~may~~ not
10 further distribute the report or any confidential information contained
11 in the report.

12 **Sec. 38.** Section 43-4328, Revised Statutes Cumulative Supplement,
13 2024, is amended to read:

14 ~~43-4328~~ (1) Within fifteen business days after a report is presented
15 to the director, the probation administrator, or the executive director
16 under section 37 of this act ~~43-4327~~, the director, probation
17 administrator, or executive director may ~~he or she shall~~ determine
18 whether to accept, reject, or request ~~in writing~~ modification of the
19 recommendations contained in the report. ~~Any~~ The written response shall
20 be in writing and may include corrections of factual errors. The
21 Inspector General, with input from the Director of Legislative Oversight
22 ~~Public Counsel~~, may consider any ~~the director's, probation~~
23 ~~administrator's, or executive director's~~ request for modifications but is
24 not obligated to accept such request. Such report shall become final (a)
25 upon the decision of the director, the probation administrator, or the
26 executive director to accept or reject the recommendations in the report,
27 (b) within fifteen business days after ~~or, if~~ the director, the probation
28 administrator, or the executive director requests modifications ~~, within~~
29 ~~fifteen days after such request~~ or after the Inspector General
30 incorporates such modifications, whichever occurs earlier, or (c) fifteen
31 days after the report is presented to the director, the probation

1 administrator, or the executive director if no response is received by
2 the Inspector General. If the Inspector General does not accept a
3 requested modification, the recommendation for which such modification
4 was requested shall be considered to be rejected by the director,
5 probation administrator, or executive director.

6 (2) After the recommendations have been accepted, rejected, or
7 modified, the report shall be presented to the foster parent, private
8 agency, licensed child care facility, or other provider of child welfare
9 services or juvenile justice services that is the subject of the report
10 and to persons involved in the implementation of the recommendations in
11 the report. Within fifteen business ~~thirty~~ days after receipt of the
12 report, the foster parent, private agency, licensed child care facility,
13 or other provider may submit a written response to the office to correct
14 any factual errors in the report and may ~~shall~~ determine whether to
15 accept, reject, or request in writing modification of the recommendations
16 contained in the report. The Inspector General, with input from the
17 Director of Legislative Oversight ~~Public Counsel~~, shall consider all
18 materials submitted under this subsection to determine whether a
19 corrected report shall be issued. If the Inspector General determines
20 that a corrected report is necessary, the corrected report shall be
21 issued within fifteen business days after receipt of the written
22 response.

23 (3) If the Inspector General does not issue a corrected report
24 pursuant to subsection (2) of this section, or if the corrected report
25 does not address all issues raised in the written response, the foster
26 parent, private agency, licensed child care facility, or other provider
27 may request that its written response, or portions of the response, be
28 appended to the report or corrected report.

29 (4) A report which raises issues related to credentialing under the
30 Uniform Credentialing Act shall be submitted to the appropriate
31 credentialing board under the act.

1 **Sec. 39.** Section 43-4329, Reissue Revised Statutes of Nebraska, is
2 amended to read:

3 ~~43-4329~~ No report or other work product of an investigation by the
4 Inspector General shall be reviewable in any court. Neither the Inspector
5 General nor any member of the Inspector General's ~~his or her~~ staff shall
6 be required to testify or produce evidence in any judicial or
7 administrative proceeding concerning matters within such person's ~~his or~~
8 ~~her~~ official cognizance except in a proceeding brought to enforce the
9 Office of Inspector General of Nebraska Child Welfare Act.

10 **Sec. 40.** Section 43-4330, Reissue Revised Statutes of Nebraska, is
11 amended to read:

12 ~~43-4330~~ The Office of Inspector General of Nebraska Child Welfare
13 Act does not require the Inspector General to investigate all complaints.
14 The Inspector General, with input from the Director of Legislative
15 Oversight ~~Public Counsel~~, shall prioritize and select investigations and
16 inquiries that further the intent of the act and assist in legislative
17 oversight of the Nebraska child welfare system and juvenile justice
18 system. If the Inspector General determines that the office ~~he or she~~
19 will not investigate a complaint, the Inspector General may recommend to
20 the parties alternative means of resolution of the issues in the
21 complaint.

22 **Sec. 41.** Section 43-4331, Revised Statutes Cumulative Supplement,
23 2024, is amended to read:

24 ~~43-4331~~ On or before September 15 of each year, the Inspector
25 General shall provide to ~~the Health and Human Services Committee of the~~
26 ~~Legislature, the Judiciary Committee of the Legislature, the Supreme~~
27 ~~Court, and the Governor~~ a report that includes a summary of reports and
28 investigations made under the Office of Inspector General of Nebraska
29 Child Welfare Act for the preceding year. The report to the Legislature
30 ~~summary provided to the committees shall be submitted provided~~
31 electronically and filed with the Clerk of the Legislature. The report

1 ~~summaries~~ shall detail recommendations and the status of implementation
2 of recommendations and may also include recommendations to the
3 Legislature committees regarding issues discovered through investigation,
4 audits, inspections, and reviews by the office that will (1) increase
5 accountability and legislative oversight of the Nebraska child welfare
6 system, (2) improve operations of the department, the juvenile services
7 division, the commission, and the Nebraska child welfare system, or (3)
8 deter and identify fraud, abuse, and illegal acts. The report Such
9 ~~summary~~ shall include summaries of alternative response cases under
10 alternative response implemented in accordance with sections 28-710.01,
11 28-712, and 28-712.01 reviewed by the Inspector General. The report
12 ~~summaries~~ shall not contain any confidential or identifying information
13 concerning the subjects of the reports and investigations.

14 **Sec. 42.** Section 43-4332, Revised Statutes Cumulative Supplement,
15 2024, is amended to read:

16 ~~43-4332~~ Any person who has authority to recommend, approve, direct,
17 or otherwise take or affect personnel action shall not, with respect to
18 such authority:

19 (1) Take personnel action against an employee because of the
20 disclosure of information by the employee to the office which the
21 employee reasonably believes evidences wrongdoing under the Office of
22 Inspector General of Nebraska Child Welfare Act;

23 (2) Take personnel action against an employee as a reprisal for the
24 submission of an allegation of wrongdoing under the act to the office by
25 such employee; or

26 (3) Take personnel action against an employee as a reprisal for
27 providing information or testimony pursuant to actions initiated and
28 undertaken an investigation by the office.

29 **Sec. 43.** If the Inspector General has reason to believe that any
30 public officer or employee has acted in a manner that warrants criminal
31 or disciplinary action or proceedings, the Inspector General shall report

1 the matter to the department, the juvenile services division, the
2 commission, or other appropriate authorities.

3 **Sec. 44.** (1) Notwithstanding any other provision of law, the office
4 shall have access to confidential information and confidential records
5 necessary to carry out its responsibilities.

6 (2) Except as otherwise provided by law, any confidential
7 information or confidential records shared with the office shall remain
8 confidential and shall not be shared by an employee of the office with
9 any person who is not an employee of the office, including any member of
10 the Legislative Oversight Committee.

11 (3) If any employee of the office knowingly divulges or makes known,
12 in any manner not permitted by law, confidential information or
13 confidential records, it shall be grounds for dismissal.

14 **Sec. 45.** Section 47-901, Reissue Revised Statutes of Nebraska, is
15 amended to read:

16 ~~47-901~~ Sections ~~45~~ to ~~65~~ of this act ~~47-901~~ to ~~47-920~~ shall be known
17 and may be cited as the Office of Inspector General of the Nebraska
18 Correctional System Act.

19 **Sec. 46.** The Legislature finds and declares that:

20 (1) It is within the inherent power of the Legislature to secure
21 needed information in order to legislate, hold hearings, and conduct
22 investigations of matters related to the operation of state government.
23 This power of inquiry is broad and indispensable;

24 (2) Article IV, section 19, of the Constitution of Nebraska
25 specifically provides that the general management, control, and
26 government of all state reformatory and penal institutions shall be
27 vested as determined by the Legislature;

28 (3) Article IV, section 23, of the Constitution of Nebraska
29 specifically provides that the Legislature may at any time require that
30 information be provided to it from the officers and employees of state
31 agencies relating to the condition, management, and expenses of their

1 respective offices; and

2 (4) In order to establish a full-time program of investigation and
3 oversight of the Nebraska correctional system and assist in the
4 development of legislation related to the Nebraska correctional system,
5 the Legislature created the office of Inspector General of the Nebraska
6 Correctional System.

7 **Sec. 47.** Section 47-902, Reissue Revised Statutes of Nebraska, is
8 amended to read:

9 47-902 (1) It is the intent of the Legislature that the office of
10 Inspector General of the Nebraska Correctional System to:

11 ~~(a) Establish a full-time program of investigation and performance~~
12 ~~review to provide increased accountability and oversight of the Nebraska~~
13 ~~correctional system;~~

14 ~~(a) (b)~~ Assist in improving operations of the department and the
15 Nebraska correctional system;

16 ~~(b) (c)~~ Provide an independent form of inquiry for concerns
17 regarding the actions of individuals and agencies responsible for the
18 supervision and release of persons in the Nebraska correctional system. A
19 lack of responsibility and accountability ~~between individuals and private~~
20 ~~agencies~~ in the current system makes ~~make~~ it difficult for the
21 Legislature to monitor and oversee the Nebraska correctional system; and

22 ~~(c) (d)~~ Provide a process for investigation and review in order to
23 improve policies and procedures of the correctional system.

24 (2) It is not the intent of the Legislature in enacting the Office
25 of Inspector General of the Nebraska Correctional System Act to interfere
26 with the duties of the Legislative Auditor or the Legislative Fiscal
27 Analyst or to interfere with the statutorily defined investigative
28 responsibilities or prerogatives of any officer, agency, board, bureau,
29 commission, association, society, or institution of the executive branch
30 of state government, except that the act does not preclude an inquiry on
31 the sole basis that another agency has the same responsibility. The act

1 shall not be construed to interfere with or supplant the responsibilities
2 or prerogatives of the Governor to investigate, monitor, and report on
3 the activities of the agencies, boards, bureaus, commissions,
4 associations, societies, and institutions of the executive branch under
5 the Governor's ~~his or her~~ administrative direction.

6 **Sec. 48.** Section 47-903, Reissue Revised Statutes of Nebraska, is
7 amended to read:

8 ~~47-903~~ For purposes of the Office of Inspector General of the
9 Nebraska Correctional System Act, the following definitions apply:

10 (1) Administrator means a person charged with administration of (a)
11 a program ~~or~~ an office ~~or a division~~ of the department or (b)
12 ~~administration of a private agency;~~

13 (2) Department means the Department of Correctional Services;

14 (3) Director means the Director of Correctional Services;

15 ~~(4) Division of Parole Supervision means the division created~~
16 ~~pursuant to section 83-1,100;~~

17 (4) ~~(5)~~ Inspector General means the Inspector General of the
18 Nebraska Correctional System appointed under section 49 of this act
19 ~~47-904;~~

20 (5) ~~(6)~~ Malfeasance means a wrongful act that the actor has no legal
21 right to do or any wrongful conduct that affects, interrupts, or
22 interferes with performance of an official duty;

23 (6) ~~(7)~~ Management means supervision of subordinate employees;

24 (7) ~~(8)~~ Misfeasance means the improper performance of some act that
25 a person may lawfully do;

26 (8) ~~(9)~~ Obstruction means hindering an investigation, preventing an
27 investigation from progressing, stopping or delaying the progress of an
28 investigation, or making the progress of an investigation difficult or
29 slow;

30 (9) ~~(10)~~ Office means the office of Inspector General of the
31 Nebraska Correctional System and includes the Inspector General and other

1 employees of the office;

2 ~~(10) (11)~~ Private agency means an entity that contracts with the
3 department or contracts to provide services to another entity that
4 contracts with the department; and

5 ~~(11) (12)~~ Record means any recording in written, audio, electronic
6 ~~transmission~~, or computer storage form, including, but not limited to, a
7 draft, memorandum, note, report, computer printout, notation, ~~or~~ message,
8 ~~and includes, but is not limited to,~~ medical record records, mental
9 health record records, case file files, clinical record records,
10 financial record records, and administrative record records.

11 **Sec. 49.** Section 47-904, Reissue Revised Statutes of Nebraska, is
12 amended to read:

13 ~~47-904~~ (1) The office of Inspector General of the Nebraska
14 Correctional System is created within the Division of Legislative
15 Oversight ~~office of Public Counsel~~ for the purpose of conducting
16 investigations, audits, inspections, and other oversight ~~reviews~~ of the
17 Nebraska correctional system for the Legislature. The Inspector General
18 shall be appointed by the Director of Legislative Oversight ~~Public~~
19 ~~Counsel~~ with approval from the chairperson of the Executive Board of the
20 Legislative Council, the chairperson of the Legislative Oversight
21 Committee, and the chairperson of the Judiciary Committee of the
22 Legislature.

23 (2) The Inspector General shall be appointed for a term of five
24 years and may be reappointed. The Inspector General shall be selected
25 without regard to political affiliation and on the basis of integrity,
26 capability for strong leadership, and demonstrated ability in accounting,
27 auditing, financial analysis, law, management, public administration,
28 investigation, or criminal justice administration or other closely
29 related fields. No former or current executive or manager of the
30 department shall be appointed Inspector General within five years after
31 such former or current executive's or manager's period of service with

1 the department. Not later than two years after the date of appointment,
2 the Inspector General shall obtain certification as a Certified Inspector
3 General by the Association of Inspectors General, its successor, or
4 another nationally recognized organization that provides and sponsors
5 educational programs and establishes professional qualifications,
6 certifications, and licensing for inspectors general. During the
7 Inspector General's ~~his or her~~ employment, the Inspector General shall
8 not be actively involved in partisan affairs.

9 (3) The Inspector General shall employ such investigators and
10 support staff as the Inspector General ~~he or she~~ deems necessary to carry
11 out the duties of the office within the amount available by appropriation
12 through the Division of Legislative Oversight ~~office of Public Counsel~~
13 for the office of Inspector General of the Nebraska Correctional System.
14 The Inspector General shall be subject to the control and supervision of
15 the Director of Legislative Oversight ~~Public Counsel~~, except that removal
16 of the Inspector General shall require approval of the chairperson of the
17 Legislative Oversight Committee ~~Executive Board of the Legislative~~
18 ~~Council and the chairperson of the Judiciary Committee of the~~
19 ~~Legislature.~~ The Inspector General may also be removed by a two-thirds
20 majority vote of the Legislative Oversight Committee.

21 **Sec. 50.** Section 47-905, Reissue Revised Statutes of Nebraska, is
22 amended to read:

23 ~~47-905~~ (1) The office shall investigate:

24 (a) Allegations or incidents of possible misconduct, misfeasance,
25 malfeasance, or violations of statutes or of rules or regulations of the
26 department by an employee of or a person under contract with the
27 department or a private agency; and

28 (b) Death or serious injury of individuals in the custody or under
29 the supervision of the department in private agencies, department
30 correctional facilities, and other programs and facilities licensed by or
31 under contract with the department. The department shall report all such

1 cases of death or serious injury of ~~a person in a private agency,~~
2 ~~department correctional facility or program, or other program or facility~~
3 ~~licensed by the department~~ to the Inspector General as soon as reasonably
4 possible after the department learns of such death or serious injury. The
5 department shall also report all cases of the death or serious injury of
6 an employee when acting in such employee's ~~his or her~~ capacity as an
7 employee of the department as soon as reasonably possible after the
8 department learns of such death or serious injury. The department shall
9 also report all cases when an employee is hospitalized in response to an
10 injury received when such employee is acting in such employee's ~~his or~~
11 ~~her~~ capacity as an employee of the department as soon as reasonably
12 possible after the department learns of such hospitalization. For
13 purposes of this subdivision, serious injury means an injury which
14 requires urgent and immediate medical treatment and restricts the injured
15 person's usual activity; and -

16 (c) Any other matter as provided in the annual work plans or key
17 performance indicators approved by the Legislative Oversight Committee
18 pursuant to section 23 of this act.

19 (2) Any investigation conducted by the Inspector General shall be
20 independent of and separate from an investigation pursuant to sections
21 23-1821 to 23-1823.

22 (3) The department shall notify the Inspector General as soon as
23 practicable when a criminal investigation involving a death or serious
24 injury required to be reported to the Inspector General under subdivision
25 (1)(b) of this section has commenced and when such criminal investigation
26 has concluded.

27 (4) (3) Notwithstanding the fact that a criminal investigation, a
28 criminal prosecution, or both are in progress, all law enforcement
29 agencies and prosecuting attorneys may ~~shall~~ cooperate with any
30 investigation conducted by the Inspector General and may, shall,
31 ~~immediately~~ upon request by the Inspector General, provide the Inspector

1 General with copies of all law enforcement reports which are relevant to
2 the Inspector General's investigation. All law enforcement reports which
3 have been provided to the Inspector General pursuant to this section are
4 not public records for purposes of sections 84-712 to 84-712.09 and shall
5 not be subject to discovery by any other person or entity. Except to the
6 extent that disclosure of information is otherwise provided for in the
7 Office of Inspector General of the Nebraska Correctional System Act, the
8 Inspector General shall maintain the confidentiality of all law
9 enforcement reports received pursuant to its request under this section.
10 Law enforcement agencies and prosecuting attorneys ~~may~~ shall, when
11 requested by the Inspector General, collaborate with the Inspector
12 General regarding all other information relevant to the Inspector
13 General's investigation. ~~The If the Inspector General in conjunction with~~
14 ~~the Public Counsel determines it appropriate, the Inspector General shall~~
15 ~~may~~, when requested to do so by a law enforcement agency or prosecuting
16 attorney, suspend an investigation by the office until a criminal
17 investigation or prosecution is completed or has proceeded to a point
18 that, in the judgment of the Inspector General, reinstatement of the
19 Inspector General's investigation will not impede or infringe upon the
20 criminal investigation or prosecution.

21 (5) Consistent with the Nebraska Rules of Professional Conduct,
22 counsel for the entity under investigation shall not represent a witness.
23 A witness may request that counsel for the entity under investigation be
24 present while being questioned, but such entity shall not require a
25 witness to make such a request. If such a request is made, the entity
26 under investigation shall inform the witness that such entity's counsel
27 does not represent the witness. For purposes of this subsection, entity
28 under investigation means the entity that is the subject of an
29 investigation under the Office of Inspector General of the Nebraska
30 Correctional System Act and includes the department and a private agency.

31 (6) The office may conduct audits, inspections, investigations, and

1 other oversight as necessary to perform the duties of the office and to
2 carry out the purposes of the Office of Inspector General of the Nebraska
3 Correctional System Act.

4 **Sec. 51.** Section 47-907, Reissue Revised Statutes of Nebraska, is
5 amended to read:

6 ~~47-907~~ (1) Complaints to the office may be made in writing. A
7 complaint shall be evaluated to determine if it alleges possible
8 misconduct, misfeasance, malfeasance, or violation of a statute or of
9 rules and regulations of the department by an employee of or a person
10 under contract with the department or a private agency. All complaints
11 shall be evaluated to determine whether a full investigation is
12 warranted.

13 (2) The office shall not conduct a full investigation of a complaint
14 unless:

15 (a) The complaint alleges misconduct, misfeasance, malfeasance, or
16 violation of a statute or of rules and regulations of the department;

17 (b) The complaint is against a person within the jurisdiction of the
18 office; and

19 (c) The allegations can be independently verified through
20 investigation.

21 (3) After receipt of a complaint, the The Inspector General shall
22 ~~determine within fourteen days after receipt of a complaint~~ whether the
23 office will conduct a full investigation.

24 (4) When a full investigation is opened on a private agency that
25 contracts with the department, the Inspector General shall give notice of
26 such investigation to the department.

27 **Sec. 52.** Section 47-908, Reissue Revised Statutes of Nebraska, is
28 amended to read:

29 ~~47-908~~ (1) The office shall have access to all information and
30 personnel necessary to perform the duties of the office and to carry out
31 the Office of Inspector General of the Nebraska Correctional System Act.

1 ~~(2) All employees of the department , all employees of the Division~~
2 ~~of Parole Supervision,~~ and all owners, operators, managers, supervisors,
3 and employees of private agencies shall cooperate with the office.
4 Cooperation includes, but is not limited to, the following:

5 ~~(a) (1)~~ Provision of full access to and production of records and
6 information. Providing access to and producing records and information
7 for the office is not a violation of confidentiality provisions under any
8 statute, rule, or regulation if done in good faith for purposes of an
9 ~~investigation under the Office of Inspector General of the Nebraska~~
10 ~~Correctional System Act;~~

11 ~~(b) (2)~~ Fair and honest disclosure of records and information
12 reasonably requested by the office pursuant to in the course of an
13 ~~investigation under the act;~~

14 ~~(c) (3)~~ Encouraging employees to fully comply with reasonable
15 requests of the office pursuant to in the course of an investigation
16 ~~under the act;~~

17 ~~(d) (4)~~ Prohibition of retaliation by owners, operators, or managers
18 against employees for providing records or information or filing or
19 otherwise making a complaint to the office;

20 ~~(e) (5)~~ Not requiring employees to gain supervisory approval prior
21 to filing a complaint with or providing records or information to the
22 office;

23 ~~(f) Not requiring employees to report filing a complaint with or~~
24 ~~providing records or information to the office; and~~

25 ~~(g) Not requiring employees to request that counsel for the employer~~
26 ~~be present while being questioned in the course of an investigation.~~

27 ~~(6) Provision of complete and truthful answers to questions posed by~~
28 ~~the office in the course of an investigation; and~~

29 ~~(7) Not willfully interfering with or obstructing the investigation.~~

30 **Sec. 53.** Section 47-909, Reissue Revised Statutes of Nebraska, is
31 amended to read:

1 ~~47-909~~ Failure to cooperate with an investigation by the office may
2 result in public disclosure of the failure to cooperate discipline or
3 other sanctions.

4 **Sec. 54.** Section 47-910, Reissue Revised Statutes of Nebraska, is
5 amended to read:

6 ~~47-910~~ (1) At the request of the Inspector General, and after
7 receiving prior approval by a majority vote of the Executive Board of the
8 Legislative Council, the Legislative Oversight Committee may issue
9 subpoenas in connection with a specific inquiry or investigation
10 undertaken pursuant to the Office of Inspector General of the Nebraska
11 Correctional System Act to compel the production of records and
12 information and sworn testimony or other evidence relevant to such
13 inquiry or investigation. The committee shall vote to determine whether
14 to issue a subpoena within ten days after receipt of the request.

15 (2) When authorized to issue subpoenas under this section, the
16 committee may require any employees of the department or any owners,
17 operators, managers, supervisors, and employees of private agencies to
18 provide the records or information requested within thirty days after the
19 request, except as otherwise provided for in the subpoena, or to appear
20 at a hearing on the date set in the subpoena.

21 (3) Litigation to compel or quash compliance with the authority
22 exercised pursuant to this section shall be advanced on the trial docket
23 and heard and decided by the court as quickly as possible. The court
24 shall issue its decision no later than twenty days after the filing of
25 the application or petition or a motion to quash, whichever is filed
26 first. Either party may appeal to the Court of Appeals within ten days
27 after a decision is rendered.

28 (4) The district court of Lancaster County has jurisdiction over all
29 litigation arising under this section. In all such litigation, the
30 executive board shall provide for legal representation for the committee.

31 (5) In case of disobedience on the part of any employees of the

1 department or any owners, operators, managers, supervisors, and employees
2 of private agencies to comply with any subpoena issued pursuant to this
3 section, the committee shall vote on whether to find the person in
4 contempt or to find that the failure to comply was not willful.

5 (6) If the committee finds a person in contempt as provided in
6 subsection (5) of this section, the committee may, by application or
7 petition to the district court of Lancaster County, request that the
8 court compel obedience by proceedings for contempt as in the case of
9 disobedience of the requirements of a subpoena issued from such court.
10 The application or petition shall be filed by the chairperson of the
11 committee.

12 ~~(7) The Inspector General may issue a subpoena, enforceable by~~
13 ~~action in an appropriate court, to compel any person to appear, give~~
14 ~~sworn testimony, or produce documentary or other evidence deemed relevant~~
15 ~~to a matter under his or her inquiry. A person thus required to provide~~
16 information under this section shall be paid the same fees and travel
17 allowances and shall be accorded the same privileges and immunities as
18 are extended to witnesses in the district courts of this state and shall
19 also be entitled to have counsel present while being questioned. Any fees
20 associated with counsel present under this section shall not be the
21 responsibility of the office or the Legislative Council.

22 **Sec. 55.** Section 47-911, Reissue Revised Statutes of Nebraska, is
23 amended to read:

24 ~~47-911~~ (1) A full investigation conducted by the office shall
25 consist of (a) access to and retrieval of all relevant records through
26 compliance with a request of the office, by voluntary production, or by
27 subpoena, (b) review of all relevant records, and (c) interviews of all
28 relevant persons ~~In conducting investigations, the office shall access~~
29 ~~all relevant records through subpoena, compliance with a request by the~~
30 ~~office, and voluntary production. The office may request or request the~~
31 issuance of a subpoena for any record necessary for the investigation

1 from the department or a private agency that is pertinent to an
2 investigation. All case files, licensing files, medical records,
3 financial and administrative records, and records required to be
4 maintained pursuant to applicable licensing rules shall be produced for
5 review by the office in the course of an investigation.

6 (2) Compliance with a request of the office includes:

7 (a) Production of all records requested;

8 (b) A diligent search to ensure that all appropriate records are
9 included; and

10 (c) A continuing obligation to immediately forward to the office any
11 relevant records received, located, or generated after the date of the
12 request; -

13 (d) Provision of complete and truthful answers to questions posed by
14 the office in the course of an investigation; and

15 (e) Not willfully interfering with or obstructing an investigation.

16 (3) The office shall seek access in a manner that respects the
17 dignity and human rights of all persons involved, maintains the integrity
18 of the investigation, and does not unnecessarily disrupt department
19 programs or services. ~~When advance notice to an administrator or his or~~
20 ~~her designee is not provided, the office investigator shall, upon arrival~~
21 ~~at the departmental office, bureau, or division or private agency,~~
22 ~~request that an onsite employee notify the administrator or his or her~~
23 ~~designee of the investigator's arrival.~~

24 (4) When circumstances of an audit, inspection, investigation, or
25 review require, the office may make an announced or unannounced visit to
26 a departmental office, ~~bureau, or division,~~ a department correctional
27 facility, or a private agency ~~to request records relevant to an~~
28 investigation. The office may request relevant records during such visit.

29 (5) A responsible individual or an administrator may be asked to
30 sign a statement of record integrity and security when a record is
31 secured by request as the result of a visit by the office, stating:

1 (a) That the responsible individual or the administrator has made a
2 diligent search of the departmental office, bureau, division, private
3 agency, or department correctional facility, or private agency to
4 determine that all appropriate records in existence at the time of the
5 request were produced;

6 (b) That the responsible individual or the administrator agrees to
7 immediately forward to the office any relevant records received, located,
8 or generated after the visit;

9 (c) The persons who have had access to the records since they were
10 secured; and

11 (d) Whether, to the best of the knowledge of the responsible
12 individual or the administrator, any records were removed from or added
13 to the record since it was secured.

14 (6) The office shall permit a responsible individual, an
15 administrator, or an employee of a departmental office, ~~bureau, or~~
16 ~~division, a private agency, or~~ a department correctional facility, or a
17 private agency to make photocopies of the original records within a
18 reasonable time in the presence of the office for purposes of creating a
19 working record in a manner that assures confidentiality.

20 (7) The office shall present to the responsible individual or the
21 administrator or other employee of the departmental office, ~~bureau, or~~
22 ~~division, private agency, or~~ department correctional facility, or private
23 agency a copy of the request, stating the date and the titles of the
24 records received.

25 (8) If an original record is provided during an investigation, the
26 office shall return the original record as soon as practical but no later
27 than ten business working days after the date of the compliance request.

28 ~~(9) All investigations conducted by the office shall be conducted in~~
29 ~~a manner designed to ensure the preservation of evidence for possible use~~
30 ~~in a criminal prosecution.~~

31 **Sec. 56.** Section 47-912, Reissue Revised Statutes of Nebraska, is

1 amended to read:

2 ~~47-912~~ (1) Reports of investigations conducted by the office shall
3 not be distributed beyond the entity that is the subject of the report
4 without the consent of the Inspector General.

5 (2) The office shall redact confidential information before
6 distributing a report of an investigation.

7 (3) The office may disclose confidential information to the
8 chairperson of the Legislative Oversight Committee at the chairperson's
9 request. The office may also disclose confidential information to the
10 chairperson of the Legislative Oversight Committee, the chairperson of
11 the Executive Board of the Legislative Council, and the chairperson of
12 the Judiciary Committee of the Legislature when such disclosure is, in
13 the judgment of the Director of Legislative Oversight Public Counsel,
14 appropriate desirable to keep the Legislature chairperson informed of
15 important events, issues, and developments in the Nebraska correctional
16 system.

17 (4) The office may also disclose such confidential information to
18 the Legislative Oversight Committee when such disclosure is, in the
19 judgment of the chairperson of the Legislative Oversight Committee,
20 appropriate to keep the Legislature informed of important events, issues,
21 and developments in the Nebraska correctional system.

22 (5)(a) {3}(a) A summarized final report based on an investigation
23 may be publicly released in order to bring awareness to systemic issues.

24 (b) Such report shall be released only:

25 (i) After a disclosure is made to the chairperson of the Legislative
26 Oversight Committee pursuant to subsection (3) {2} of this section; and

27 (ii) If a determination is made by the Inspector General with the
28 chairperson of the Legislative Oversight Committee that doing so would be
29 in the best interest of the public.

30 (c) If there is disagreement about whether releasing the report
31 would be in the best interest of the public, the chairperson of the

1 Executive Board of the Legislative Council shall ~~may be asked to~~ make the
2 final decision.

3 (d) The Legislative Oversight Committee shall be notified prior to a
4 report of an investigation being publicly released under this section.

5 (6) {4} Records and documents, regardless of physical form, that are
6 obtained or produced by the office in the course of an investigation are
7 not public records for purposes of sections 84-712 to 84-712.09. Reports
8 of investigations conducted by the office are not public records for
9 purposes of sections 84-712 to 84-712.09.

10 (7) {5} The office may withhold the identity of sources of
11 information to protect from retaliation any person who files a complaint
12 or provides information in good faith pursuant to the Office of Inspector
13 General of the Nebraska Correctional System Act.

14 **Sec. 57.** Section 47-913, Reissue Revised Statutes of Nebraska, is
15 amended to read:

16 ~~47-913~~ (1) The department shall provide the Director of Legislative
17 Oversight Public Counsel and the office Inspector General with direct
18 computer access to all computerized records, reports, and documents
19 maintained by the department in connection with administration of the
20 Nebraska correctional system and the Nebraska parole system. The Director
21 of Legislative Oversight's , except that the Public Counsel's and
22 Inspector General's access to an inmate's or parolee's medical or mental
23 health records shall be subject to the inmate's or parolee's consent
24 unless an inmate's or parolee's death is being investigated pursuant to
25 subdivision (1)(b) of section 50 of this act.

26 (2) Information shall be provided in the most efficient and timely
27 way, in a manner that is least burdensome to the department, and in a
28 manner which maintains the confidentiality of the information. This may
29 include providing information through secure electronic access to case
30 files and secure access to information maintained electronically in
31 databases and case management systems. The office, by and through the

1 Executive Board of the Legislative Council, may enter into information-
2 sharing agreements with the department to assist in the implementation of
3 and compliance with the Office of Inspector General of the Nebraska
4 Correctional System Act.

5 (3)(a) The department may object to the production or disclosure of
6 records, reports, and documents in writing on the grounds that such
7 records, reports, and documents are legally privileged, identifying the
8 specific grounds for such objection. Following such objection, the office
9 and the department may negotiate terms of production or disclosure
10 pursuant to this section.

11 (b) In the event that satisfactory terms of production or disclosure
12 cannot be reached between the office and the department, the office may
13 request the issuance of a subpoena pursuant to section 54 of this act.

14 **Sec. 58.** Section 47-914, Reissue Revised Statutes of Nebraska, is
15 amended to read:

16 ~~47-914~~ (1) The Inspector General's report of an investigation shall
17 be in writing and may to the Public Counsel and shall contain
18 recommendations for systemic reform. The report may recommend systemic
19 reform or case-specific action, including a recommendation for discharge
20 or discipline of employees or for sanctions against a private agency. All
21 recommendations to pursue discipline shall be in writing and signed by
22 the Inspector General. A report of an investigation shall be presented to
23 the Director of Legislative Oversight and the chairperson of the
24 Legislative Oversight Committee. The Inspector General shall present the
25 report of an investigation to the director within three business fifteen
26 days after the report is presented to the Director of Legislative
27 Oversight and the chairperson of the Legislative Oversight Committee
28 Public Counsel.

29 (2) Any person receiving a report under this section shall not
30 further distribute the report or any confidential information contained
31 in the report. The report shall not be distributed beyond the parties

1 except through the appropriate court procedures to the judge.

2 (3) A report that identifies misconduct, misfeasance, malfeasance,
3 violation of statute, or violation of rules and regulations by an
4 employee of the department or a private agency that is relevant to
5 providing appropriate supervision of an employee may be shared with the
6 employer of such employee. The employer shall ~~may~~ not further distribute
7 the report or any confidential information contained in the report.

8 **Sec. 59.** Section 47-915, Reissue Revised Statutes of Nebraska, is
9 amended to read:

10 ~~47-915~~ (1) Within fifteen business days after a report is presented
11 to the director under section 58 of this act, the director ~~may~~ ~~47-914~~, he
12 ~~or she shall~~ determine whether to accept, reject, or request ~~in writing~~
13 modification of the recommendations contained in the report. Any response
14 shall be in writing and may include corrections of factual errors. The
15 Inspector General, with input from the Director of Legislative Oversight
16 ~~Public Counsel~~, may consider any the director's request for modifications
17 but is not obligated to accept such request. Such report shall become
18 final (a) upon the decision of the director to accept or reject the
19 recommendations in the report, (b) within fifteen business days after or,
20 ~~if the director requests modifications , within fifteen days after such~~
21 ~~request~~ or after the Inspector General incorporates such modifications,
22 whichever occurs earlier, or (c) fifteen days after the report is
23 presented to the director if no response is made. If the Inspector
24 General does not accept a requested modification, the recommendation for
25 which such modification was requested shall be considered to be rejected
26 by the director.

27 (2) Within fifteen business days after the report is presented to
28 the director, the report shall be presented to the private agency or
29 other provider of correctional services that is the subject of the report
30 and to persons involved in the implementation of the recommendations in
31 the report. Within fifteen business ~~forty-five~~ days after receipt of the

1 report, the private agency or other provider may submit a written
2 response to the office to correct any factual errors in the report. The
3 Inspector General, with input from the Director of Legislative Oversight
4 ~~Public Counsel~~, shall consider all materials submitted under this
5 subsection to determine whether a corrected report shall be issued. If
6 the Inspector General determines that a corrected report is necessary,
7 the corrected report shall be issued within fifteen business days after
8 receipt of the written response.

9 (3) If the Inspector General does not issue a corrected report
10 pursuant to subsection (2) of this section or if the corrected report
11 does not address all issues raised in the written response, the private
12 agency or other provider may request that its written response, or
13 portions of the response, be appended to the report or corrected report.

14 **Sec. 60.** Section 47-916, Reissue Revised Statutes of Nebraska, is
15 amended to read:

16 ~~47-916~~ No report or other work product of an investigation by the
17 Inspector General shall be reviewable in any court. Neither the Inspector
18 General nor any member of the Inspector General's ~~his or her~~ staff shall
19 be required to testify or produce evidence in any judicial or
20 administrative proceeding concerning matters within such person's ~~his or~~
21 ~~her~~ official cognizance except in a proceeding brought to enforce the
22 Office of Inspector General of the Nebraska Correctional System Act.

23 **Sec. 61.** Section 47-917, Reissue Revised Statutes of Nebraska, is
24 amended to read:

25 ~~47-917~~ The Office of Inspector General of the Nebraska Correctional
26 System Act does not require the Inspector General to investigate all
27 complaints. The Inspector General, with input from the Director of
28 Legislative Oversight ~~Public Counsel~~, shall prioritize and select
29 investigations and inquiries that further the intent of the act and
30 assist in legislative oversight of the Nebraska correctional system. If
31 the Inspector General determines that the office ~~he or she~~ will not

1 investigate a complaint, the Inspector General may recommend to the
2 parties alternative means of resolution of the issues in the complaint.

3 **Sec. 62.** Section 47-918, Reissue Revised Statutes of Nebraska, is
4 amended to read:

5 ~~47-918~~ On or before September 15 of each year, the Inspector General
6 shall provide to ~~each member of the Judiciary Committee of the~~
7 ~~Legislature and~~ , the Governor a report that includes , ~~and the Clerk of~~
8 ~~the Legislature~~ a summary of reports and investigations made under the
9 Office of Inspector General of the Nebraska Correctional System Act for
10 the preceding year. The report to the Legislature shall be submitted
11 ~~summary provided to the Clerk of the Legislature shall be provided~~
12 electronically and filed with the Clerk of the Legislature. The reports
13 ~~summaries~~ shall include findings and recommendations and an update on the
14 status of recommendations made in prior reports summaries, if any. The
15 findings and recommendations may address issues discovered through
16 investigations, audits, inspections, and reviews by the office that will
17 (1) increase accountability and legislative oversight of the Nebraska
18 correctional system, (2) improve operations of the department and the
19 Nebraska correctional system, (3) deter and identify fraud, abuse, and
20 illegal acts, and (4) identify inconsistencies between statutory
21 requirements and requirements for accreditation. The reports summaries
22 shall not contain any confidential or identifying information concerning
23 the subjects of the reports and investigations.

24 **Sec. 63.** Section 47-920, Reissue Revised Statutes of Nebraska, is
25 amended to read:

26 ~~47-920~~ Any person who has authority to recommend, approve, direct,
27 or otherwise take or affect personnel action shall not, with respect to
28 such authority:

29 (1) Take personnel action against an employee because of the
30 disclosure of information by the employee to the office which the
31 employee reasonably believes evidences wrongdoing under the Office of

1 Inspector General of the Nebraska Correctional System Act;

2 (2) Take personnel action against an employee as a reprisal for the
3 submission of an allegation of wrongdoing under the act to the office by
4 such employee; or

5 (3) Take personnel action against an employee as a reprisal for
6 providing information or testimony pursuant to actions initiated and
7 undertaken an investigation by the office.

8 **Sec. 64.** If the Inspector General has reason to believe that any
9 public officer or employee has acted in a manner that warrants criminal
10 or disciplinary action or proceedings, the Inspector General shall report
11 the matter to the department or other appropriate authorities.

12 **Sec. 65.** (1) Notwithstanding any other provision of law, the office
13 shall have access to confidential information and confidential records
14 necessary to carry out its responsibilities.

15 (2) Except as otherwise provided by law, any confidential
16 information or confidential records shared with the office shall remain
17 confidential and shall not be shared by an employee of the office with
18 any person who is not an employee of the office, including any member of
19 the Legislative Oversight Committee.

20 (3) If any employee of the office knowingly divulges or makes known,
21 in any manner not permitted by law, confidential information or
22 confidential records, it shall be grounds for dismissal.

23 **Sec. 66.** Section 28-711, Reissue Revised Statutes of Nebraska, is
24 amended to read:

25 28-711 (1) When any physician, any medical institution, any nurse,
26 any school employee, any social worker, the Inspector General appointed
27 under section 28 of this act ~~43-4317~~, or any other person has reasonable
28 cause to believe that a child has been subjected to child abuse or
29 neglect or observes such child being subjected to conditions or
30 circumstances which reasonably would result in child abuse or neglect, he
31 or she shall report such incident or cause a report of child abuse or

1 neglect to be made to the proper law enforcement agency or to the
2 department on the toll-free number established by subsection (2) of this
3 section. Such report may be made orally by telephone with the caller
4 giving his or her name and address, shall be followed by a written
5 report, and to the extent available shall contain the address and age of
6 the abused or neglected child, the address of the person or persons
7 having custody of the abused or neglected child, the nature and extent of
8 the child abuse or neglect or the conditions and circumstances which
9 would reasonably result in such child abuse or neglect, any evidence of
10 previous child abuse or neglect including the nature and extent, and any
11 other information which in the opinion of the person may be helpful in
12 establishing the cause of such child abuse or neglect and the identity of
13 the perpetrator or perpetrators. Law enforcement agencies receiving any
14 reports of child abuse or neglect under this subsection shall notify the
15 department pursuant to section 28-718 on the next working day by
16 telephone or mail.

17 (2) The department shall establish a statewide toll-free number to
18 be used by any person any hour of the day or night, any day of the week,
19 to make reports of child abuse or neglect. Reports of child abuse or
20 neglect not previously made to or by a law enforcement agency shall be
21 made immediately to such agency by the department.

22 **Sec. 67.** Section 28-712.01, Revised Statutes Cumulative Supplement,
23 2024, is amended to read:

24 28-712.01 (1)(a) The department may assign a report for alternative
25 response consistent with the Child Protection and Family Safety Act.

26 (b) No report involving any of the following shall be assigned to
27 alternative response but shall be immediately forwarded to law
28 enforcement or the county attorney:

29 (i) Murder in the first or second degree as defined in section
30 28-303 or 28-304 or manslaughter as defined in section 28-305;

31 (ii) Assault in the first, second, or third degree or assault by

1 strangulation or suffocation as defined in section 28-308, 28-309,
2 28-310, or 28-310.01;

3 (iii) Sexual abuse, including acts prohibited by section 28-319,
4 28-319.01, 28-320, 28-320.01, 28-320.02, 28-322.01, 28-322.02, 28-322.03,
5 28-322.04, 28-322.05, 28-703, or 28-707;

6 (iv) Labor trafficking of a minor or sex trafficking of a minor as
7 defined in section 28-830;

8 (v) Neglect of a minor child that results in serious bodily injury
9 as defined in section 28-109, requires hospitalization of the child, or
10 results in an injury to the child that requires ongoing medical care,
11 behavioral health care, or physical or occupational therapy, including a
12 growth delay, which may be referred to as failure to thrive, that has
13 been diagnosed by a physician and is due to parental neglect;

14 (vi) Physical abuse to the head or torso of a child or physical
15 abuse that results in bodily injury;

16 (vii) An allegation that requires a forensic interview at a child
17 advocacy center or coordination with the child abuse and neglect
18 investigation team pursuant to section 28-728;

19 (viii) Out-of-home child abuse or neglect;

20 (ix) An allegation being investigated by a law enforcement agency at
21 the time of the assignment;

22 (x) A history of termination of parental rights;

23 (xi) Absence of a caretaker without having given an alternate
24 caregiver authority to make decisions and grant consents for necessary
25 care, treatment, and education of a child or without having made
26 provision to be contacted to make such decisions or grant such consents;

27 (xii) Domestic violence involving a caretaker in situations in which
28 the alleged perpetrator has access to the child or caretaker;

29 (xiii) A household member illegally manufactures methamphetamine or
30 opioids;

31 (xiv) A child has had contact with methamphetamine or other

1 nonprescribed opioids, including a positive drug screening or test; or

2 (xv) For a report involving an infant, a household member tests
3 positive for methamphetamine or nonprescribed opioids at the birth of
4 such infant.

5 (c) The department may adopt and promulgate rules and regulations to
6 (i) provide additional ineligibility criteria for assignment to
7 alternative response and (ii) establish additional criteria requiring
8 review by the Review, Evaluate, and Decide Team.

9 (d) A report that includes any of the following may be eligible for
10 alternative response but shall first be reviewed by the Review, Evaluate,
11 and Decide Team prior to assignment to alternative response:

12 (i) Domestic assault as defined in section 28-323 or domestic
13 violence in the family home;

14 (ii) Use of alcohol or controlled substances as defined in section
15 28-401 or 28-405 by a caregiver that impairs the caregiver's ability to
16 care and provide safety for the child; or

17 (iii) A family member residing in the home or a caregiver that has
18 been the subject of a report accepted for traditional response or
19 assigned to alternative response in the past six months.

20 (2) The Review, Evaluate, and Decide Team shall convene to review
21 reports pursuant to the department's rules, regulations, and policies, to
22 evaluate the information, and to determine assignment for alternative
23 response or traditional response. The team shall utilize consistent
24 criteria to review the severity of the allegation of child abuse or
25 neglect, access to the perpetrator, vulnerability of the child, family
26 history including previous reports, parental cooperation, parental or
27 caretaker protective factors, and other information as deemed necessary.
28 At the conclusion of the review, the report shall be assigned to either
29 traditional response or alternative response. Decisions of the team shall
30 be made by consensus. If the team cannot come to consensus, the report
31 shall be assigned for a traditional response.

1 (3) In the case of an alternative response, the department shall
2 complete a comprehensive assessment. The department shall transfer the
3 case being given alternative response to traditional response if the
4 department determines that a child is unsafe or if the concern for the
5 safety of the child is due to a temporary living arrangement. Upon
6 completion of the comprehensive assessment, if it is determined that the
7 child is safe, participation in services offered to the family receiving
8 an alternative response is voluntary, the case shall not be transferred
9 to traditional response based upon the family's failure to enroll or
10 participate in such services, and the subject of the report shall not be
11 entered into the central registry of child protection cases maintained
12 pursuant to section 28-718.

13 (4) The department shall, by the next working day after receipt of a
14 report of child abuse or neglect, enter into the tracking system of child
15 protection cases maintained pursuant to section 28-715 all reports of
16 child abuse or neglect received under this section that are opened for
17 alternative response and any action taken.

18 (5) The department shall make available to the appropriate
19 investigating law enforcement agency, child advocacy center, and county
20 attorney a copy of all reports relative to a case of suspected child
21 abuse or neglect. Aggregate, nonidentifying data regarding reports of
22 child abuse or neglect receiving an alternative response shall be made
23 available quarterly to requesting agencies outside the department. Such
24 alternative response data shall include, but not be limited to, the
25 nature of the initial child abuse or neglect report, the age of the child
26 or children, the nature of services offered, the location of the cases,
27 the number of cases per month, and the number of alternative response
28 cases that were transferred to traditional response. Other than the
29 office of Inspector General of Nebraska Child Welfare, the Public
30 Counsel, law enforcement agency personnel, child advocacy center
31 employees, and county attorneys, no other agency or individual shall be

1 provided specific, identifying reports of child abuse or neglect being
2 given alternative response. The office of Inspector General of Nebraska
3 Child Welfare shall have access to all reports relative to cases of
4 suspected child abuse or neglect subject to traditional response and
5 those subject to alternative response. The department and the office
6 shall develop procedures allowing for the Inspector General's review of
7 cases subject to alternative response. The Inspector General shall
8 include in the report pursuant to section 41 of this act ~~43-4331~~ a
9 summary of all cases reviewed pursuant to this subsection.

10 **Sec. 68.** Section 29-2011.02, Revised Statutes Cumulative Supplement,
11 2024, is amended to read:

12 29-2011.02 Whenever a witness refuses, on the basis of the privilege
13 against self-incrimination, to testify or to provide other information in
14 a criminal proceeding or investigation before a court, a grand jury, the
15 Auditor of Public Accounts, the Legislative Council, the Legislative
16 Oversight Committee, or a standing committee or a special legislative
17 investigative or oversight committee of the Legislature, the court, on
18 motion of the county attorney, other prosecuting attorney, Auditor of
19 Public Accounts, chairperson of the Executive Board of the Legislative
20 Council, chairperson of the Legislative Oversight Committee, or
21 chairperson of a standing or special committee of the Legislature, may
22 order the witness to testify or to provide other information. The witness
23 may not refuse to comply with such an order of the court on the basis of
24 the privilege against self-incrimination, but no testimony or other
25 information compelled under the court's order or any information directly
26 or indirectly derived from such testimony or other information may be
27 used against the witness in any criminal case except in a prosecution for
28 perjury, giving a false statement, or failing to comply with the order of
29 the court.

30 **Sec. 69.** Section 29-2011.03, Revised Statutes Cumulative Supplement,
31 2024, is amended to read:

1 29-2011.03 The county attorney, other prosecuting attorney, Auditor
2 of Public Accounts, ~~or~~ chairperson of the Executive Board of the
3 Legislative Council, chairperson of the Legislative Oversight Committee,
4 or chairperson of a standing committee or a special legislative
5 investigative or oversight committee of the Legislature, upon an
6 affirmative vote of a majority of the board or committee, may request an
7 order pursuant to section 29-2011.02 when in such person's judgment:

8 (1) The testimony or other information from such individual may be
9 necessary to the public interest; and

10 (2) Such individual has refused or is likely to refuse to testify or
11 provide other information on the basis of the privilege against self-
12 incrimination.

13 **Sec. 70.** Section 43-2,108, Revised Statutes Cumulative Supplement,
14 2024, is amended to read:

15 43-2,108 (1) The juvenile court judge shall keep a record of all
16 proceedings of the court in each case, including appearances, findings,
17 orders, decrees, and judgments, and any evidence which he or she feels it
18 is necessary and proper to record. The case file shall contain the
19 complaint or petition and subsequent pleadings. The case file may be
20 maintained as an electronic document through the court's electronic case
21 management system, on microfilm, or in a paper volume and disposed of
22 when determined by the State Records Administrator pursuant to the
23 Records Management Act.

24 (2) Except as provided in subsections (3) and (4) of this section,
25 the medical, psychological, psychiatric, and social welfare reports and
26 the records of juvenile probation officers, as they relate to individual
27 proceedings in the juvenile court, shall not be open to inspection,
28 without order of the court. Such records shall be made available to a
29 district court of this state or the District Court of the United States
30 on the order of a judge thereof for the confidential use of such judge or
31 his or her probation officer as to matters pending before such court but

1 shall not be made available to parties or their counsel; and such
2 district court records shall be made available to a county court or
3 separate juvenile court upon request of the county judge or separate
4 juvenile judge for the confidential use of such judge and his or her
5 probation officer as to matters pending before such court, but shall not
6 be made available by such judge to the parties or their counsel.

7 (3) As used in this section, confidential record information means
8 all docket records, other than the pleadings, orders, decrees, and
9 judgments; case files and records; reports and records of probation
10 officers; and information supplied to the court of jurisdiction in such
11 cases by any individual or any public or private institution, agency,
12 facility, or clinic, which is compiled by, produced by, and in the
13 possession of any court. In all cases under subdivision (3)(a) of section
14 43-247, access to all confidential record information in such cases shall
15 be granted only as follows: (a) The court of jurisdiction may, subject to
16 applicable federal and state regulations, disseminate such confidential
17 record information to any individual, or public or private agency,
18 institution, facility, or clinic which is providing services directly to
19 the juvenile and such juvenile's parents or guardian and his or her
20 immediate family who are the subject of such record information; (b) the
21 court of jurisdiction may disseminate such confidential record
22 information, with the consent of persons who are subjects of such
23 information, or by order of such court after showing of good cause, to
24 any law enforcement agency upon such agency's specific request for such
25 agency's exclusive use in the investigation of any protective service
26 case or investigation of allegations under subdivision (3)(a) of section
27 43-247, regarding the juvenile or such juvenile's immediate family, who
28 are the subject of such investigation; and (c) the court of jurisdiction
29 may disseminate such confidential record information to any court, which
30 has jurisdiction of the juvenile who is the subject of such information
31 upon such court's request.

1 (4) The court shall provide copies of predispositional reports and
2 evaluations of the juvenile to the juvenile's attorney and the county
3 attorney or city attorney prior to any hearing in which the report or
4 evaluation will be relied upon.

5 (5) In all cases under sections 43-246.01 and 43-247, the office of
6 Inspector General of Nebraska Child Welfare may submit a written request
7 to the probation administrator for access to the records of juvenile
8 probation officers in a specific case. Upon a juvenile court order, the
9 records shall be provided to the Inspector General within five days for
10 the exclusive use in an investigation pursuant to the Office of Inspector
11 General of Nebraska Child Welfare Act. Nothing in this subsection shall
12 prevent the notification of death or serious injury of a juvenile to the
13 Inspector General of Nebraska Child Welfare pursuant to section 29 of
14 this act ~~43-4318~~ as soon as reasonably possible after the Office of
15 Probation Administration learns of such death or serious injury.

16 (6) In all cases under sections 43-246.01 and 43-247, the juvenile
17 court shall disseminate confidential record information to the Foster
18 Care Review Office pursuant to the Foster Care Review Act.

19 (7) Nothing in subsections (3), (5), and (6) of this section shall
20 be construed to restrict the dissemination of confidential record
21 information between any individual or public or private agency,
22 institute, facility, or clinic, except any such confidential record
23 information disseminated by the court of jurisdiction pursuant to this
24 section shall be for the exclusive and private use of those to whom it
25 was released and shall not be disseminated further without order of such
26 court.

27 (8)(a) Any records concerning a juvenile court petition filed
28 pursuant to subdivision (3)(c) of section 43-247 shall remain
29 confidential except as may be provided otherwise by law. Such records
30 shall be accessible to (i) the juvenile except as provided in subdivision
31 (b) of this subsection, (ii) the juvenile's counsel, (iii) the juvenile's

1 parent or guardian, and (iv) persons authorized by an order of a judge or
2 court.

3 (b) Upon application by the county attorney or by the director of
4 the facility where the juvenile is placed and upon a showing of good
5 cause therefor, a judge of the juvenile court having jurisdiction over
6 the juvenile or of the county where the facility is located may order
7 that the records shall not be made available to the juvenile if, in the
8 judgment of the court, the availability of such records to the juvenile
9 will adversely affect the juvenile's mental state and the treatment
10 thereof.

11 (9) Nothing in subsection (3), (5), or (6) of this section shall be
12 construed to restrict the immediate dissemination of a current picture
13 and information about a child who is missing from a foster care or out-
14 of-home placement. Such dissemination by the Office of Probation
15 Administration shall be authorized by an order of a judge or court. Such
16 information shall be subject to state and federal confidentiality laws
17 and shall not include that the child is in the care, custody, or control
18 of the Department of Health and Human Services or under the supervision
19 of the Office of Probation Administration.

20 (10) Any juvenile court order that places a juvenile on electronic
21 monitoring shall also state whether the data from such electronic
22 monitoring device shall be made available to a law enforcement agency
23 immediately upon request by such agency. For any juvenile subject to the
24 supervision of a probation officer, the name of the juvenile, the name of
25 the juvenile's probation officer, and any terms of probation included in
26 a juvenile court order otherwise open to inspection shall be provided to
27 the Nebraska Commission on Law Enforcement and Criminal Justice which
28 shall provide access to such information to law enforcement agencies
29 through the state's criminal justice information system.

30 **Sec. 71.** Section 50-401.01, Revised Statutes Cumulative Supplement,
31 2024, is amended to read:

1 50-401.01 (1) The Legislative Council shall have an executive board,
2 to be known as the Executive Board of the Legislative Council, which
3 shall consist of a chairperson, a vice-chairperson, and six members of
4 the Legislature, to be chosen by the Legislature at the commencement of
5 each regular session of the Legislature when the speaker is chosen, and
6 the Speaker of the Legislature. The Legislature at large shall elect two
7 of its members from legislative districts Nos. 1, 17, 30, 32 to 35, 37,
8 38, 40 to 44, 47, and 48, two from legislative districts Nos. 2, 3, 15,
9 16, 19, 21 to 29, 45, and 46, and two from legislative districts Nos. 4
10 to 14, 18, 20, 31, 36, 39, and 49. The Chairperson of the Committee on
11 Appropriations shall serve as a nonvoting ex officio member of the
12 executive board whenever the board is considering fiscal administration.

13 (2) The executive board shall:

14 (a) Supervise all services and service personnel of the Legislature
15 and may employ and fix compensation and other terms of employment for
16 such personnel as may be needed to carry out the intent and activities of
17 the Legislature or of the board, unless otherwise directed by the
18 Legislature, including the adoption of policies by the executive board
19 which permit (i) the purchasing of an annuity for an employee who retires
20 or (ii) the crediting of amounts to an employee's deferred compensation
21 account under section 84-1504. The payments to or on behalf of an
22 employee may be staggered to comply with other law; and

23 (b) Appoint persons to fill the positions of Legislative Fiscal
24 Analyst, Director of Research, and Revisor of Statutes ~~, and Legislative~~
25 ~~Auditor~~. The persons appointed to these positions shall have training and
26 experience as determined by the executive board and shall serve at the
27 pleasure of the executive board. ~~The Legislative Performance Audit~~
28 ~~Committee shall recommend the person to be appointed Legislative Auditor.~~
29 Their respective salaries shall be set by the executive board.

30 (3) Notwithstanding any other provision of law, the executive board
31 may contract to obtain legal, auditing, accounting, actuarial, or other

1 professional services or advice for or on behalf of the executive board,
2 the Legislative Council, the Legislature, or any member of the
3 Legislature. The providers of such services or advice shall meet or
4 exceed the minimum professional standards or requirements established or
5 specified by their respective professional organizations or licensing
6 entities or by federal law. Such contracts, the deliberations of the
7 executive board with respect to such contracts, and the work product
8 resulting from such contracts shall not be subject to review or approval
9 by any other entity of state government.

10 (4) The executive board may enter into information-sharing
11 agreements pursuant to sections 36 and 57 of this act.

12 **Sec. 72.** Section 50-402, Revised Statutes Cumulative Supplement,
13 2024, is amended to read:

14 50-402 The Legislative Council shall occupy and maintain offices in
15 the State Capitol.

16 It shall be the duty of the council:

17 (1) To collect information concerning the government and general
18 welfare of the state;

19 (2) To examine the effects of previously enacted statutes and
20 recommend amendments thereto;

21 (3) To deal with important issues of public policy and questions of
22 statewide interest;

23 (4) To prepare a legislative program in the form of bills or
24 otherwise as in its opinion the welfare of the state may require, to be
25 presented at the next session of the Legislature;

26 (5) To study federal aid to the state and its political subdivisions
27 and advise the Legislature of money, land, or buildings available from
28 the federal government, matching funds necessary, grants and aids, and
29 what new legislation will be needed;

30 (6) To establish and maintain a complete and efficient bill drafting
31 service for the purpose of aiding and assisting members of the

1 Legislature and the executive departments of the state in the preparation
2 of bills, resolutions, and measures and in drafting the same in proper
3 form, and for this purpose there shall be assigned to the council for
4 such work, rooms in the State Capitol conveniently situated in reference
5 to the legislative chamber;

6 (7) To provide, through the Revisor of Statutes, for the publication
7 of supplements and replacement volumes of the statutes of Nebraska;

8 (8) To provide, through the Division of Legislative Oversight, the
9 office of Inspector General for Nebraska Child Welfare, the office of
10 Inspector General for the Nebraska Correctional System, the Legislative
11 Audit Office, and any other offices or divisions established within the
12 Legislative Council, for both short-term and full-time oversight of
13 matters related to the operation of state government;

14 (9) ~~(8)~~ To provide, through the Executive Board of the Legislative
15 Council, for the development and maintenance of a publicly accessible,
16 indexed, digital Internet archive of closed-captioned video coverage of
17 the Legislature as provided in section 50-117; and

18 (10) ~~(9)~~ To set up subcommittees within the Legislative Council
19 ~~executive board~~ to carry out functions such as investigation of any area
20 which the council ~~it~~ may decide is in the public interest with power to
21 employ such additional personnel as may be needed to carry out the intent
22 and activities of the executive board or the Legislature.

23 **Sec. 73.** Section 50-406, Reissue Revised Statutes of Nebraska, is
24 amended to read:

25 50-406 (1) It is within the inherent power of the Legislature,
26 including the Legislative Council, the Legislative Oversight Committee,
27 and any standing committee of the Legislature, to secure needed
28 information in order to legislate, hold hearings, and administer oaths,
29 as the council or committee deems necessary, and to conduct
30 investigations of matters within the subject matter jurisdiction of the
31 council or committee. This power of inquiry is broad and indispensable.

1 (2) The Legislative Council may hold public hearings and may
2 administer oaths, issue subpoenas with the prior approval, by a majority
3 vote, of the Executive Board of the Legislative Council to issue
4 subpoenas in connection with the specific inquiry or investigation in
5 question, compel the attendance of witnesses and the production of any
6 papers, books, accounts, documents, and testimony, and cause the
7 depositions of witnesses to be taken in the manner prescribed by law for
8 taking depositions in civil actions in the district court.

9 (3) The Legislative Oversight Committee or a A standing committee of
10 the Legislature may hold public hearings, administer oaths, and gather
11 information. After receiving prior approval, by a majority vote, of the
12 Executive Board of the Legislative Council, the a-standing committee may
13 issue subpoenas to compel the attendance of witnesses and the production
14 of any papers, books, accounts, documents, and testimony and cause the
15 depositions of witnesses to be taken in the manner prescribed by law for
16 taking depositions in civil actions in the district court.

17 (4)(a) A special legislative investigative or oversight committee
18 may hold public hearings, administer oaths, and gather information
19 pursuant to a statute or legislative resolution that provides for a
20 specific legislative inquiry or investigation. In the case of a
21 resolution, such resolution shall have first been adopted by a majority
22 of the members of the Legislature during a legislative session or by a
23 majority of the members of the Executive Board of the Legislative Council
24 during the interim between legislative sessions.

25 (b) If authorized to issue subpoenas by statute or by a resolution
26 described in subdivision (4)(a) of this section, a special legislative
27 investigative or oversight committee may issue subpoenas to compel the
28 attendance of witnesses and the production of any papers, books,
29 accounts, documents, and testimony and cause the depositions of witnesses
30 to be taken in the manner prescribed by law for taking depositions in
31 civil actions in the district court.

1 (c) A resolution or statute creating a special legislative
2 investigative or oversight committee may prescribe limitations on the
3 authority granted by this section.

4 (5) When authorized to issue subpoenas under this section, the
5 council or a committee may require any state agency, political
6 subdivision, or person to provide information relevant to the council's
7 or committee's work, and the state agency, political subdivision, or
8 person shall:

9 (a) Appear at a hearing on the date set in the subpoena; and

10 (b) Provide the information requested within thirty days after the
11 request except as provided for in the subpoena.

12 (6) Litigation to compel or quash compliance with authority
13 exercised pursuant to this section and section 50-407 shall be advanced
14 on the trial docket and heard and decided by the court as quickly as
15 possible. The court shall issue its decision no later than twenty days
16 after the filing of the application or petition or a motion to quash,
17 whichever is filed first. Either party may appeal to the Court of Appeals
18 within ten days after a decision is rendered.

19 (7) The district court of Lancaster County has jurisdiction over all
20 litigation arising under this section and section 50-407. In all such
21 litigation, the Executive Board of the Legislative Council shall provide
22 for legal representation for the council or committee.

23 **Sec. 74.** Section 50-406.01, Reissue Revised Statutes of Nebraska, is
24 amended to read:

25 50-406.01 (1)(a) If a member of the Legislature, the Public Counsel,
26 the Inspector General of Nebraska Child Welfare, the Inspector General of
27 the Nebraska Correctional System, or the Legislative Auditor presents a
28 newly constituted Legislature with a subpoena issued pursuant to section
29 50-406 or section 18, 33, 54, or 94 of this act during a previous
30 legislative biennium and such subpoena is still pending:

31 (i) The Executive Board of the Legislative Council shall vote to

1 determine whether to renew the subpoena; and

2 (ii) If the subpoena was issued by the Legislative Oversight
3 Committee or a standing committee, such committee shall also vote to
4 determine whether to renew the subpoena.

5 (b) The vote or votes required in subdivision (1)(a) of this section
6 shall be taken no later than ten days after the day the regular session
7 of the Legislature commences as provided in Article III, section 10, of
8 the Constitution of Nebraska.

9 (c) If a majority of the members of the Executive Board of the
10 Legislative Council and, if applicable, of the committee, are in favor of
11 renewing the subpoena, the subpoena is renewed and relates back to its
12 previous issuance and such subpoena shall be considered to have been in
13 full force and effect for such entire period.

14 (2) The Legislature has the constitutional authority to determine
15 the rules of its proceedings. The question of the referencing of an
16 investigation or inquiry is not justiciable and cannot be challenged or
17 invalidated in a judicial proceeding.

18 **Sec. 75.** Section 50-407, Reissue Revised Statutes of Nebraska, is
19 amended to read:

20 50-407 (1) In case of disobedience on the part of any person,
21 including a representative of a state agency or political subdivision, to
22 comply with any subpoena issued pursuant to section 50-406 or in case of
23 the refusal of any witness to testify on any matters regarding which the
24 witness may be lawfully interrogated, the Legislative Council, the
25 Legislative Oversight Committee, or the standing committee or special
26 legislative investigative or oversight committee which issued the
27 subpoena shall, at the hearing at which the person was subpoenaed to
28 appear, ~~hold a vote on whether~~ to find the person in contempt or unless
29 ~~the council or committee votes~~ to find that the failure to comply or
30 refusal to testify was not willful.

31 (2) If the council or committee finds a person in contempt as

1 provided in subsection (1) of this section, the council or committee may,
2 by application or petition to the district court of Lancaster County,
3 request the court to compel obedience by proceedings for contempt as in
4 the case of disobedience of the requirements of a subpoena issued from
5 such court or a refusal to testify therein. The application or petition
6 shall be filed by the chairperson of the Executive Board of the
7 Legislative Council, and in the case of the Legislative Oversight
8 Committee or a standing or special legislative investigative or oversight
9 committee, such filing shall be joined by the chairperson of such
10 committee.

11 (3) If a witness who has been subpoenaed pursuant to section 50-406
12 or section 18, 33, 54, or 94 of this act refuses to testify before the
13 council or a committee on the basis of the privilege against self-
14 incrimination, a court order may be requested pursuant to sections
15 29-2011.02 and 29-2011.03. In the case of a proceeding before the
16 Legislative Council, the request shall be filed by the chairperson of the
17 Executive Board of the Legislative Council. In the case of a proceeding
18 before the Legislative Oversight Committee, a standing committee, or a
19 special legislative investigative or oversight committee, the request
20 shall be filed by the chairperson of such committee.

21 **Sec. 76.** Section 50-408, Reissue Revised Statutes of Nebraska, is
22 amended to read:

23 50-408 Each witness who appears before the Legislative Council, the
24 Legislative Oversight Committee, any standing committee, or any special
25 legislative investigative or oversight committee by subpoena of such
26 council or committee, other than a state officer or employee, shall
27 receive for attendance the fees provided for witnesses in civil cases in
28 courts of record and mileage as provided in section 81-1176, which shall
29 be audited and paid upon the presentation of proper vouchers sworn to by
30 such witness and approved by the ~~secretary~~ and chairperson of the
31 Executive Board of the Legislative Council ~~council~~.

1 **Sec. 77.** Section 50-409, Reissue Revised Statutes of Nebraska, is
2 amended to read:

3 50-409 Each officer, board, commission, or department of state
4 government or any local government shall make such studies for and
5 furnish information to the Legislative Council, including any division
6 established within the Legislative Council, council as the council it may
7 require and as can be made within the limits of its appropriation.
8 Requests for information made under this section shall not be subject to
9 the procedures for public record requests provided in sections 84-712 to
10 84-712.09.

11 **Sec. 78.** Section 50-410, Reissue Revised Statutes of Nebraska, is
12 amended to read:

13 50-410 The council shall meet at least once in each biennium. One
14 meeting of the entire council shall be held at the call of the
15 chairperson of the Executive Board of the Legislative Council ~~chairman~~
16 not less than thirty nor more than sixty days prior to the next regular
17 session of the Legislature. Twenty-five members shall constitute a
18 quorum, but a smaller number may meet and may compel the attendance of
19 members in order to secure a quorum.

20 **Sec. 79.** Section 50-416, Reissue Revised Statutes of Nebraska, is
21 amended to read:

22 50-416 (1) The office of Legislative Research Office is established
23 within the Legislative Council. The office shall provide nonpartisan
24 public policy and legal research for members of the Legislature and their
25 staffs and maintain a legislative reference library for the use of
26 members of the Legislature and their staffs. The Director of Research
27 shall be responsible for hiring, firing, and supervising the research
28 office staff.

29 (2) At the request of the Director of Research, the Executive Board
30 of the Legislative Council may issue subpoenas as provided in subsection
31 (2) of section 50-406 for information related to a research request from

1 the Legislative Research Office pursuant to this section.

2 **Sec. 80.** Section 50-418, Reissue Revised Statutes of Nebraska, is
3 amended to read:

4 50-418 (1) There shall be established within the Legislative Council
5 the office of Legislative Fiscal Office Analyst. The Legislative Fiscal
6 Analyst shall be responsible for hiring, firing, and supervising the
7 fiscal office staff , with the approval of the Executive Board of the
8 Legislative Council, may employ necessary assistants.

9 (2) The Appropriations Committee shall determine the budgeting and
10 related needs of each agency of state government before and during each
11 session of the Legislature for the use of the Legislature. The committee,
12 under the direction of the Executive Board of the Legislative Council,
13 shall secure sufficient personnel and funds for the operation of the
14 staff to go physically into each agency of state government and by
15 observation and contact be able to defend and substantiate its
16 recommendation and to accomplish the objective stated in this section.

17 **Sec. 81.** Section 50-420, Reissue Revised Statutes of Nebraska, is
18 amended to read:

19 50-420 (1) Each officer, board, commission, and department of state
20 government, including the Accounting Administrator of the Department of
21 Administrative Services, shall furnish to the Legislative Fiscal Analyst,
22 upon request, any information in its possession, including records
23 received from other officers, boards, commissions, or departments of
24 state government, whether such information is retained in computer files
25 or otherwise, if such information is directly related to the performance
26 of the official duties of the Legislative Fiscal Analyst under sections
27 50-418 to 50-420.

28 (2) At the request of the Legislative Fiscal Analyst, and after
29 receiving prior approval by a majority vote of the Executive Board of the
30 Legislative Council, the Appropriations Committee of the Legislature may
31 issue subpoenas as provided in subsection (3) of section 50-406 for

1 information related to a request from the Legislative Fiscal Analyst
2 pursuant to this section.

3 **Sec. 82.** Section 50-1201, Reissue Revised Statutes of Nebraska, is
4 amended to read:

5 50-1201 Sections 50-1201 to 50-1215 and section 94 of this act shall
6 be known and may be cited as the Legislative Performance Audit Act.

7 **Sec. 83.** Section 50-1202, Reissue Revised Statutes of Nebraska, is
8 amended to read:

9 50-1202 (1) The Legislature hereby finds and declares that pursuant
10 to section 50-402 it is the duty of the Legislative Council to do
11 independent assessments of the performance of state government
12 organizations, programs, activities, and functions in order to provide
13 information to improve public accountability and facilitate
14 decisionmaking by parties with responsibility to oversee or initiate
15 corrective action.

16 (2) The purpose of the Legislative Performance Audit Act is to
17 provide for a system of performance audits to be conducted by the ~~office~~
18 ~~of~~ Legislative Audit Office as directed by the Legislative Oversight
19 ~~Performance Audit~~ Committee.

20 (3) It is not the purpose of the act to interfere with the duties of
21 the Public Counsel or the Legislative Fiscal Analyst or to interfere with
22 the statutorily defined investigative responsibilities or prerogative of
23 any executive state officer, agency, board, bureau, commission,
24 association, society, or institution, except that the act shall not be
25 construed to preclude a performance audit of an agency on the basis that
26 another agency has the same responsibility. The act shall not be
27 construed to interfere with or supplant the responsibilities or
28 prerogative of the Governor to monitor and report on the performance of
29 the agencies, boards, bureaus, commissions, associations, societies, and
30 institutions under his or her administrative direction.

31 **Sec. 84.** Section 50-1203, Reissue Revised Statutes of Nebraska, is

1 amended to read:

2 50-1203 For purposes of the Legislative Performance Audit Act:

3 (1) Agency means any department, board, commission, or other
4 governmental unit of the State of Nebraska acting or purporting to act by
5 reason of connection with the State of Nebraska, including the Office of
6 Probation Administration and the Office of Public Guardian, but does not
7 include (a) any court, (b) the Governor or his or her personal staff, (c)
8 any political subdivision or entity thereof, or (d) any entity of the
9 federal government;

10 (2) Audit report means the report released by the committee at the
11 conclusion of a performance audit;

12 (3) (2) Auditor of Public Accounts means the Auditor of Public
13 Accounts whose powers and duties are prescribed in section 84-304;

14 (4) (3) Business day means a day on which state offices are open for
15 regular business;

16 (5) (4) Committee means the Legislative Oversight Performance Audit
17 Committee;

18 ~~(5) Committee report means the report released by the committee at~~
19 ~~the conclusion of a performance audit;~~

20 (6) Legislative Auditor means the Legislative Auditor appointed by
21 ~~the Executive Board of the Legislative Council~~ under section 50-1204
22 ~~50-401.01;~~

23 (7) Majority vote means a vote by the majority of the committee's
24 members;

25 (8) Office means the ~~office of~~ Legislative Audit Office;

26 (9) Performance audit means an objective and systematic examination
27 of evidence for the purpose of providing an independent assessment of the
28 performance of a government organization, program, activity, or function
29 in order to provide information to improve public accountability and
30 facilitate decisionmaking by parties with responsibility to oversee or
31 initiate corrective action. Performance audits may have a variety of

1 objectives, including the assessment of a program's effectiveness and
2 results, economy and efficiency, internal control, and compliance with
3 legal or other requirements;

4 (10) Preaudit inquiry means an investigatory process during which
5 the office gathers and examines evidence to determine if a performance
6 audit topic has merit;

7 (11) Tax incentive performance audit means an evaluation of a tax
8 incentive program pursuant to section 50-1209; and

9 (12) Working papers means those documents containing evidence to
10 support the office's findings, opinions, conclusions, and judgments and
11 includes planning documents and the collection of evidence prepared or
12 obtained by the office during the performance audit or preaudit inquiry.

13 **Sec. 85.** Section 50-1204, Reissue Revised Statutes of Nebraska, is
14 amended to read:

15 50-1204 (1) The Legislative Audit Office is established within the
16 Division of Legislative Oversight. The office shall conduct performance
17 audits. The Legislative Auditor shall be appointed by the Director of
18 Legislative Oversight with approval from the chairperson of the Executive
19 Board of the Legislative Council and the chairperson of the committee.
20 The Legislative Auditor shall employ such performance audit and support
21 staff as the Legislative Auditor deems necessary to carry out the duties
22 of the office within the amount available by appropriation through the
23 Division of Legislative Oversight for the Legislative Audit Office. The
24 Legislative Auditor shall be subject to the control and supervision of
25 the Director of Legislative Oversight, except that removal of the
26 Legislative Auditor shall require approval of the chairperson of the
27 committee. The Legislative Auditor may also be removed by a two-thirds
28 majority vote of the committee. The Legislative Performance Audit
29 Committee is hereby established as a special legislative committee to
30 exercise the authority and perform the duties provided for in the
31 Legislative Performance Audit Act. The committee shall be composed of the

~~1 Speaker of the Legislature, the chairperson of the Executive Board of the
2 Legislative Council, the chairperson of the Appropriations Committee of
3 the Legislature, and four other members of the Legislature to be chosen
4 by the Executive Board of the Legislative Council. The executive board
5 shall ensure that the Legislative Performance Audit Committee includes
6 adequate geographic representation. The chairperson and vice-chairperson
7 of the Legislative Performance Audit Committee shall be elected by
8 majority vote. For purposes of tax incentive performance audits
9 authorized in section 50-1209, the committee shall include as nonvoting
10 members the chairperson of the Revenue Committee of the Legislature or
11 his or her designee and one other member of the Revenue Committee, as
12 selected by the Revenue Committee. The Legislative Performance Audit
13 Committee shall be subject to all rules prescribed by the Legislature.
14 The committee shall be reconstituted at the beginning of each Legislature
15 and shall meet as needed.~~

16 (2) The Legislative Auditor shall ensure that performance audit work
17 conducted by the office conforms with performance audit standards
18 contained in the Government Auditing Standards (2024 2018 Revision) as
19 required in section 50-1205.01. ~~The office shall be composed of the
20 Legislative Auditor and other employees of the Legislature employed to
21 conduct performance audits.~~ The office shall be the custodian of all
22 records generated by the ~~committee or~~ office except as provided by
23 section 50-1213, subsection (11) of section 77-2711, or subdivision (10)
24 (a) of section 77-27,119. The office shall inform the Legislative Fiscal
25 Analyst of its activities and consult with him or her as needed. The
26 office shall operate under the general direction of the Director of
27 Legislative Oversight and the committee.

28 **Sec. 86.** Section 50-1205, Reissue Revised Statutes of Nebraska, is
29 amended to read:

30 50-1205 The committee shall:

31 (1) Adopt, by majority vote, procedures consistent with the

1 Legislative Performance Audit Act to govern the business of the committee
2 and the conduct of performance audits;

3 (2) Ensure that performance audits undertaken ~~done~~ by the office
4 ~~committee~~ are not undertaken based on or influenced by special or
5 partisan interests;

6 (3) Review performance audit requests and select, by majority vote,
7 agencies or agency programs for performance audit;

8 (4) Review, amend, if necessary, and approve a scope statement and
9 an audit plan for each performance audit;

10 (5) Respond to inquiries regarding performance audits;

11 (6) Inspect or approve the inspection of the premises, or any parts
12 thereof, of any agency or any property owned, leased, or operated by an
13 agency as frequently as is necessary in the opinion of the committee to
14 carry out a performance audit or preaudit inquiry;

15 (7) Inspect and examine, or approve the inspection and examination
16 of, the records and documents of any agency as a part of a performance
17 audit or preaudit inquiry;

18 (8) At the request of the Legislative Auditor, issue subpoenas,
19 enforceable by action in an appropriate court, to compel any person to
20 appear, give sworn testimony, or produce documentary or other evidence
21 deemed relevant to a performance audit as provided in section 94 of this
22 act Pursuant to section 50-406, administer oaths, issue subpoenas, compel
23 the attendance of witnesses and the production of any papers, books,
24 accounts, documents, and testimony, and cause the depositions of
25 witnesses either residing within or without the state to be taken in the
26 manner prescribed by law for taking depositions in civil actions in the
27 district court;

28 (9) Review completed ~~performance audit~~ reports prepared by the
29 office, together with comments from the evaluated agency, and adopt
30 recommendations and incorporate them into an audit ~~a committee~~ report;

31 (10) Release audit reports ~~the committee report~~ to the public and

1 distribute ~~them~~ it electronically to the Clerk of the Legislature with or
2 without benefit of a public hearing;

3 (11) Hold a public hearings ~~hearing~~, at the committee's discretion,
4 for the purpose of receiving testimony prior to issuance of audit reports
5 ~~the committee report~~;

6 (12) Establish a system to ascertain and monitor an agency's
7 implementation of the recommendations contained in audit reports ~~the~~
8 ~~committee report~~ and compliance with any statutory changes resulting from
9 the recommendations;

10 (13) Issue an annual report each September, to be prepared by the
11 Legislative Auditor and approved by the committee, summarizing
12 recommendations made pursuant to audit reports ~~of performance audits~~
13 during the previous fiscal year and the status of implementation of those
14 recommendations;

15 (14) Consult with the Director of Legislative Oversight and the
16 Legislative Auditor regarding the staffing and budgetary needs of the
17 office ~~and assist in presenting budget requests to the Appropriations~~
18 ~~Committee of the Legislature~~;

19 (15) Approve or reject, within the budgetary limits of the office,
20 contracts to retain consultants to assist with performance audits
21 requiring specialized knowledge or expertise. Requests for consultant
22 contracts shall be approved by the Legislative Auditor and presented to
23 the committee ~~Legislative Performance Audit Committee~~ by the Legislative
24 Auditor. A majority vote shall be required to approve consultant contract
25 requests. For purposes of section 50-1213, subsection (11) of section
26 77-2711, and subsections (10) through (13) of section 77-27,119, any
27 consultant retained to assist with a performance audit or preaudit
28 inquiry shall be considered an employee of the office during the course
29 of the contract; and

30 (16) At its discretion, and with the agreement of the Auditor of
31 Public Accounts, conduct joint fiscal or performance audits with the

1 Auditor of Public Accounts. The details of any joint audit shall be
2 agreed upon in writing by the committee and the Auditor of Public
3 Accounts.

4 **Sec. 87.** Section 50-1205.01, Reissue Revised Statutes of Nebraska,
5 is amended to read:

6 50-1205.01 (1) Except as provided in subsections (2) and (3) of this
7 section, performance audits done under the terms of the Legislative
8 Performance Audit Act shall be conducted in accordance with the generally
9 accepted government auditing standards for performance audits contained
10 in the Government Auditing Standards (2024 ~~2018~~ Revision), published by
11 the Comptroller General of the United States, Government Accountability
12 Office.

13 (2) Standards requiring continuing education for employees of the
14 office shall be met as practicable based on the availability of training
15 funds.

16 (3) The frequency of the required external quality control review
17 shall be determined by the committee.

18 (4) At the beginning of each biennial legislative session, the
19 Legislative Auditor shall create a plan for meeting such standards and
20 provide the plan to the chairperson of the committee ~~Legislative~~
21 ~~Performance Audit Committee~~.

22 **Sec. 88.** Section 50-1206, Reissue Revised Statutes of Nebraska, is
23 amended to read:

24 50-1206 (1) Requests for performance audits may be made by the
25 Governor, any other constitutional officer of the State of Nebraska, any
26 member of the Legislature ~~a legislator,~~ the Director of Legislative
27 Oversight, the Legislative Auditor, the Legislative Fiscal Analyst, or
28 the Director of Research of the Legislature.

29 (2) Performance audit requests shall be submitted to the committee
30 chairperson or Legislative Auditor by letter or on a form developed by
31 the Legislative Auditor.

1 (3) When considering a performance audit request, if the committee
2 determines that the request has potential merit but insufficient
3 information is available, it may, by majority vote, instruct the
4 Legislative Auditor to conduct a preaudit inquiry.

5 (4) Upon completion of the preaudit inquiry, the committee
6 chairperson shall place the request on the agenda for the committee's
7 next meeting and shall notify the request sponsor of that action.

8 (5) Tax incentive performance audits shall be initiated as provided
9 in section 50-1209.

10 **Sec. 89.** Section 50-1209, Revised Statutes Cumulative Supplement,
11 2024, is amended to read:

12 50-1209 (1) Tax incentive performance audits shall be conducted by
13 the office pursuant to this section on the following tax incentive
14 programs:

- 15 (a) The Beginning Farmer Tax Credit Act;
- 16 (b) The Imagine Nebraska Act;
- 17 (c) The Nebraska Advantage Microenterprise Tax Credit Act;
- 18 (d) The Nebraska Advantage Research and Development Act;
- 19 (e) The Nebraska Advantage Rural Development Act;
- 20 (f) The Nebraska Job Creation and Mainstreet Revitalization Act;
- 21 (g) The New Markets Job Growth Investment Act;
- 22 (h) The Urban Redevelopment Act; and
- 23 (i) Any other tax incentive program created by the Legislature for
24 the purpose of recruitment or retention of businesses in Nebraska. In
25 determining whether a future tax incentive program is enacted for the
26 purpose of recruitment or retention of businesses, the office shall
27 consider legislative intent, including legislative statements of purpose
28 and goals, and may also consider whether the tax incentive program is
29 promoted as a business incentive by the Department of Economic
30 Development or other relevant state agency.

31 (2) The office shall develop a schedule for conducting tax incentive

1 performance audits and shall update the schedule annually. The schedule
2 shall ensure that each tax incentive program is reviewed at least once
3 every five years.

4 (3) Each tax incentive performance audit conducted by the office
5 pursuant to this section shall include the following:

6 (a) If applicable, an ~~An~~ analysis of whether the tax incentive
7 program is meeting the following goals:

8 (i) Strengthening the state's economy overall by:

9 (A) Attracting new business to the state;

10 (B) Expanding existing businesses;

11 (C) Increasing employment, particularly employment of full-time
12 workers. The analysis shall consider whether the job growth in those
13 businesses receiving tax incentives is at least ten percent above
14 industry averages;

15 (D) Creating high-quality jobs; and

16 (E) Increasing business investment;

17 (ii) Revitalizing rural areas and other distressed areas of the
18 state;

19 (iii) Diversifying the state's economy and positioning Nebraska for
20 the future by stimulating entrepreneurial firms, high-tech firms, and
21 renewable energy firms; and

22 (iv) Any other program-specific goals found in the statutes for the
23 tax incentive program being evaluated;

24 (b) An analysis of the economic and fiscal impacts of the tax
25 incentive program. The analysis may take into account the following
26 considerations in addition to other relevant factors:

27 (i) The costs per full-time worker. When practical and applicable,
28 such costs shall be considered in at least the following two ways:

29 (A) By an estimation including the minimum investment required to
30 qualify for benefits; and

31 (B) By an estimation including all investment;

1 (ii) The extent to which the tax incentive changes business
2 behavior;

3 (iii) The results of the tax incentive for the economy of Nebraska
4 as a whole. This consideration includes both direct and indirect impacts
5 generally and any effects on other Nebraska businesses; and

6 (iv) A comparison to the results of other economic development
7 strategies with similar goals, other policies, or other incentives;

8 (c) An assessment of whether adequate protections are in place to
9 ensure the fiscal impact of the tax incentive does not increase
10 substantially beyond the state's expectations in future years;

11 (d) An assessment of the fiscal impact of the tax incentive on the
12 budgets of local governments, if applicable; and

13 (e) Recommendations for any changes to statutes or rules and
14 regulations that would allow the tax incentive program to be more easily
15 evaluated in the future, including changes to data collection, reporting,
16 sharing of information, and clarification of goals.

17 (4) For purposes of this section:

18 (a) Distressed area means an area of substantial unemployment as
19 determined by the Department of Labor pursuant to the Nebraska Workforce
20 Innovation and Opportunity Act;

21 (b) Full-time worker means an individual (i) who usually works
22 thirty-five hours per week or more, (ii) whose employment is reported to
23 the Department of Labor on two consecutive quarterly wage reports, and
24 (iii) who earns wages equal to or exceeding the state minimum wage;

25 (c) High-quality job means a job that:

26 (i) Averages at least thirty-five hours of employment per week;

27 (ii) Is reported to the Department of Labor on two consecutive
28 quarterly wage reports; and

29 (iii) Earns wages that are at least ten percent higher than the
30 statewide industry sector average and that equal or exceed:

31 (A) One hundred ten percent of the Nebraska average weekly wage if

1 the job is in a county with a population of less than one hundred
2 thousand inhabitants; or

3 (B) One hundred twenty percent of the Nebraska average weekly wage
4 if the job is in a county with a population of one hundred thousand
5 inhabitants or more;

6 (d) High-tech firm means a person or unitary group that has a
7 location with any of the following four-digit code designations under the
8 North American Industry Classification System as assigned by the
9 Department of Labor: 3341, 3342, 3344, 3345, 3364, 5112, 5182, 5191,
10 5413, 5415, or 5417;

11 (e) Nebraska average weekly wage means the most recent average
12 weekly wage paid by all employers in all counties in Nebraska as reported
13 by the Department of Labor by October 1 of each year;

14 (f) New business means a person or unitary group participating in a
15 tax incentive program that did not pay income taxes or wages in the state
16 more than two years prior to submitting an application under the tax
17 incentive program. For any tax incentive program without an application
18 process, new business means a person or unitary group participating in
19 the program that did not pay income taxes or wages in the state more than
20 two years prior to the first day of the first tax year for which a tax
21 benefit was earned;

22 (g) Renewable energy firm means a person or unitary group that has a
23 location with any of the following six-digit code designations under the
24 North American Industry Classification System as assigned by the
25 Department of Labor: 111110, 111150, 111199, 111930, 111991, 113310,
26 221111, 221113, 221114, 221115, 221116, 221117, 221118, 221121, 221122,
27 221330, 237130, 237990, 325193, 331511, 331512, 331513, 331523, 331524,
28 331529, 332111, 332112, 333511, 333611, 333612, 333613, 334519, 423830,
29 482111, 484230, 488510, 541360, 541370, 541620, 541690, 541714, or
30 541715;

31 (h) Rural area means any village or city of the second class in this

1 state or any county in this state with fewer than twenty-five thousand
2 residents; and

3 (i) Unitary group has the same meaning as in section 77-2734.04.

4 **Sec. 90.** Section 50-1210, Reissue Revised Statutes of Nebraska, is
5 amended to read:

6 50-1210 (1)(a) Upon completion of a performance audit, the office
7 shall prepare a report of its findings and recommendations for action.
8 Except as provided in subdivision (b) of this subsection, the Legislative
9 Auditor shall provide the office's report concurrently to the committee,
10 Director of Legislative Oversight, agency director, and Legislative
11 Fiscal Analyst. The committee may, by majority vote, release the office's
12 report or portions thereof to other individuals, with the stipulation
13 that the released material shall be kept confidential.

14 (b) To protect taxpayer confidentiality, for tax incentive
15 performance audits conducted under section 50-1209, the Legislative
16 Auditor may provide the office's report to the agency director up to five
17 business days prior to providing it to the committee, Director of
18 Legislative Oversight, and Legislative Fiscal Analyst.

19 (2) When the Legislative Auditor provides the report to the
20 Legislative Fiscal Analyst, the Legislative Fiscal Analyst shall issue an
21 opinion to the committee indicating whether the office's recommendations
22 can be implemented by the agency within its current appropriation.

23 (3) When the Legislative Auditor provides the report to the agency,
24 the agency shall have twenty business days from the date of receipt of
25 the report to provide a written response. Any written response received
26 from the agency shall be attached to the audit ~~committee~~ report. The
27 agency shall not release any part of the report to any person outside the
28 agency, except that an agency may discuss the report with the Governor.
29 The Governor shall not release any part of the report.

30 (4) Following receipt of any written response from the agency, the
31 Legislative Auditor shall prepare a brief written summary of the

1 response, including a description of any significant disagreements the
2 agency has with the office's report or recommendations.

3 **Sec. 91.** Section 50-1211, Reissue Revised Statutes of Nebraska, is
4 amended to read:

5 50-1211 (1) The committee shall review the office's report, the
6 agency's response, the Legislative Auditor's summary of the agency's
7 response, and the Legislative Fiscal Analyst's opinion prescribed in
8 section 50-1210. The committee may amend and shall adopt or reject each
9 recommendation in the report and indicate whether each recommendation can
10 be implemented by the agency within its current appropriation. The
11 adopted recommendations shall be incorporated into an audit ~~a committee~~
12 report, which shall be approved by majority vote.

13 (2) The audit ~~committee~~ report shall include, but not be limited to,
14 the office's report, the agency's written response to the report, the
15 Legislative Auditor's summary of the agency response, the committee's
16 recommendations, and any opinions of the Legislative Fiscal Analyst
17 regarding whether the committee's recommendations can be implemented by
18 the agency within its current appropriation.

19 (3) The committee may decide, by majority vote, to defer adoption of
20 an audit ~~a committee~~ report pending a public hearing. If the committee
21 elects to schedule a public hearing, the committee ~~it~~ shall release, for
22 review by interested persons prior to the hearing, the office's report,
23 the agency's response, the Legislative Auditor's summary of the agency's
24 response, and any opinions of the Legislative Fiscal Analyst. The public
25 hearing shall be held not less than ten nor more than twenty business
26 days following release of the materials.

27 (4) When the committee elects to schedule a hearing, a summary of
28 the testimony received at the hearing shall be attached to the audit
29 ~~committee~~ report as an addendum. A transcript of the testimony received
30 at the hearing shall be on file with the committee and available for
31 public inspection. Unless the committee votes to delay release of the

1 audit ~~committee~~ report, the report shall be released within forty
2 business days after the public hearing.

3 (5) Once the committee has approved an audit ~~its~~ report, the
4 committee shall, by majority vote, cause the audit ~~committee~~ report to be
5 released to all members of the Legislature and to the public. The report
6 submitted to the members of the Legislature shall be submitted
7 electronically. The committee may, by majority vote, release the audit
8 ~~committee~~ report or portions thereof prior to public release of the
9 report. Each tax incentive performance audit report may ~~shall~~ also be
10 presented at a joint hearing of the Appropriations Committee and Revenue
11 Committee of the Legislature.

12 **Sec. 92.** Section 50-1212, Reissue Revised Statutes of Nebraska, is
13 amended to read:

14 50-1212 (1) Within forty business days following the release of the
15 audit ~~committee~~ report, the agency shall provide to the committee a
16 written implementation plan describing the action planned and timeframe
17 for accomplishment of each of the recommendations contained in the audit
18 ~~committee~~ report, except that the committee may waive such requirement
19 for tax incentive performance audits.

20 (2) The agency director shall make every effort to fully implement
21 the recommendations that can be implemented within the limits of the
22 agency's current appropriation. For those recommendations which require
23 additional appropriations or the drafting of legislation, the committee
24 shall work with the appropriate standing committee of the Legislature to
25 ensure legislation is introduced.

26 (3) The committee ~~Legislative Performance Audit Committee~~ shall
27 establish a system to ascertain and monitor agency conformity to the
28 recommendations contained in the audit ~~committee~~ report and compliance
29 with any statutory changes resulting from the report recommendations.

30 (4) Based on the tax incentive performance audit report, the Revenue
31 Committee of the Legislature shall electronically report its

1 recommendation about whether to extend the sunset date for the audited
2 program to the Legislature by December 1 of the year prior to such
3 program's sunset date.

4 **Sec. 93.** Section 50-1213, Reissue Revised Statutes of Nebraska, is
5 amended to read:

6 50-1213 (1) The office shall have access to any and all information
7 and records, confidential or otherwise, of any agency, in whatever form
8 they may be, including, but not limited to, direct access to all agency
9 databases containing relevant program information or data, unless the
10 office is denied such access by federal law or explicitly named and
11 denied such access by state law. If such a law exists, the agency shall
12 provide the committee with a written explanation of its inability to
13 produce such information and records and, after reasonable accommodations
14 are made, shall grant the office access to all information and records or
15 portions thereof that can legally be reviewed. Accommodations that may be
16 negotiated between the agency and the committee include, but are not
17 limited to, a requirement that specified information or records be
18 reviewed on agency premises and a requirement that specified working
19 papers be securely stored on agency premises.

20 (2) Upon receipt of a written request by the office for access to
21 any information or records, the agency shall provide to the office as
22 soon as is practicable and without delay, but not more than three
23 business days after actual receipt of the request, either (a) the
24 requested materials or (b)(i) if there is a legal basis for refusal to
25 comply with the request, a written denial of the request together with
26 the information specified in subsection (1) of this section or (ii) if
27 the entire request cannot with reasonable good faith efforts be fulfilled
28 within three business days after actual receipt of the request due to the
29 significant difficulty or the extensiveness of the request, a written
30 explanation, including the earliest practicable date for fulfilling the
31 request, and an opportunity for the office to modify or prioritize the

1 items within the request. No delay due to the significant difficulty or
2 the extensiveness of a request for access to information or records shall
3 exceed three calendar weeks after actual receipt of such request by any
4 agency. The three business days shall be computed by excluding the day
5 the request is received, after which the designated period of time begins
6 to run. Business day does not include a Saturday, a Sunday, or a day
7 during which the offices of the custodian of the public records are
8 closed.

9 (3) Except as provided in this section, any confidential information
10 or confidential records shared with the office shall remain confidential
11 and shall not be shared by an employee of the office with any person who
12 is not an employee of the office, including any member of the committee.

13 (4) Except as provided in subsection (11) of section 77-2711 and
14 subdivision (10)(d) of section 77-27,119, if any employee ~~or former~~
15 ~~employee~~ of the office knowingly divulges or makes known, in any manner
16 not permitted by law, confidential information or confidential records,
17 it shall be grounds for dismissal ~~he or she shall be guilty of a Class~~
18 ~~III misdemeanor and, in the case of an employee, shall be dismissed.~~

19 (5) No proceeding of the committee or opinion or expression of any
20 member of the committee or office employee acting at the direction of the
21 committee shall be reviewable in any court. No member of the committee or
22 office employee acting at the direction of the committee shall be
23 required to testify or produce evidence in any judicial or administrative
24 proceeding concerning matters relating to the work of the office except
25 in a proceeding brought to enforce the Legislative Performance Audit Act.

26 (6) Pursuant to sections 84-712 and 84-712.01 and subdivision (5) of
27 section 84-712.05, the working papers obtained or produced by the
28 committee or office and correspondence between the office and an audited
29 agency shall not be considered public records. The committee may make the
30 working papers available for purposes of an external quality control
31 review as required by generally accepted government auditing standards.

1 However, any reports made from such external quality control review shall
2 not make public any information which would be considered confidential
3 when in the possession of the office.

4 **Sec. 94.** (1) At the request of the Legislative Auditor, and after
5 receiving prior approval by a majority vote of the Executive Board of the
6 Legislative Council, the committee may issue subpoenas in connection with
7 a performance audit being conducted by the office to compel the
8 production of records and information and sworn testimony or other
9 evidence relevant to such performance audit. The committee shall vote to
10 determine whether to issue a subpoena within ten days after receipt of
11 the request.

12 (2) When authorized to issue subpoenas under this section, the
13 committee may require any employees of any agency to provide the records
14 or information requested within thirty days after the request, except as
15 otherwise provided for in the subpoena, or to appear at a hearing on the
16 date set in the subpoena.

17 (3) Litigation to compel or quash compliance with the authority
18 exercised pursuant to this section shall be advanced on the trial docket
19 and heard and decided by the court as quickly as possible. The court
20 shall issue its decision no later than twenty days after the filing of
21 the application or petition or a motion to quash, whichever is filed
22 first. Either party may appeal to the Court of Appeals within ten days
23 after a decision is rendered.

24 (4) The district court of Lancaster County has jurisdiction over all
25 litigation arising under this section. In all such litigation, the
26 executive board shall provide for legal representation for the committee.

27 (5) In case of disobedience on the part of any employees of any
28 agency to comply with any subpoena issued pursuant to this section, the
29 committee shall vote on whether to find the person in contempt or to find
30 that the failure to comply was not willful.

31 (6) If the committee finds a person in contempt as provided in

1 subsection (5) of this section, the committee may, by application or
2 petition to the district court of Lancaster County, request that the
3 court compel obedience by proceedings for contempt as in the case of
4 disobedience of the requirements of a subpoena issued from such court.
5 The application or petition shall be filed by the chairperson of the
6 committee.

7 (7) A person required to provide information under this section
8 shall be paid the same fees and travel allowances and shall be accorded
9 the same privileges and immunities as are extended to witnesses in the
10 district courts of this state and shall also be entitled to have counsel
11 present while being questioned. Consistent with the Nebraska Rules of
12 Professional Conduct, counsel for the agency that is the subject of the
13 performance audit shall not represent a witness. A witness may request
14 that agency counsel be present while being questioned, but the agency
15 shall not require a witness to make such a request. If such a request is
16 made, the agency shall inform the witness that agency counsel does not
17 represent the witness. Any fees associated with counsel present under
18 this section shall not be the responsibility of the office or the
19 Legislative Council.

20 **Sec. 95.** Section 50-1303, Reissue Revised Statutes of Nebraska, is
21 amended to read:

22 50-1303 (1) The Government, Military and Veterans Affairs Committee
23 of the Legislature may randomly select and conduct an evaluation of any
24 board, commission, or similar entity. An evaluation conducted by the
25 committee shall include, but not be limited to, the following:

26 (a) A review of the basic assumptions underlying the creation of the
27 board, commission, or entity;

28 (b) A statement of the impact and effectiveness of the programs,
29 policies, services, or activities administered by, or under the
30 supervision of, the board, commission, or entity; and

31 (c) A recommendation as to whether the board, commission, or entity

1 should be terminated, continued, or modified.

2 (2) If the committee believes that a more extensive evaluation of a
3 board, commission, or entity is necessary, the chairperson of the
4 committee, on the committee's behalf, may request the Legislative
5 Oversight Performance Audit Committee to conduct a performance audit
6 pursuant to the Legislative Performance Audit Act. Nothing in this
7 section shall be construed to give requests for performance audits under
8 this section priority over other requests under consideration by the
9 Legislative Oversight Performance Audit Committee.

10 **Sec. 96.** Section 50-1304, Reissue Revised Statutes of Nebraska, is
11 amended to read:

12 50-1304 (1) All agencies, boards, commissions, and departments of
13 the state shall furnish such information, reports, aid, services, and
14 assistance as may be requested by any standing committee of the
15 Legislature in the performance of its duties. A standing committee may
16 issue subpoenas as provided in subsection (3) of section 50-406 to obtain
17 such information, reports, aid, services, and assistance.

18 (2) The Government, Military and Veterans Affairs Committee of the
19 Legislature shall use its staff and may also request assistance from the
20 Director of Research of the Legislature, the Legislative Fiscal Analyst,
21 or any other division within the Legislature as may be necessary in the
22 performance of the duties set forth in sections 50-1301 to 50-1304.

23 **Sec. 97.** Section 73-401, Reissue Revised Statutes of Nebraska, is
24 amended to read:

25 73-401 Except for long-term care facilities subject to the
26 jurisdiction of the state long-term care ombudsman pursuant to the Long-
27 Term Care Ombudsman Act, the contracting agency shall ensure that any
28 contract which a state agency enters into or renews which agrees that a
29 corporation, partnership, business, firm, governmental entity, or person
30 shall provide health and human services to individuals or service
31 delivery, service coordination, or case management on behalf of the State

1 of Nebraska shall contain a clause requiring the corporation,
2 partnership, business, firm, governmental entity, or person to submit to
3 the jurisdiction of the Public Counsel pursuant to the Office of Public
4 Counsel Act ~~under sections 81-8,240 to 81-8,254~~ with respect to the
5 provision of services under the contract.

6 **Sec. 98.** Section 77-2711, Revised Statutes Cumulative Supplement,
7 2024, is amended to read:

8 77-2711 (1)(a) The Tax Commissioner shall enforce sections
9 77-2701.04 to 77-2713 and may prescribe, adopt, and enforce rules and
10 regulations relating to the administration and enforcement of such
11 sections.

12 (b) The Tax Commissioner may prescribe the extent to which any
13 ruling or regulation shall be applied without retroactive effect.

14 (2) The Tax Commissioner may employ accountants, auditors,
15 investigators, assistants, and clerks necessary for the efficient
16 administration of the Nebraska Revenue Act of 1967 and may delegate
17 authority to his or her representatives to conduct hearings, prescribe
18 regulations, or perform any other duties imposed by such act.

19 (3)(a) Every seller, every retailer, and every person storing,
20 using, or otherwise consuming in this state property purchased from a
21 retailer shall keep such records, receipts, invoices, and other pertinent
22 papers in such form as the Tax Commissioner may reasonably require.

23 (b) Every such seller, retailer, or person shall keep such records
24 for not less than three years from the making of such records unless the
25 Tax Commissioner in writing sooner authorized their destruction.

26 (4) The Tax Commissioner or any person authorized in writing by him
27 or her may examine the books, papers, records, and equipment of any
28 person selling property and any person liable for the use tax and may
29 investigate the character of the business of the person in order to
30 verify the accuracy of any return made or, if no return is made by the
31 person, to ascertain and determine the amount required to be paid. In the

1 examination of any person selling property or of any person liable for
2 the use tax, an inquiry shall be made as to the accuracy of the reporting
3 of city and county sales and use taxes for which the person is liable
4 under the Local Option Revenue Act or sections 13-319, 13-324, 13-2813,
5 and 77-6403 and the accuracy of the allocation made between the various
6 counties, cities, villages, and municipal counties of the tax due. The
7 Tax Commissioner may make or cause to be made copies of resale or
8 exemption certificates and may pay a reasonable amount to the person
9 having custody of the records for providing such copies.

10 (5) The taxpayer shall have the right to keep or store his or her
11 records at a point outside this state and shall make his or her records
12 available to the Tax Commissioner at all times.

13 (6) In administration of the use tax, the Tax Commissioner may
14 require the filing of reports by any person or class of persons having in
15 his, her, or their possession or custody information relating to sales of
16 property, the storage, use, or other consumption of which is subject to
17 the tax. The report shall be filed when the Tax Commissioner requires and
18 shall set forth the names and addresses of purchasers of the property,
19 the sales price of the property, the date of sale, and such other
20 information as the Tax Commissioner may require.

21 (7) It shall be a Class I misdemeanor for the Tax Commissioner or
22 any official or employee of the Tax Commissioner, the State Treasurer, or
23 the Department of Administrative Services to make known in any manner
24 whatever the business affairs, operations, or information obtained by an
25 investigation of records and activities of any retailer or any other
26 person visited or examined in the discharge of official duty or the
27 amount or source of income, profits, losses, expenditures, or any
28 particular thereof, set forth or disclosed in any return, or to permit
29 any return or copy thereof, or any book containing any abstract or
30 particulars thereof to be seen or examined by any person not connected
31 with the Tax Commissioner. Nothing in this section shall be construed to

1 prohibit (a) the delivery to a taxpayer, his or her duly authorized
2 representative, or his or her successors, receivers, trustees, executors,
3 administrators, assignees, or guarantors, if directly interested, of a
4 certified copy of any return or report in connection with his or her tax,
5 (b) the publication of statistics so classified as to prevent the
6 identification of particular reports or returns and the items thereof,
7 (c) the inspection by the Attorney General, other legal representative of
8 the state, or county attorney of the reports or returns of any taxpayer
9 when either (i) information on the reports or returns is considered by
10 the Attorney General to be relevant to any action or proceeding
11 instituted by the taxpayer or against whom an action or proceeding is
12 being considered or has been commenced by any state agency or the county
13 or (ii) the taxpayer has instituted an action to review the tax based
14 thereon or an action or proceeding against the taxpayer for collection of
15 tax or failure to comply with the Nebraska Revenue Act of 1967 is being
16 considered or has been commenced, (d) the furnishing of any information
17 to the United States Government or to states allowing similar privileges
18 to the Tax Commissioner, (e) the disclosure of information and records to
19 a collection agency contracting with the Tax Commissioner pursuant to
20 sections 77-377.01 to 77-377.04, (f) the disclosure to another party to a
21 transaction of information and records concerning the transaction between
22 the taxpayer and the other party, (g) the disclosure of information
23 pursuant to section 77-27,195, 77-5731, 77-6837, 77-6839, or 77-6928, or
24 (h) the disclosure of information to the Department of Labor necessary
25 for the administration of the Employment Security Law, the Contractor
26 Registration Act, or the Employee Classification Act.

27 (8) Notwithstanding the provisions of subsection (7) of this
28 section, the Tax Commissioner may permit the Postal Inspector of the
29 United States Postal Service or his or her delegates to inspect the
30 reports or returns of any person filed pursuant to the Nebraska Revenue
31 Act of 1967 when information on the reports or returns is relevant to any

1 action or proceeding instituted or being considered by the United States
2 Postal Service against such person for the fraudulent use of the mails to
3 carry and deliver false and fraudulent tax returns to the Tax
4 Commissioner with the intent to defraud the State of Nebraska or to evade
5 the payment of Nebraska state taxes.

6 (9) Notwithstanding the provisions of subsection (7) of this
7 section, the Tax Commissioner may permit other tax officials of this
8 state to inspect the tax returns, reports, and applications filed under
9 sections 77-2701.04 to 77-2713, but such inspection shall be permitted
10 only for purposes of enforcing a tax law and only to the extent and under
11 the conditions prescribed by the rules and regulations of the Tax
12 Commissioner.

13 (10) Notwithstanding the provisions of subsection (7) of this
14 section, the Tax Commissioner may, upon request, provide the county board
15 of any county which has exercised the authority granted by section
16 81-3716 with a list of the names and addresses of the hotels located
17 within the county for which lodging sales tax returns have been filed or
18 for which lodging sales taxes have been remitted for the county's County
19 Visitors Promotion Fund under the Nebraska Visitors Development Act.

20 The information provided by the Tax Commissioner shall indicate only
21 the names and addresses of the hotels located within the requesting
22 county for which lodging sales tax returns have been filed for a
23 specified period and the fact that lodging sales taxes remitted by or on
24 behalf of the hotel have constituted a portion of the total sum remitted
25 by the state to the county for a specified period under the provisions of
26 the Nebraska Visitors Development Act. No additional information shall be
27 revealed.

28 (11)(a) Notwithstanding the provisions of subsection (7) of this
29 section, the Tax Commissioner shall, upon written request by the Auditor
30 of Public Accounts or the ~~office of~~ Legislative Audit Office, make tax
31 returns and tax return information open to inspection by or disclosure to

1 the Auditor of Public Accounts or employees of the ~~office of~~ Legislative
2 Audit Office for the purpose of and to the extent necessary in making an
3 audit of the Department of Revenue pursuant to section 50-1205 or 84-304.
4 Confidential tax returns and tax return information shall be audited only
5 upon the premises of the Department of Revenue. All audit work papers
6 pertaining to the audit of the Department of Revenue shall be stored in a
7 secure place in the Department of Revenue.

8 (b) No employee of the Auditor of Public Accounts or the ~~office of~~
9 Legislative Audit Office shall disclose to any person, other than another
10 Auditor of Public Accounts or office employee whose official duties
11 require such disclosure, any return or return information described in
12 the Nebraska Revenue Act of 1967 in a form which can be associated with
13 or otherwise identify, directly or indirectly, a particular taxpayer.

14 (c) Any person who violates the provisions of this subsection shall
15 be guilty of a Class I misdemeanor. For purposes of this subsection,
16 employee includes a former Auditor of Public Accounts or ~~office of~~
17 Legislative Audit Office employee.

18 (12) For purposes of this subsection and subsections (11) and (14)
19 of this section:

20 (a) Disclosure means the making known to any person in any manner a
21 tax return or return information;

22 (b) Return information means:

23 (i) A taxpayer's identification number and (A) the nature, source,
24 or amount of his or her income, payments, receipts, deductions,
25 exemptions, credits, assets, liabilities, net worth, tax liability, tax
26 withheld, deficiencies, over assessments, or tax payments, whether the
27 taxpayer's return was, is being, or will be examined or subject to other
28 investigation or processing or (B) any other data received by, recorded
29 by, prepared by, furnished to, or collected by the Tax Commissioner with
30 respect to a return or the determination of the existence or possible
31 existence of liability or the amount of liability of any person for any

1 tax, penalty, interest, fine, forfeiture, or other imposition or offense;
2 and

3 (ii) Any part of any written determination or any background file
4 document relating to such written determination; and

5 (c) Tax return or return means any tax or information return or
6 claim for refund required by, provided for, or permitted under sections
7 77-2701 to 77-2713 which is filed with the Tax Commissioner by, on behalf
8 of, or with respect to any person and any amendment or supplement
9 thereto, including supporting schedules, attachments, or lists which are
10 supplemental to or part of the filed return.

11 (13) Notwithstanding the provisions of subsection (7) of this
12 section, the Tax Commissioner shall, upon request, provide any
13 municipality which has adopted the local option sales tax under the Local
14 Option Revenue Act with a list of the names and addresses of the
15 retailers which have collected the local option sales tax for the
16 municipality. The request may be made annually and shall be submitted to
17 the Tax Commissioner on or before June 30 of each year. The information
18 provided by the Tax Commissioner shall indicate only the names and
19 addresses of the retailers. The Tax Commissioner may provide additional
20 information to a municipality so long as the information does not include
21 any data detailing the specific revenue, expenses, or operations of any
22 particular business.

23 (14)(a) Notwithstanding the provisions of subsection (7) of this
24 section, the Tax Commissioner shall, upon written request, provide an
25 individual certified under subdivision (b) of this subsection
26 representing a municipality which has adopted the local option sales and
27 use tax under the Local Option Revenue Act with confidential sales and
28 use tax returns and sales and use tax return information regarding
29 taxpayers that possess a sales tax permit and the amounts remitted by
30 such permitholders at locations within the boundaries of the requesting
31 municipality or with confidential business use tax returns and business

1 use tax return information regarding taxpayers that file a Nebraska and
2 Local Business Use Tax Return and the amounts remitted by such taxpayers
3 at locations within the boundaries of the requesting municipality. Any
4 written request pursuant to this subsection shall provide the Department
5 of Revenue with no less than ten business days to prepare the sales and
6 use tax returns and sales and use tax return information requested. The
7 individual certified under subdivision (b) of this subsection shall
8 review such returns and return information only upon the premises of the
9 department, except that such limitation shall not apply if the certifying
10 municipality has an agreement in effect under the Nebraska Advantage
11 Transformational Tourism and Redevelopment Act. In such case, the
12 individual certified under subdivision (b) of this subsection may request
13 that copies of such returns and return information be sent to him or her
14 by electronic transmission, secured in a manner as determined by the Tax
15 Commissioner.

16 (b) Each municipality that seeks to request information under
17 subdivision (a) of this subsection shall certify to the Department of
18 Revenue one individual who is authorized by such municipality to make
19 such request and review the documents described in subdivision (a) of
20 this subsection. The individual may be a municipal employee or an
21 individual who contracts with the requesting municipality to provide
22 financial, accounting, or other administrative services.

23 (c) No individual certified by a municipality pursuant to
24 subdivision (b) of this subsection shall disclose to any person any
25 information obtained pursuant to a review under this subsection. An
26 individual certified by a municipality pursuant to subdivision (b) of
27 this subsection shall remain subject to this subsection after he or she
28 (i) is no longer certified or (ii) is no longer in the employment of or
29 under contract with the certifying municipality.

30 (d) Any person who violates the provisions of this subsection shall
31 be guilty of a Class I misdemeanor.

1 (e) The Department of Revenue shall not be held liable by any person
2 for an impermissible disclosure by a municipality or any agent or
3 employee thereof of any information obtained pursuant to a review under
4 this subsection.

5 (15) In all proceedings under the Nebraska Revenue Act of 1967, the
6 Tax Commissioner may act for and on behalf of the people of the State of
7 Nebraska. The Tax Commissioner in his or her discretion may waive all or
8 part of any penalties provided by the provisions of such act or interest
9 on delinquent taxes specified in section 45-104.02, as such rate may from
10 time to time be adjusted.

11 (16)(a) The purpose of this subsection is to set forth the state's
12 policy for the protection of the confidentiality rights of all
13 participants in the system operated pursuant to the streamlined sales and
14 use tax agreement and of the privacy interests of consumers who deal with
15 model 1 sellers.

16 (b) For purposes of this subsection:

17 (i) Anonymous data means information that does not identify a
18 person;

19 (ii) Confidential taxpayer information means all information that is
20 protected under a member state's laws, regulations, and privileges; and

21 (iii) Personally identifiable information means information that
22 identifies a person.

23 (c) The state agrees that a fundamental precept for model 1 sellers
24 is to preserve the privacy of consumers by protecting their anonymity.
25 With very limited exceptions, a certified service provider shall perform
26 its tax calculation, remittance, and reporting functions without
27 retaining the personally identifiable information of consumers.

28 (d) The governing board of the member states in the streamlined
29 sales and use tax agreement may certify a certified service provider only
30 if that certified service provider certifies that:

31 (i) Its system has been designed and tested to ensure that the

1 fundamental precept of anonymity is respected;

2 (ii) Personally identifiable information is only used and retained
3 to the extent necessary for the administration of model 1 with respect to
4 exempt purchasers;

5 (iii) It provides consumers clear and conspicuous notice of its
6 information practices, including what information it collects, how it
7 collects the information, how it uses the information, how long, if at
8 all, it retains the information, and whether it discloses the information
9 to member states. Such notice shall be satisfied by a written privacy
10 policy statement accessible by the public on the website of the certified
11 service provider;

12 (iv) Its collection, use, and retention of personally identifiable
13 information is limited to that required by the member states to ensure
14 the validity of exemptions from taxation that are claimed by reason of a
15 consumer's status or the intended use of the goods or services purchased;
16 and

17 (v) It provides adequate technical, physical, and administrative
18 safeguards so as to protect personally identifiable information from
19 unauthorized access and disclosure.

20 (e) The state shall provide public notification to consumers,
21 including exempt purchasers, of the state's practices relating to the
22 collection, use, and retention of personally identifiable information.

23 (f) When any personally identifiable information that has been
24 collected and retained is no longer required for the purposes set forth
25 in subdivision (16)(d)(iv) of this section, such information shall no
26 longer be retained by the member states.

27 (g) When personally identifiable information regarding an individual
28 is retained by or on behalf of the state, it shall provide reasonable
29 access by such individual to his or her own information in the state's
30 possession and a right to correct any inaccurately recorded information.

31 (h) If anyone other than a member state, or a person authorized by

1 that state's law or the agreement, seeks to discover personally
2 identifiable information, the state from whom the information is sought
3 should make a reasonable and timely effort to notify the individual of
4 such request.

5 (i) This privacy policy is subject to enforcement by the Attorney
6 General.

7 (j) All other laws and regulations regarding the collection, use,
8 and maintenance of confidential taxpayer information remain fully
9 applicable and binding. Without limitation, this subsection does not
10 enlarge or limit the state's authority to:

11 (i) Conduct audits or other reviews as provided under the agreement
12 and state law;

13 (ii) Provide records pursuant to the federal Freedom of Information
14 Act, disclosure laws with governmental agencies, or other regulations;

15 (iii) Prevent, consistent with state law, disclosure of confidential
16 taxpayer information;

17 (iv) Prevent, consistent with federal law, disclosure or misuse of
18 federal return information obtained under a disclosure agreement with the
19 Internal Revenue Service; and

20 (v) Collect, disclose, disseminate, or otherwise use anonymous data
21 for governmental purposes.

22 **Sec. 99.** Section 77-27,119, Revised Statutes Cumulative Supplement,
23 2024, is amended to read:

24 77-27,119 (1) The Tax Commissioner shall administer and enforce the
25 income tax imposed by sections 77-2714 to 77-27,135, and he or she is
26 authorized to conduct hearings, to adopt and promulgate such rules and
27 regulations, and to require such facts and information to be reported as
28 he or she may deem necessary to enforce the income tax provisions of such
29 sections, except that such rules, regulations, and reports shall not be
30 inconsistent with the laws of this state or the laws of the United
31 States. The Tax Commissioner may for enforcement and administrative

1 purposes divide the state into a reasonable number of districts in which
2 branch offices may be maintained.

3 (2)(a) The Tax Commissioner may prescribe the form and contents of
4 any return or other document required to be filed under the income tax
5 provisions. Such return or other document shall be compatible as to form
6 and content with the return or document required by the laws of the
7 United States. The form shall have a place where the taxpayer shall
8 designate the school district in which he or she lives and the county in
9 which the school district is headquartered. The Tax Commissioner shall
10 adopt and promulgate such rules and regulations as may be necessary to
11 insure compliance with this requirement.

12 (b) The State Department of Education, with the assistance and
13 cooperation of the Department of Revenue, shall develop a uniform system
14 for numbering all school districts in the state. Such system shall be
15 consistent with the data processing needs of the Department of Revenue
16 and shall be used for the school district identification required by
17 subdivision (a) of this subsection.

18 (c) The proper filing of an income tax return shall consist of the
19 submission of such form as prescribed by the Tax Commissioner or an exact
20 facsimile thereof with sufficient information provided by the taxpayer on
21 the face of the form from which to compute the actual tax liability. Each
22 taxpayer shall include such taxpayer's correct social security number or
23 state identification number and the school district identification number
24 of the school district in which the taxpayer resides on the face of the
25 form. A filing is deemed to occur when the required information is
26 provided.

27 (3) The Tax Commissioner, for the purpose of ascertaining the
28 correctness of any return or other document required to be filed under
29 the income tax provisions, for the purpose of determining corporate
30 income, individual income, and withholding tax due, or for the purpose of
31 making an estimate of taxable income of any person, shall have the power

1 to examine or to cause to have examined, by any agent or representative
2 designated by him or her for that purpose, any books, papers, records, or
3 memoranda bearing upon such matters and may by summons require the
4 attendance of the person responsible for rendering such return or other
5 document or remitting any tax, or any officer or employee of such person,
6 or the attendance of any other person having knowledge in the premises,
7 and may take testimony and require proof material for his or her
8 information, with power to administer oaths or affirmations to such
9 person or persons.

10 (4) The time and place of examination pursuant to this section shall
11 be such time and place as may be fixed by the Tax Commissioner and as are
12 reasonable under the circumstances. In the case of a summons, the date
13 fixed for appearance before the Tax Commissioner shall not be less than
14 twenty days from the time of service of the summons.

15 (5) No taxpayer shall be subjected to unreasonable or unnecessary
16 examinations or investigations.

17 (6) Except in accordance with proper judicial order or as otherwise
18 provided by law, it shall be unlawful for the Tax Commissioner, any
19 officer or employee of the Tax Commissioner, any person engaged or
20 retained by the Tax Commissioner on an independent contract basis, any
21 person who pursuant to this section is permitted to inspect any report or
22 return or to whom a copy, an abstract, or a portion of any report or
23 return is furnished, any employee of the State Treasurer or the
24 Department of Administrative Services, or any other person to divulge,
25 make known, or use in any manner the amount of income or any particulars
26 set forth or disclosed in any report or return required except for the
27 purpose of enforcing sections 77-2714 to 77-27,135. The officers charged
28 with the custody of such reports and returns shall not be required to
29 produce any of them or evidence of anything contained in them in any
30 action or proceeding in any court, except on behalf of the Tax
31 Commissioner in an action or proceeding under the provisions of the tax

1 law to which he or she is a party or on behalf of any party to any action
2 or proceeding under such sections when the reports or facts shown thereby
3 are directly involved in such action or proceeding, in either of which
4 events the court may require the production of, and may admit in
5 evidence, so much of such reports or of the facts shown thereby as are
6 pertinent to the action or proceeding and no more. Nothing in this
7 section shall be construed (a) to prohibit the delivery to a taxpayer,
8 his or her duly authorized representative, or his or her successors,
9 receivers, trustees, personal representatives, administrators, assignees,
10 or guarantors, if directly interested, of a certified copy of any return
11 or report in connection with his or her tax, (b) to prohibit the
12 publication of statistics so classified as to prevent the identification
13 of particular reports or returns and the items thereof, (c) to prohibit
14 the inspection by the Attorney General, other legal representatives of
15 the state, or a county attorney of the report or return of any taxpayer
16 who brings an action to review the tax based thereon, against whom an
17 action or proceeding for collection of tax has been instituted, or
18 against whom an action, proceeding, or prosecution for failure to comply
19 with the Nebraska Revenue Act of 1967 is being considered or has been
20 commenced, (d) to prohibit furnishing to the Nebraska Workers'
21 Compensation Court the names, addresses, and identification numbers of
22 employers, and such information shall be furnished on request of the
23 court, (e) to prohibit the disclosure of information and records to a
24 collection agency contracting with the Tax Commissioner pursuant to
25 sections 77-377.01 to 77-377.04, (f) to prohibit the disclosure of
26 information pursuant to section 77-27,195, 77-4110, 77-5731, 77-6521,
27 77-6837, 77-6839, or 77-6928, (g) to prohibit the disclosure to the
28 Public Employees Retirement Board of the addresses of individuals who are
29 members of the retirement systems administered by the board, and such
30 information shall be furnished to the board solely for purposes of its
31 administration of the retirement systems upon written request, which

1 request shall include the name and social security number of each
2 individual for whom an address is requested, (h) to prohibit the
3 disclosure of information to the Department of Labor necessary for the
4 administration of the Employment Security Law, the Contractor
5 Registration Act, or the Employee Classification Act, (i) to prohibit the
6 disclosure to the Department of Motor Vehicles of tax return information
7 pertaining to individuals, corporations, and businesses determined by the
8 Department of Motor Vehicles to be delinquent in the payment of amounts
9 due under agreements pursuant to the International Fuel Tax Agreement
10 Act, and such disclosure shall be strictly limited to information
11 necessary for the administration of the act, (j) to prohibit the
12 disclosure under section 42-358.08, 43-512.06, or 43-3327 to any court-
13 appointed individuals, the county attorney, any authorized attorney, or
14 the Department of Health and Human Services of an absent parent's
15 address, social security number, amount of income, health insurance
16 information, and employer's name and address for the exclusive purpose of
17 establishing and collecting child, spousal, or medical support, (k) to
18 prohibit the disclosure of information to the Department of Insurance,
19 the Nebraska State Historical Society, or the State Historic Preservation
20 Officer as necessary to carry out the Department of Revenue's
21 responsibilities under the Nebraska Job Creation and Mainstreet
22 Revitalization Act, or (l) to prohibit the disclosure to the Department
23 of Insurance of information pertaining to authorization for, and use of,
24 tax credits under the New Markets Job Growth Investment Act. Information
25 so obtained shall be used for no other purpose. Any person who violates
26 this subsection shall be guilty of a felony and shall upon conviction
27 thereof be fined not less than one hundred dollars nor more than five
28 hundred dollars, or be imprisoned not more than five years, or be both so
29 fined and imprisoned, in the discretion of the court and shall be
30 assessed the costs of prosecution. If the offender is an officer or
31 employee of the state, he or she shall be dismissed from office and be

1 ineligible to hold any public office in this state for a period of two
2 years thereafter.

3 (7) Reports and returns required to be filed under income tax
4 provisions of sections 77-2714 to 77-27,135 shall be preserved until the
5 Tax Commissioner orders them to be destroyed.

6 (8) Notwithstanding the provisions of subsection (6) of this
7 section, the Tax Commissioner may permit the Secretary of the Treasury of
8 the United States or his or her delegates or the proper officer of any
9 state imposing an income tax, or the authorized representative of either
10 such officer, to inspect the income tax returns of any taxpayer or may
11 furnish to such officer or his or her authorized representative an
12 abstract of the return of income of any taxpayer or supply him or her
13 with information concerning an item of income contained in any return or
14 disclosed by the report of any investigation of the income or return of
15 income of any taxpayer, but such permission shall be granted only if the
16 statutes of the United States or of such other state, as the case may be,
17 grant substantially similar privileges to the Tax Commissioner of this
18 state as the officer charged with the administration of the income tax
19 imposed by sections 77-2714 to 77-27,135.

20 (9) Notwithstanding the provisions of subsection (6) of this
21 section, the Tax Commissioner may permit the Postal Inspector of the
22 United States Postal Service or his or her delegates to inspect the
23 reports or returns of any person filed pursuant to the Nebraska Revenue
24 Act of 1967 when information on the reports or returns is relevant to any
25 action or proceeding instituted or being considered by the United States
26 Postal Service against such person for the fraudulent use of the mails to
27 carry and deliver false and fraudulent tax returns to the Tax
28 Commissioner with the intent to defraud the State of Nebraska or to evade
29 the payment of Nebraska state taxes.

30 (10)(a) Notwithstanding the provisions of subsection (6) of this
31 section, the Tax Commissioner shall, upon written request by the Auditor

1 of Public Accounts or the ~~office of~~ Legislative Audit Office, make tax
2 returns and tax return information open to inspection by or disclosure to
3 officers and employees of the Auditor of Public Accounts or employees of
4 the ~~office of~~ Legislative Audit Office for the purpose of and to the
5 extent necessary in making an audit of the Department of Revenue pursuant
6 to section 50-1205 or 84-304. The Auditor of Public Accounts or ~~office of~~
7 Legislative Audit Office shall statistically and randomly select the tax
8 returns and tax return information to be audited based upon a computer
9 tape provided by the Department of Revenue which contains only total
10 population documents without specific identification of taxpayers. The
11 Tax Commissioner shall have the authority to approve the statistical
12 sampling method used by the Auditor of Public Accounts or ~~office of~~
13 Legislative Audit Office. Confidential tax returns and tax return
14 information shall be audited only upon the premises of the Department of
15 Revenue. All audit workpapers pertaining to the audit of the Department
16 of Revenue shall be stored in a secure place in the Department of
17 Revenue.

18 (b) When selecting tax returns or tax return information for a
19 performance audit of a tax incentive program, the ~~office of~~ Legislative
20 Audit Office shall select the tax returns or tax return information for
21 either all or a statistically and randomly selected sample of taxpayers
22 who have applied for or who have qualified for benefits under the tax
23 incentive program that is the subject of the audit. When the ~~office of~~
24 Legislative Audit Office reports on its review of tax returns and tax
25 return information, it shall comply with subdivision (10)(c) of this
26 section.

27 (c) No officer or employee of the Auditor of Public Accounts or
28 ~~office of~~ Legislative Audit Office employee shall disclose to any person,
29 other than another officer or employee of the Auditor of Public Accounts
30 or ~~office of~~ Legislative Audit Office whose official duties require such
31 disclosure, any return or return information described in the Nebraska

1 Revenue Act of 1967 in a form which can be associated with or otherwise
2 identify, directly or indirectly, a particular taxpayer.

3 (d) Any person who violates the provisions of this subsection shall
4 be guilty of a Class IV felony and, in the discretion of the court, may
5 be assessed the costs of prosecution. The guilty officer or employee
6 shall be dismissed from employment and be ineligible to hold any position
7 of employment with the State of Nebraska for a period of two years
8 thereafter. For purposes of this subsection, officer or employee shall
9 include a former officer or employee of the Auditor of Public Accounts or
10 former employee of the ~~office of~~ Legislative Audit Office.

11 (11) For purposes of subsections (10) through (13) of this section:

12 (a) Tax returns shall mean any tax or information return or claim
13 for refund required by, provided for, or permitted under sections 77-2714
14 to 77-27,135 which is filed with the Tax Commissioner by, on behalf of,
15 or with respect to any person and any amendment or supplement thereto,
16 including supporting schedules, attachments, or lists which are
17 supplemental to or part of the filed return;

18 (b) Return information shall mean:

19 (i) A taxpayer's identification number and (A) the nature, source,
20 or amount of his or her income, payments, receipts, deductions,
21 exemptions, credits, assets, liabilities, net worth, tax liability, tax
22 withheld, deficiencies, overassessments, or tax payments, whether the
23 taxpayer's return was, is being, or will be examined or subject to other
24 investigation or processing or (B) any other data received by, recorded
25 by, prepared by, furnished to, or collected by the Tax Commissioner with
26 respect to a return or the determination of the existence or possible
27 existence of liability or the amount of liability of any person for any
28 tax, penalty, interest, fine, forfeiture, or other imposition or offense;
29 and

30 (ii) Any part of any written determination or any background file
31 document relating to such written determination; and

1 (c) Disclosures shall mean the making known to any person in any
2 manner a return or return information.

3 (12) The Auditor of Public Accounts shall (a) notify the Tax
4 Commissioner in writing thirty days prior to the beginning of an audit of
5 his or her intent to conduct an audit, (b) provide an audit plan, and (c)
6 provide a list of the tax returns and tax return information identified
7 for inspection during the audit. The ~~office of~~ Legislative Audit Office
8 shall notify the Tax Commissioner of the intent to conduct an audit and
9 of the scope of the audit as provided in section 50-1209.

10 (13) The Auditor of Public Accounts or the ~~office of~~ Legislative
11 Audit Office shall, as a condition for receiving tax returns and tax
12 return information: (a) Subject employees involved in the audit to the
13 same confidential information safeguards and disclosure procedures as
14 required of Department of Revenue employees; (b) establish and maintain a
15 permanent system of standardized records with respect to any request for
16 tax returns or tax return information, the reason for such request, and
17 the date of such request and any disclosure of the tax return or tax
18 return information; (c) establish and maintain a secure area or place in
19 the Department of Revenue in which the tax returns, tax return
20 information, or audit workpapers shall be stored; (d) restrict access to
21 the tax returns or tax return information only to persons whose duties or
22 responsibilities require access; (e) provide such other safeguards as the
23 Tax Commissioner determines to be necessary or appropriate to protect the
24 confidentiality of the tax returns or tax return information; (f) provide
25 a report to the Tax Commissioner which describes the procedures
26 established and utilized by the Auditor of Public Accounts or ~~office of~~
27 Legislative Audit Office for insuring the confidentiality of tax returns,
28 tax return information, and audit workpapers; and (g) upon completion of
29 use of such returns or tax return information, return to the Tax
30 Commissioner such returns or tax return information, along with any
31 copies.

1 (14) The Tax Commissioner may permit other tax officials of this
2 state to inspect the tax returns and reports filed under sections 77-2714
3 to 77-27,135, but such inspection shall be permitted only for purposes of
4 enforcing a tax law and only to the extent and under the conditions
5 prescribed by the rules and regulations of the Tax Commissioner.

6 (15) The Tax Commissioner shall compile the school district
7 information required by subsection (2) of this section. Insofar as it is
8 possible, such compilation shall include, but not be limited to, the
9 total adjusted gross income of each school district in the state. The Tax
10 Commissioner shall adopt and promulgate such rules and regulations as may
11 be necessary to insure that such compilation does not violate the
12 confidentiality of any individual income tax return nor conflict with any
13 other provisions of state or federal law.

14 **Sec. 100.** Section 81-1114, Reissue Revised Statutes of Nebraska, is
15 amended to read:

16 81-1114 The building division shall have the following powers,
17 duties, and responsibilities:

18 (1) Shall prepare, for submittal to the Governor and to the office
19 of the Legislative Fiscal Analyst, analyses of the cost of every desired
20 land and building acquisition, new building construction, either underway
21 or proposed, major repair or remodeling of new, newly acquired, or
22 existing buildings, and each and every structural improvement to land,
23 utilities, roads, walks, and parking lots, costing four hundred thousand
24 dollars or more, but excluding right-of-way projects of the Department of
25 Transportation. The analyses submitted to the Legislative Fiscal Analyst
26 shall be submitted electronically. The Department of Administrative
27 Services shall adjust the dollar amount in this section every four years
28 beginning January 1, 2002, to account for inflationary and market
29 changes. The adjustment shall be based on percentage changes in a
30 construction cost index and any other published index relevant to
31 operations and utilities costs, as selected by the department;

1 (2) Shall record the relationship between the proposed capital
2 facilities and the individual or departmental agencies' operating
3 programs with particular attention to needs of immediate or future
4 operations of the department or agency submitting such plan;

5 (3) Shall make recommendations to the Governor, the committee of the
6 Legislature which shall from time to time have responsibility for
7 preparing recommendations for appropriations, and the individual
8 department or agency concerned, on the probable costs of such
9 acquisition, construction, repair, or remodeling. The recommendations
10 submitted to the committee shall be submitted electronically; and

11 (4) Shall require the submission by each department and agency of
12 the state of copies of all written contracts for acquisition,
13 construction, repair, or remodeling, including federal contracts, before
14 such contracts are executed by the executive officer of the state
15 authorized to execute such contracts, and shall maintain copies of such
16 contracts on file for inspection by the Legislative Fiscal Analyst.

17 **Sec. 101.** Section 83-178, Reissue Revised Statutes of Nebraska, is
18 amended to read:

19 83-178 (1) The director shall establish and maintain, in accordance
20 with the regulations of the department, an individual file for each
21 person committed to the department. Each individual file shall include,
22 when available and appropriate, the following information on such person:

23 (a) Such person's ~~His or her~~ admission summary;

24 (b) Such person's ~~His or her~~ presentence investigation report;

25 (c) Such person's ~~His or her~~ classification report and
26 recommendation;

27 (d) Official records of such person's ~~his or her~~ conviction and
28 commitment as well as any earlier criminal records;

29 (e) Progress reports and admission-orientation reports;

30 (f) Reports of any disciplinary infractions and of their
31 disposition;

1 (g) Such person's ~~His or her~~ parole plan; and

2 (h) Other pertinent data concerning such person's ~~his or her~~
3 background, conduct, associations, and family relationships.

4 (2) Any decision concerning the classification, reclassification,
5 transfer to another facility, preparole preparation, or parole release of
6 a person committed to the department shall be made only after such
7 person's ~~his or her~~ file has been reviewed. The content of the file shall
8 be confidential and shall not be subject to public inspection except by
9 court order for good cause shown and shall not be accessible to any
10 person committed to the department. An inmate may obtain access to the
11 inmate's ~~his or her~~ medical records by request to the provider pursuant
12 to sections 71-8401 to 71-8407 notwithstanding the fact that such medical
13 records may be a part of the inmate's ~~his or her~~ individual department
14 file. The department retains the authority to withhold mental health and
15 psychological records of the inmate when appropriate.

16 (3) The program of each person committed to the department shall be
17 reviewed at regular intervals and recommendations shall be made to the
18 chief executive officer concerning changes in such person's program of
19 treatment, training, employment, care, and custody as are considered
20 necessary or desirable.

21 (4) The chief executive officer of the facility shall have final
22 authority to determine matters of treatment classification within such
23 officer's ~~his or her~~ facility and to recommend to the director the
24 transfer of any person committed to the department who is in such
25 officer's ~~his or her~~ custody.

26 (5) The director may at any time order a person committed to the
27 department to undergo further examination and study for additional
28 recommendations concerning such person's ~~his or her~~ classification,
29 custodial control, and rehabilitative treatment.

30 (6) Nothing in this section shall be construed to limit in any
31 manner the authority of the Public Counsel or the Inspector General of

1 the Nebraska Correctional System to inspect and examine the records and
2 documents of the department pursuant to the Office of Public Counsel Act
3 or the Office of Inspector General of the Nebraska Correctional System
4 Act sections 81-8,240 to 81-8,254, except that the Public Counsel's or
5 Inspector General's access to an inmate's medical or mental health
6 records shall be subject to the inmate's consent unless an inmate's death
7 is being investigated by the Public Counsel or Inspector General. The
8 office of Public Counsel and the office of Inspector General of the
9 Nebraska Correctional System shall not disclose an inmate's medical or
10 mental health records to anyone else, including any person committed to
11 the department, except as authorized by law.

12 **Sec. 102.** Section 83-1,125.01, Reissue Revised Statutes of Nebraska,
13 is amended to read:

14 83-1,125.01 (1) The Board of Parole and the department ~~Division of~~
15 ~~Parole Supervision~~ may maintain an individual file for each person who is
16 under the jurisdiction of the Board of Parole. Such file may be
17 maintained electronically and shall include, when available and
18 appropriate, the following information on such person:

- 19 (a) Admission summary;
- 20 (b) Presentence investigation report;
- 21 (c) Classification reports and recommendations;
- 22 (d) Official records of conviction and commitment along with any
23 earlier criminal records;
- 24 (e) Progress reports and admission-orientation reports;
- 25 (f) Reports of any disciplinary infractions and their disposition;
- 26 (g) Risk and needs assessments;
- 27 (h) Parole plan and parole placement and investigation worksheets;
- 28 (i) Decision guideline scores;
- 29 (j) Parole case plan;
- 30 (k) Parole progress reports and contact notes;
- 31 (l) Arrest and violation reports, including disposition;

- 1 (m) Parole proceedings orders and notices;
- 2 (n) Other documents related to parole supervision;
- 3 (o) Correspondence; and
- 4 (p) Other pertinent data concerning his or her background, conduct,
- 5 associations, and family relationships.

6 (2) Any decision concerning release on or revocation of parole or
7 imposition of sanctions shall be made only after the individual file has
8 been reviewed. The contents of the individual file shall be confidential
9 unless disclosed in connection with a public hearing and shall not be
10 subject to public inspection except by court order for good cause shown.
11 The contents of the file shall not be accessible to any person under the
12 jurisdiction of the Board of Parole. A person under the jurisdiction of
13 the board may obtain access to his or her medical records by request to
14 the provider pursuant to sections 71-8401 to 71-8407 notwithstanding the
15 fact that such medical records may be a part of his or her parole file.
16 The board and the department ~~Division of Parole Supervision~~ have the
17 authority to withhold decision guideline scores, risk and needs
18 assessment scores, and mental health and psychological records of a
19 person under the jurisdiction of the board when appropriate.

20 (3) Nothing in this section limits in any manner the authority of
21 the Public Counsel to inspect and examine the records and documents of
22 the board and the department ~~Division of Parole Supervision~~ pursuant to
23 the Office of Public Counsel Act ~~sections 81-8,240 to 81-8,254~~, except
24 that the Public Counsel's access to the medical or mental health records
25 of a person under the jurisdiction of the board shall be subject to his
26 or her consent. The office of Public Counsel shall not disclose the
27 medical or mental health records of a person under the jurisdiction of
28 the board to anyone else, including any other person under the
29 jurisdiction of the board, except as authorized by law.

30 (4) For any person under the jurisdiction of the Board of Parole,
31 the board shall provide such person's (a) name, (b) parole officer, and

1 (c) conditions of parole to the Nebraska Commission on Law Enforcement
2 and Criminal Justice which shall provide access to such information to
3 law enforcement agencies through the state's criminal justice information
4 system.

5 **Sec. 103.** Section 84-304, Reissue Revised Statutes of Nebraska, is
6 amended to read:

7 84-304 It shall be the duty of the Auditor of Public Accounts:

8 (1) To give information electronically to the Legislature, whenever
9 required, upon any subject relating to the fiscal affairs of the state or
10 with regard to any duty of his or her office;

11 (2) To furnish offices for himself or herself and all fuel, lights,
12 books, blanks, forms, paper, and stationery required for the proper
13 discharge of the duties of his or her office;

14 (3)(a) To examine or cause to be examined, at such time as he or she
15 shall determine, books, accounts, vouchers, records, and expenditures of
16 all state officers, state bureaus, state boards, state commissioners, the
17 state library, societies and associations supported by the state, state
18 institutions, state colleges, and the University of Nebraska, except when
19 required to be performed by other officers or persons. Such examinations
20 shall be done in accordance with generally accepted government auditing
21 standards for financial audits and attestation engagements set forth in
22 Government Auditing Standards (2011 Revision for audit periods ending
23 before June 30, 2020, or 2018 Revision for audit periods ending on or
24 after June 30, 2020), published by the Comptroller General of the United
25 States, Government Accountability Office, and except as provided in
26 subdivision (11) of this section, subdivision (16) of section 50-1205,
27 and section 84-322, shall not include performance audits, whether
28 conducted pursuant to attestation engagements or performance audit
29 standards as set forth in Government Auditing Standards (2018 Revision),
30 published by the Comptroller General of the United States, Government
31 Accountability Office.

1 (b) Any entity, excluding the state colleges and the University of
2 Nebraska, that is audited or examined pursuant to subdivision (3)(a) of
3 this section and that is the subject of a comment and recommendation in a
4 management letter or report issued by the Auditor of Public Accounts
5 shall, on or before six months after the issuance of such letter or
6 report, provide to the Auditor of Public Accounts a detailed written
7 description of any corrective action taken or to be taken in response to
8 the comment and recommendation. The Auditor of Public Accounts may
9 investigate and evaluate the corrective action. The Auditor of Public
10 Accounts shall then electronically submit a report of any findings of
11 such investigation and evaluation to the Governor, the appropriate
12 standing committee of the Legislature, and the Appropriations Committee
13 of the Legislature. The Auditor of Public Accounts shall also ensure that
14 the report is delivered to the Appropriations Committee for entry into
15 the record during the committee's budget hearing process;

16 (4)(a) To examine or cause to be examined, at the expense of the
17 political subdivision, when the Auditor of Public Accounts determines
18 such examination necessary or when requested by the political
19 subdivision, the books, accounts, vouchers, records, and expenditures of
20 any agricultural association formed under Chapter 2, article 20, any
21 county agricultural society, any joint airport authority formed under the
22 Joint Airport Authorities Act, any city or county airport authority, any
23 bridge commission created pursuant to section 39-868, any cemetery
24 district, any community redevelopment authority or limited community
25 redevelopment authority established under the Community Development Law,
26 any development district, any drainage district, any local public health
27 department as defined in section 71-1626, any historical society, any
28 hospital authority or district, any county hospital, any housing agency
29 as defined in section 71-1575, any irrigation district, any county or
30 municipal library, any community mental health center, any railroad
31 transportation safety district, any rural water district, any township,

1 Wyuka Cemetery, the Educational Service Unit Coordinating Council, any
2 entity created pursuant to the Interlocal Cooperation Act, any
3 educational service unit, any village, any service contractor or
4 subrecipient of state or federal funds, any political subdivision with
5 the authority to levy a property tax or a toll, or any entity created
6 pursuant to the Joint Public Agency Act.

7 For purposes of this subdivision, service contractor or subrecipient
8 means any nonprofit entity that expends state or federal funds to carry
9 out a state or federal program or function, but it does not include an
10 individual who is a direct beneficiary of such a program or function or a
11 licensed health care provider or facility receiving direct payment for
12 medical services provided for a specific individual.

13 (b) The Auditor of Public Accounts may waive the audit requirement
14 of subdivision (4)(a) of this section upon the submission by the
15 political subdivision of a written request in a form prescribed by the
16 auditor. The auditor shall notify the political subdivision in writing of
17 the approval or denial of the request for a waiver.

18 (c) Through December 31, 2017, the Auditor of Public Accounts may
19 conduct audits under this subdivision for purposes of sections 2-3228,
20 12-101, 13-2402, 14-567, 14-1805.01, 14-2111, 16-1017, 16-1037, 19-3501,
21 23-1118, 23-3526, 71-1631.02, and 79-987.

22 (d) Beginning on May 24, 2017, the Auditor of Public Accounts may
23 conduct audits under this subdivision for purposes of sections 13-2402,
24 14-567, 14-1805.01, 14-2111, 15-1017, 16-1017, 16-1037, 18-814,
25 71-1631.02, and 79-987 and shall prescribe the form for the annual
26 reports required in each of such sections. Such annual reports shall be
27 published annually on the website of the Auditor of Public Accounts;

28 (5) To report promptly to the Governor and the appropriate standing
29 committee of the Legislature the fiscal condition shown by such
30 examinations conducted by the auditor, including any irregularities or
31 misconduct of officers or employees, any misappropriation or misuse of

1 public funds or property, and any improper system or method of
2 bookkeeping or condition of accounts. The report submitted to the
3 committee shall be submitted electronically. In addition, if, in the
4 normal course of conducting an audit in accordance with subdivision (3)
5 of this section, the auditor discovers any potential problems related to
6 the effectiveness, efficiency, or performance of state programs, he or
7 she shall immediately report them electronically to the Legislative
8 Oversight Performance ~~Audit~~ Committee which may investigate the issue
9 further, report it electronically to the appropriate standing committee
10 of the Legislature, or both;

11 (6)(a) To examine or cause to be examined the books, accounts,
12 vouchers, records, and expenditures of a fire protection district. The
13 expense of the examination shall be paid by the political subdivision.

14 (b) Whenever the expenditures of a fire protection district are one
15 hundred fifty thousand dollars or less per fiscal year, the fire
16 protection district shall be audited no more than once every five years
17 except as directed by the board of directors of the fire protection
18 district or unless the auditor receives a verifiable report from a third
19 party indicating any irregularities or misconduct of officers or
20 employees of the fire protection district, any misappropriation or misuse
21 of public funds or property, or any improper system or method of
22 bookkeeping or condition of accounts of the fire protection district. In
23 the absence of such a report, the auditor may waive the five-year audit
24 requirement upon the submission of a written request by the fire
25 protection district in a form prescribed by the auditor. The auditor
26 shall notify the fire protection district in writing of the approval or
27 denial of a request for waiver of the five-year audit requirement. Upon
28 approval of the request for waiver of the five-year audit requirement, a
29 new five-year audit period shall begin.

30 (c) Whenever the expenditures of a fire protection district exceed
31 one hundred fifty thousand dollars in a fiscal year, the auditor may

1 waive the audit requirement upon the submission of a written request by
2 the fire protection district in a form prescribed by the auditor. The
3 auditor shall notify the fire protection district in writing of the
4 approval or denial of a request for waiver. Upon approval of the request
5 for waiver, a new five-year audit period shall begin for the fire
6 protection district if its expenditures are one hundred fifty thousand
7 dollars or less per fiscal year in subsequent years;

8 (7) To appoint two or more assistant deputies (a) whose entire time
9 shall be devoted to the service of the state as directed by the auditor,
10 (b) who shall be certified public accountants with at least five years'
11 experience, (c) who shall be selected without regard to party affiliation
12 or to place of residence at the time of appointment, (d) who shall
13 promptly report to the auditor the fiscal condition shown by each
14 examination, including any irregularities or misconduct of officers or
15 employees, any misappropriation or misuse of public funds or property,
16 and any improper system or method of bookkeeping or condition of
17 accounts, and it shall be the duty of the auditor to file promptly with
18 the Governor a duplicate of such report, and (e) who shall qualify by
19 taking an oath which shall be filed in the office of the Secretary of
20 State;

21 (8) To conduct audits and related activities for state agencies,
22 political subdivisions of this state, or grantees of federal funds
23 disbursed by a receiving agency on a contractual or other basis for
24 reimbursement to assure proper accounting by all such agencies, political
25 subdivisions, and grantees for funds appropriated by the Legislature and
26 federal funds disbursed by any receiving agency. The auditor may contract
27 with any political subdivision to perform the audit of such political
28 subdivision required by or provided for in section 23-1608 or 79-1229 or
29 this section and charge the political subdivision for conducting the
30 audit. The fees charged by the auditor for conducting audits on a
31 contractual basis shall be in an amount sufficient to pay the cost of the

1 audit. The fees remitted to the auditor for such audits and services
2 shall be deposited in the Auditor of Public Accounts Cash Fund;

3 (9)(a) To examine or cause to be examined the books, accounts,
4 vouchers, and records related to any money transferred pursuant to
5 subsection (2) or (4) of section 79-3501, any fund receiving any such
6 transfer, or any subsequent transfer or expenditure of such money when
7 the Auditor of Public Accounts determines such examination necessary or
8 when requested by (i) any department or agency receiving any such
9 transfer or acting as the administrator for a fund receiving any such
10 transfer, (ii) any recipient or subsequent recipient of money disbursed
11 from any such fund, or (iii) any service contractor responsible for
12 managing, on behalf of any entity, any portion of any such fund or any
13 money disbursed from any such fund.

14 (b) Any examination pursuant to subdivision (9)(a) of this section
15 shall be made at the expense of the department or agency, recipient or
16 subsequent recipient, or service contractor whose books, accounts,
17 vouchers, or records are being examined.

18 (c) For purposes of this subdivision, recipient, subsequent
19 recipient, or service contractor means a nonprofit entity that expends
20 funds transferred pursuant to subsection (2) or (4) of section 79-3501 to
21 carry out a state program or function, but does not include an individual
22 who is a direct beneficiary of such a program or function.

23 (d) The Auditor of Public Accounts shall prescribe the form for the
24 annual reports required in subsection (6) of section 79-3501. Such annual
25 reports shall be published on the website of the Auditor of Public
26 Accounts;

27 (10) To develop and maintain an annual budget and actual financial
28 information reporting system for political subdivisions that is
29 accessible online by the public;

30 (11) When authorized, to conduct joint audits with the Legislative
31 Oversight Performance Audit Committee as described in section 50-1205;

1 (12) Unless otherwise specifically provided, to assess the interest
2 rate on delinquent payments of any fees for audits and services owing to
3 the Auditor of Public Accounts at a rate of fourteen percent per annum
4 from the date of billing unless paid within thirty days after the date of
5 billing. For an entity created pursuant to the Interlocal Cooperation Act
6 or the Joint Public Agency Act, any participating public agencies shall
7 be jointly and severally liable for the fees and interest owed if such
8 entity is defunct or unable to pay; and

9 (13) In consultation with statewide associations representing (a)
10 counties and (b) cities and villages, to approve annual continuing
11 education programs for county treasurers, city treasurers, and village
12 treasurers as required by sections 14-553, 15-317, 16-318, 17-606, and
13 23-1601. The cost of attending such programs shall be at the expense of
14 the county, city, or village. The auditor shall maintain records of
15 program attendance and notify each county board, city council, or village
16 board of trustees if its treasurer has not completed such program
17 attendance. The auditor shall inform the Attorney General and the county
18 attorney of the county in which a treasurer is located if such treasurer
19 has not completed a required annual continuing education program.

20 **Sec. 104.** Section 84-311, Reissue Revised Statutes of Nebraska, is
21 amended to read:

22 84-311 (1)(a) All final audit reports issued by the Auditor of
23 Public Accounts shall be maintained permanently as a public record in the
24 office of the Auditor of Public Accounts.

25 (b) Working papers and other audit files maintained by the Auditor
26 of Public Accounts are not public records and are exempt from sections
27 84-712 to 84-712.05. The information contained in working papers and
28 audit files prepared pursuant to a specific audit is not subject to
29 disclosure except to a county attorney or the Attorney General in
30 connection with an investigation made or action taken in the course of
31 the attorney's official duties or to the Legislative Oversight

1 ~~Performance Audit~~ Committee in the course of the committee's official
2 duties and pursuant to the requirements of subdivision (16) of section
3 50-1205 or subdivision (5) of section 84-304.

4 (c) A public entity being audited and any federal agency that has
5 made a grant to such public entity shall also have access to the relevant
6 working papers and audit files, except that such access shall not include
7 information that would disclose or otherwise indicate the identity of any
8 individual who has confidentially provided the Auditor of Public Accounts
9 with allegations of wrongdoing regarding, or other information pertaining
10 to, the public entity being audited.

11 (d) The Auditor of Public Accounts may, at his or her discretion,
12 share working papers, other than personal information and telephone
13 records, with the Legislative Council. The Auditor of Public Accounts
14 may, at his or her discretion, share working papers with the Attorney
15 General, the Internal Revenue Service, the Tax Commissioner, the Federal
16 Bureau of Investigation, a law enforcement agency as defined in section
17 28-359, and the Nebraska Accountability and Disclosure Commission. The
18 working papers may be shared with such entities during an ongoing audit
19 or after the final audit report is issued. The Auditor of Public Accounts
20 shall not, under the authority granted in this subdivision, reveal sealed
21 or confidential court records contained in working papers.

22 (e) For purposes of this subsection, working papers means those
23 documents containing evidence to support the auditor's findings,
24 opinions, conclusions, and judgments and includes the collection of
25 evidence prepared or obtained by the auditor during the audit.

26 (f) The Auditor of Public Accounts may make the working papers
27 available for purposes of an external quality control review as required
28 by generally accepted government auditing standards. However, any reports
29 made from such external quality control review shall not make public any
30 information which would be considered confidential under this section
31 when in the possession of the Auditor of Public Accounts.

1 (2) If the Auditor of Public Accounts or any employee of the Auditor
2 of Public Accounts knowingly divulges or makes known in any manner not
3 permitted by law any record, document, or information, the disclosure of
4 which is restricted by law, he or she is subject to the same penalties
5 provided in section 84-712.09.

6 **Sec. 105.** Section 84-322, Reissue Revised Statutes of Nebraska, is
7 amended to read:

8 84-322 The Auditor of Public Accounts, when expressly authorized by
9 a majority vote of the members of the Legislative Oversight Performance
10 ~~Audit~~ Committee, may conduct performance audits of state executive branch
11 offices, state agencies, state bureaus, state boards, state commissions,
12 the state library, societies and associations supported by the state,
13 state institutions, state colleges, and the University of Nebraska. The
14 auditor shall issue the performance audit report to the Governor, the
15 appropriate standing committee of the Legislature, and the Legislative
16 Oversight Performance ~~Audit~~ Committee. The report submitted to the
17 committees of the Legislature shall be submitted electronically.

18 **Sec. 106.** Section 84-910, Reissue Revised Statutes of Nebraska, is
19 amended to read:

20 84-910 (1) On or before July 1 of each year, each agency shall
21 notify the Legislative Oversight Performance ~~Audit~~ Committee of the
22 status of all rules and regulations pending before the agency that are
23 required by law and that have not been adopted and promulgated. If such
24 rules and regulations have not been adopted and promulgated within the
25 time required pursuant to section 84-901.01, the agency shall provide an
26 explanation to the committee stating why the agency has not adopted and
27 promulgated such rules and regulations. If an additional appropriation
28 was made with respect to legislation enacted to provide funding for or
29 additional staff to implement a program for which rules and regulations
30 are required to be adopted, the notification shall include what the
31 funding has been used for and what functions the staff have been

1 performing while such rules and regulations are pending. The format of
2 the notification shall be established by the committee and shall be
3 updated periodically.

4 (2) On or before July 1 of each year, each agency shall notify the
5 Executive Board of the Legislative Council of the status of any rule or
6 regulation pending before the agency that constitutes an occupational
7 regulation as defined in section 84-940 and that has not been adopted and
8 promulgated. The executive board shall forward any notification received
9 pursuant to this subsection to the standing committee of the Legislature
10 with jurisdiction over such rule or regulation.

11 **Sec. 107.** The Revisor of Statutes shall assign sections 1 to 65 of
12 this act to Chapter 50.

13 **Sec. 108.** Original sections 28-711, 43-4302, 43-4303, 43-4317,
14 43-4320, 43-4321, 43-4322, 43-4324, 43-4326, 43-4329, 43-4330, 47-901,
15 47-902, 47-903, 47-904, 47-905, 47-907, 47-908, 47-909, 47-910, 47-911,
16 47-912, 47-913, 47-914, 47-915, 47-916, 47-917, 47-918, 47-920, 50-406,
17 50-406.01, 50-407, 50-408, 50-409, 50-410, 50-416, 50-418, 50-420,
18 50-1201, 50-1202, 50-1203, 50-1204, 50-1205, 50-1205.01, 50-1206,
19 50-1210, 50-1211, 50-1212, 50-1213, 50-1303, 50-1304, 73-401, 81-8,240,
20 81-8,241, 81-8,242, 81-8,243, 81-8,244, 81-8,245, 81-8,246, 81-8,247,
21 81-8,248, 81-8,249, 81-8,250, 81-8,251, 81-8,252, 81-8,253, 81-8,254,
22 81-1114, 83-178, 83-1,125.01, 84-304, 84-311, 84-322, and 84-910, Reissue
23 Revised Statutes of Nebraska, and sections 28-712.01, 29-2011.02,
24 29-2011.03, 43-2,108, 43-4301, 43-4318, 43-4323, 43-4325, 43-4327,
25 43-4328, 43-4331, 43-4332, 50-401.01, 50-402, 50-1209, 77-2711, and
26 77-27,119, Revised Statutes Cumulative Supplement, 2024, are repealed.

27 **Sec. 109.** The following sections are outright repealed: Sections
28 43-4304, 43-4304.01, 43-4304.02, 43-4305, 43-4306, 43-4306.01, 43-4307,
29 43-4307.01, 43-4308, 43-4309, 43-4310, 43-4311, 43-4312, 43-4313,
30 43-4314, 43-4315, 43-4316, 43-4319, 47-906, 47-919, and 50-421, Reissue
31 Revised Statutes of Nebraska.

1 **Sec. 110.** Since an emergency exists, this act takes effect when
2 passed and approved according to law.